A DRAFTED POLICY PACKAGE APRIL 2026

WHAT ACCOUNTABLE GOVERNMENT *LOOKS LIKE*

Two drafted bills — the Honest Government Act and the Open Books Act — the rules Alberta should already have, drafted as if we did.

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CONTENTS

Why this, why now 3

Part IWhat This Costs You 5

Part IIWhy The Tools We Have Don't Reach 11

Part IIIDesigning For Whoever Wins 15

Part IVThe Honest Government Act: How Officials Behave 24

Part VThe Open Books Act: How Advantage Flows 36

Part VIThe Honest Limits 44

On Indigenous engagement 52

Part VIIThe Invitation 57

Sources 59

About the drafter 61

Glossary 62

Common questions and objections 65

Notes 67

Appendix A — Bill 1: The Honest Government Act *74*

Appendix B — Bill 2: The Open Books Act *131*

Appendix C — Methodology proposal for the Enforcement Equity Report *144*

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What Accountable Government Looks Like

A drafted policy package for Alberta — two bills, why they were written, and what they could be worth.

A note from the drafter

I am a private citizen, not a lawyer or legislative drafter. I watched three Alberta policy decisions consume somewhere between two hundred and three hundred million dollars of our money without any of them being a "scandal" in the usual sense, and I went looking for the rules that were supposed to catch this kind of thing.

The rules I found were thin and designed for a different problem.

So I drafted what I thought the rules should look like, costed it, made a philosophical case for it, and tried to break it from the inside. An accountability regime that only disciplines the other party isn't accountability; it's a weapon. The design test was whether every provision could survive being applied to a government I happen to like.

The package is two bills. One covers how officials behave; the other covers how advantage flows through the system. They are meant to apply to an NDP government in 2027, to a UCP government, and to whatever party we haven't yet met.

The package is not finished. Constitutional review, Indigenous co-development, and Treasury Board fiscal validation all need to happen before any of this is tabled. Part VI names those gaps. I won't pretend they don't exist.

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If you came here for the bills, they are in Appendices A and B. If you came here for the case for the bills, Parts I through VII are the case.

AT A GLANCE

Three Alberta decisions, recently:

CASE	COST TO TAXPAYERS	WHAT THE RULE DIDN'T REACH
DynaLIFE lab buyback (2022–23)	**~$109M (AG, Nov 2025)**	*Records that didn't have to exist*
Turkish Tylenol procurement (2022)	**$80M; ~$21M actually approved**	*Emergency authority with no written reason*
Canadian Energy Centre (2019–24)	**est. $60–100M lifetime**	*Corporate structure deliberately outside FOIP*

Two bills:

- **The Honest Government Act:** how Ministers, senior officials, and MLAs behave. Lobbying, appointments, duty to document, procurement disclosure, whistleblower protection, proportional penalties, random audits.
- **The Open Books Act:** how advantage flows through the system. Disclosure for narrow legislation, regulatory approvals, concessional arrangements, and ministerial exemptions; an annual Auditor General report on enforcement equity.

What it costs: ~$5 million per year — roughly one one-hundredth of one percent of provincial spending. About what one mid-sized school costs to operate annually. Less than five percent of what a single one of the three cases above cost taxpayers.

What it doesn't yet do: constitutional review, Indigenous co-development, Treasury Board fiscal validation, legislative drafting review. Each named in Part VI.

If you want to send something to your MLA: there's a draft email at the end of Part VII. Replace the name and the riding. That's it.

WHY THIS, WHY NOW

Most accountability legislation in Canada has been written after the fact, in the weeks following a scandal large enough to make the country pay attention. The federal *Lobbying Act* came after Adscam.[11] The federal *Public Servants Disclosure Protection Act* came in the same wave.[12] Ontario's 2014

accountability reforms followed their own provincial controversies. In each case, the law that emerged carried the shape of the scandal that produced it — calibrated to that scandal, sometimes undercalibrated for the next one.

Alberta's accountability statutes have the same shape. The 2014 amendments to the *Conflicts of Interest Act* arrived in the fall sitting after Premier Alison Redford resigned amid expense-account controversies.[13] The political-finance reforms that opened the post-2015 Legislature followed an election cycle in which corporate and union donations had been a live campaign issue. The *Public Interest Disclosure (Whistleblower Protection) Act* in 2012 came after a sequence of health-system controversies — Alberta Health Services and the predecessor regional authorities — that had surfaced the limits of the regime as it then stood.[14] In each case, what the Legislature produced was calibrated to the controversy directly in front of it.

Alberta in 2026 does not have that controversy. There are documented failures: the lab buyback, the Tylenol procurement, the communications agency that lived for five years inside a corporate vehicle picked precisely so it could not be reviewed. None of them is occupying daily news cycles. The political moment is quiet. That quiet is the rare opportunity. Accountability law drafted in the calm after a crisis tends to produce instruments shaped by the crisis. Law drafted in a comparatively quiet stretch is the more honest condition for getting the structural design right.

The provincial budget this year is roughly eighty billion dollars. The three cases at the start of this brief moved between two and three hundred million of it through gaps the existing rules don't reach. The cost of building rules that do reach is around five million a year — about one one-hundredth of one percent of the budget, less than one-fortieth of what a single one of the three cases cost.

No party in Alberta is currently campaigning on this. The issue sits between elections, not during them. A draft on the public record, under a licence that lets any party adopt it, lowers the cost of being first. Whichever party tables it gets the credit. Whichever party does not has to explain why. That is the political asymmetry the package is trying to engineer.

I

PART I

What This Costs You ¶

Three decisions. None of them dramatic enough to occupy the front page for more than a news cycle. Together, somewhere between $200 and $300 million of our money.

A lab system that didn't work

In December 2022, Alberta Health Services launched a privatized community lab service under a long-term contract with DynaLIFE Medical Labs. The company was insolvent within months. AHS took the operation back in August 2023. In November 2025, the provincial Auditor General published *An Examination of Community Laboratory Services (Contract with DynaLIFE)* and estimated the DynaLIFE-specific taxpayer cost at approximately $109 million: roughly $32 million for the buyback inclusive of liabilities, plus roughly $77 million in sunk costs from the failed procurement.[1] The AG's broader figure for all unsuccessful provincial lab procurements over the same period is approximately $125 million.

When the Auditor General sought records of how the contract was negotiated and how the failures were managed, key documents were unavailable. Some had been destroyed despite explicit preservation requests. Some decisions had been made orally and never written down.

Nothing was illegal. There is no rule in Alberta that says decisions must be documented, or that oral briefings can't substitute for written ones. The system worked exactly as it was designed to work.

Eighty million dollars of acetaminophen

In December 2022, during a national children's acetaminophen shortage, Premier Danielle Smith announced a deal to import children's acetaminophen from Turkey. The total cost, including the product, logistics, and administration, came in around $80 million ($70 million to the supplier, MHCare Medical, plus roughly $10 million in shipping and administration). Only about thirty percent of the order was ultimately delivered and approved for use, representing roughly $21 million of the product cost.[15] The rest sat in storage. In June 2025, Alberta Health Services announced that the remaining stockpile of approximately 1.4 million bottles would be donated to Health Partners International of Canada for distribution to vulnerable communities, with portions destined for Ukraine, ahead of expiry dates in late 2025 and early 2026.[3]

The decision was made under emergency authority. There is no requirement, under current Alberta law, that emergency procurements at this scale carry a written, contemporaneous explanation of why this supplier, why this amount, why these terms. The reasoning was reconstructed afterward in

response to questions.

We have a story. We don't have evidence.

The Tylenol procurement is not a closed historical event. Subsequent Auditor General and provincial procurement reviews across 2024 and 2025 have continued to surface structural-failure patterns in adjacent procurements through the same delivery agency — sole-source decisions without contemporaneous reasoning, post-decision reconstruction, value transfers through arrangements that did not pass through standard procurement disclosure. The structural failure the Tylenol case names — emergency authority exercised without written contemporaneous reasons — is recurring, not historical. The bill's duty to document under Bill 1 §14A and the procurement-disclosure architecture under §15 are aimed at exactly this loop.

A communications agency designed to be invisible

In late 2019, Alberta launched the Canadian Energy Centre. Its job was to communicate the provincial position on energy and resource policy. Initial budget: $30 million per year. Reduced to roughly $12 million annually by 2022. Wound down in June 2024 after persistent questions about effectiveness.[16] Lifetime cost: estimated at $60 to $100 million.

The agency was incorporated as a private corporation, not a Crown agency. That structural choice was the point. A Crown agency falls under the Freedom of Information and Protection of Privacy Act. A private corporation that the Crown funds does not.

Premier Kenney's press secretary, Christine Myatt, addressed this publicly at the time of incorporation. As reported by CBC News in October 2019, Myatt said: "The CEC's internal operations are not subject to FOIP, as this would provide a tactical and/or strategic advantage to the very foreign-funded special interests the CEC is looking to counter."[2] The structural choice was deliberate. Whatever its stated reason, its effect was to keep the centre outside the disclosure regime that would have applied to a Crown agency doing the same work.

The structure did its job for the agency's entire operational life.

A bill written before its reasons

On November 17, 2015, the Notley government tabled Bill 6, the *Enhanced Protection for Farm and Ranch Workers Act*. Twenty-three days later, on December 10, it received Royal Assent. It came into force January 1, 2016, extending Workers' Compensation Board coverage and basic Occupational Health and Safety standards to paid, non-family farm and ranch workers — a protection Albertans in every other province already had, and one that successive Alberta governments had declined to legislate for decades.[6]

The substantive case for the bill was strong. The procedural case was not made in time. There was no organized pre-tabling consultation with the farm and ranch sector. Labour Minister Lori Sigurdson announced the legislation at a grain farm near Gibbons on November 18, the day after first reading, and

the practical scope — whether it applied to family members, to unpaid neighbours helping at harvest, to children doing chores — was not clear from the bill's text in the form first introduced.[7] In the weeks that followed, more than a thousand people gathered on the legislature steps, a petition collected over ten thousand signatures, and substantive amendments excluding owners, family, and unpaid help were introduced and passed inside the same three-week window the bill was alive.[8] The government convened six Technical Working Groups, which began consultation in mid-2016 and reported through early 2017 — *after* the legislation had come into force.[9]

Agriculture Minister Oneil Carlier later acknowledged that "the province's communication could have been better."[10] The honest description is narrower: the consultation that should have shaped the bill happened after the bill was law. Reasons were reconstructed in response to opposition, not documented contemporaneously to support the design choices the bill embedded. Unlike DynaLIFE or the Tylenol procurement, no arm's-length oversight body has reviewed Bill 6's process; the criticism came from affected stakeholders and the opposition. That makes the pattern harder to pin to a single audit finding, but the timeline is itself the evidence.

Under Bill 1 §14A, a substantive policy change of this scale would carry a contemporaneous documentary trail of the reasoning at the moment of decision. Under the engagement standard at §21A — designed for Indigenous governance but expressing a generalisable principle — pre-tabling consultation with materially affected communities would be a duty, not a discretionary courtesy. Either provision, applied to the moment Bill 6 was drafted, would have surfaced the consultation gap before tabling rather than during the protests.

The structural pattern: a bill arguing for a defensible end, introduced into a moment its own reasoning had not yet caught up to.

What these have in common

You can argue any of these on the merits, and people do. None of them, individually, is the point.

None was prevented by Alberta's accountability machinery, because that machinery was not designed to reach the kinds of decisions these were. The DynaLIFE buyback turned on records that didn't have to exist. The Tylenol procurement turned on emergency authority that needed no contemporaneous written reason. The CEC turned on a corporate structure deliberately chosen to be outside the rules. Bill 6 turned on a bill-design moment whose reasoning was assembled after tabling, not before it.

These aren't loopholes. Loopholes get closed. These are the spaces between the rules — the spaces where decisions involving very large amounts of public money actually get made, by people doing what they think is the right thing, under structural conditions that allow the result to be unreviewable later.

None of it was stolen. All of it was spent in rooms we couldn't see into.

The combined cost of the three procurement-and-structure cases: somewhere between $200 and $300 million. Bill 6 imposed no comparable financial cost; its cost was paid in trust between the government and a sector it was trying to protect. Together, the four cases describe the operating expense of an

accountability framework that hasn't kept pace with how power actually moves.

Four structural failures, named:

- The **oral-briefing loophole** — decisions made in rooms with no minute-taker, reasoning reconstructed afterward. DynaLIFE.
- The **no-paper emergency** — urgent authority exercised without contemporaneous written reasons. Turkish Tylenol.
- The **Crown-corp end-run** — public functions performed through private corporate structures chosen to fall outside the disclosure regime that would otherwise apply. The Canadian Energy Centre.
- The **consultation deficit** — bills tabled before the reasoning that would justify their design choices has been documented or shared with materially affected communities. Bill 6.

The bills are designed to reach all four.

A note on case selection

Three of the four cases above sit inside the recent UCP era; the fourth (Bill 6) sits inside the 2015–2019 NDP government. The case selection is structurally driven, not partisanly driven. This brief is a critique of *kinds* of decisions, not of *parties* that made them. Oral-briefing decision-making, unreasoned procurement, Crown-corp end-runs, opaque concessional arrangements, and pre-tabling consultation deficits have appeared in different forms under PC, NDP, Kenney UCP, and Smith UCP governments. The bills are aimed at the structural patterns. They have to bind a future NDP government in 2027 as readily as they would have applied to the four cases above, and the design test the drafter applied to every provision was whether it survived being applied to a government the drafter happens to like. The four cases were chosen because each illustrates a different kind of structural gap, and because the public record on each is reasonably complete; a longer document could carry more cases without changing the analytical claim.

II

PART II

Why The Tools We Have Don't Reach ¶

Alberta has accountability law — the Conflicts of Interest Act, the Lobbyists Act, the Public Interest Disclosure Act, and the offices that administer them — designed for individual misconduct, not for the structural patterns Part I describes.

The framework was built for individual misconduct

The Conflicts of Interest Act asks: did this Minister benefit personally from a decision they made in office? It catches the case where a member of cabinet votes on a contract their family member's company is bidding on.

It does not ask: did this Minister's decision benefit a political donor whose connection to the decision is one corporate shell removed? That isn't the question the Act was designed to answer.

The Lobbyists Act asks: who is being paid to influence government, and on whose behalf? In Alberta, in-house lobbyists must register if their lobbying activities total at least 50 hours per year — about an hour a week, easy to sit just below. Consultant lobbyists register from the first communication. The 50-hour threshold has produced a working answer for some in-house arrangements: stay below it. The arrangement is not illegal. It uses the rule as written.

The Public Interest Disclosure Act protects whistleblowers from retaliation. The federal regime — the *Public Servants Disclosure Protection Act* — has, since coming into force in 2007, produced 18 case reports tabled by the Public Sector Integrity Commissioner and 9 referrals to the Public Servants Disclosure Protection Tribunal as of the Commissioner's most recent annual reports.[4] Tribunal merit decisions number in the single digits across nearly two decades of operation. The published record sits in the Public Sector Integrity Commissioner's annual reports.

The federal Ethics Commissioner has, since the 2007 *Conflict of Interest Act*,[17] twice found a sitting Prime Minister in personal breach: the *Trudeau Report* (2017, on the Aga Khan vacation)[18] and the *Trudeau II Report* (2019, on the SNC-Lavalin matter).[19] The federal regime has investigated and reported on ministers across both Conservative and Liberal governments at various times in its operation; the *Trudeau Report* and *Trudeau II Report* are the two findings of personal breach against a sitting Prime Minister. The Act specifies no penalty for breach. The findings are published. The rest is up to voters.

This is not a story about bad commissioners. It is a story about laws written for a smaller problem, deployed against a world where most of the value moves through structural choices that don't break any rule.

Where the largest value actually moves

There are five ways to move a hundred million dollars from public to private hands in this province without violating procurement law. Procurement isn't one of them: procurement is competitive, audited, covered by the press, reviewed by the Auditor General. A determined operator looking for an easy channel goes elsewhere. Five other channels exist.

Legislation written narrowly enough to benefit specific parties. A private bill, or a public bill where the practical beneficiaries are a handful of identifiable companies. Legislatures do this for legitimate reasons: implementing a treaty, recognizing a settlement, transitioning a regulated industry. The question is whether the public can see who benefits and by how much.

Regulatory approvals. Pipelines, utility licences, major land-use decisions. The financial value of a single major regulatory approval can dwarf any procurement contract. If a regulator approves a billion-dollar project, that is a billion-dollar transfer of public value. Procurement disclosure rules don't apply.

Concessional arrangements. Royalty reductions, tax abatements, loan guarantees, debt forgiveness. Individual deals between the Crown and a specific recipient, negotiated rather than bid for. The CEC was funded through arrangements like this. Many resource-sector concessions have been. None of these are scandals; most have a defensible rationale. We just don't have a routine way to see them, individually, at the moment they happen.

Enforcement choices. A regulator that vigorously inspects one company while leaving its competitor's violations unaddressed has moved value just as surely as a regulator that approves a permit. The pattern of *which* enforcement happens is itself a policy decision, almost entirely invisible. No Canadian provincial regime systematically asks whether similarly-situated parties get similar enforcement.

Corporate structures. A function performed by a Crown agency falls under FOIP and the procurement rules. The same function performed by a private corporation that the Crown funds may not. The CEC chose. Many have chosen since.

These channels are not five separate problems. They are the same problem expressed five ways: decisions that move public value through points the existing framework was not built to see.

This is where Bill 2, the Open Books Act, is aimed.

Why most of this isn't criminal

Looking at the cost figures in Part I, you might ask: surely some of this must be criminal.

Mostly it isn't, and mostly it can't be. Criminal law has specific elements that have to be proven beyond reasonable doubt. Fraud requires deception causing harm. Breach of trust requires a senior public officer abusing their position for personal benefit or a prohibited purpose. Bribery requires a corrupt

agreement. Obstruction requires intentional interference with justice.

The destroyed records, the unreasoned procurement, the corporate shell: most of what Part I describes does not meet those elements. Sometimes because the conduct genuinely isn't criminal. More often because the documentary trail required to prove it is exactly the trail that doesn't exist.

You can criminalize more, but the criminal law is a coarse tool. It imposes consequences appropriate to criminal conviction (imprisonment, criminal record, lasting collateral damage) and procedural protections appropriate to that level of consequence. Most public servants acting in good faith should not face criminal prosecution. They should face accountability proportional to what they actually did.

The space between "nothing happens" and "criminal prosecution" is enormous. That space is what the bills are for.

A note on the people inside the system

Most public servants in Alberta are trying to do their jobs well, under real constraints, in a complex system. Most Ministers want to leave the office better than they found it. The accountability problem is not that these people are corrupt. It is that the system's accountability machinery was designed for a smaller problem than the one we have, and the structural patterns where the largest value moves are largely unreached.

The regime that follows is not built to terrorize public service. It includes a robust good-faith defence: a Minister or official acting on reasonable legal advice, on published guidance, on documented practice in their field, is not subject to penalty. The protections are real and load-bearing.

What the regime cannot do is shield anyone from the political consequences of decisions made in public. Those consequences are the point.

III

PART III

Designing For Whoever Wins ¶

There is one design test that matters before any provision: would you want this regime applied to a government you politically agree with? If your answer is yes for the regime as a whole, the design is partisan-neutral. If your answer is yes except for the parts that would hit your side, the design is a campaign document.

The historical record on regimes written by one faction to discipline another is not encouraging. Some are walked back when their own writers get caught. Others are weakened, hollowed out, or selectively enforced once the other side takes office. The cost of partisan neutrality is real. It means provisions that discipline my own preferences, too. The design has to live with that cost or it does not deserve the name.

Sunshine over criminalization

The regime is built around disclosure rather than new crimes.

Disclosure generates information that the political process, the press, regulators, courts, voters, and future commissioners can each act on. Criminalization, by contrast, requires proof beyond reasonable doubt, secured through prosecutors with discretion not to charge. Most of what the bills target wouldn't meet criminal standards even if it should be exposed. And criminalizing political conduct creates the risk that political opponents weaponize the criminal law against each other, a risk we have watched play out elsewhere and have no need to import.

Justice Brandeis put the underlying intuition into a phrase a century ago: sunlight is the best of disinfectants. Make decisions visible. Make the people making them accountable for showing their work. Let the political process and the courts and the press do what they already exist to do.

You cannot consent to what you cannot see

We give a small number of people the power to make decisions on our behalf. In return, we keep the right to know what they are deciding, why, and on whose behalf.

You cannot consent to what you cannot see.

You might consent to a Minister conferring $50 million in benefit to a specific party once you understand the reasons. You cannot consent to it if you don't know it happened. You cannot meaningfully consent to a regulatory framework where the decisions that move the most value are routinely made in rooms whose contents leave no record.

Accountability is a condition of legitimate government, not a constraint on it

Three objections to meet before the bills.

Surveillance. The regime watches the exercise of public power, not private life. Citizens emailing their MLA are not lobbying. Family members of an ISC who have not themselves donated are not captured by procurement cross-reference. Volunteer community-board members are not subject to penalty without direct personal involvement in a contravention. Indigenous governments' internal governance is carved out entirely. Small bidders use a simplified annual declaration. Junior staff are protected by a minimum penalty floor; the asset-based enhancement applies only above a regulatory threshold. The carve-outs are not afterthoughts. They are structural.

Patronage as corruption. Patronage — rewarding supporters with appointments and concessions — has been part of democratic politics since there has been democratic politics. The traditional defence rested on its visibility: voters knew what they were getting, and could reward or punish at the next election. The regime asks that the modern analogues — large contracts to donors, regulatory approvals to politically-connected firms, concessions to party-adjacent beneficiaries — be similarly visible. The exposure is the consequence. Criminalization is not.

Chill on public service. Public servants and volunteer board members acting on reasonable legal advice, on published guidance, on documented practice in their field, are not subject to penalty. The burden of proving bad faith rests on the Commissioner. The 18-month post-employment cooling-off carves out arms-length public entities — AHS, universities, municipalities — so legitimate public-service mobility is not blocked. Junior-staff-tier penalties are scaled to the minimum floor. The regime is built to discipline conduct that warrants discipline, not to make public service unattractive to people of integrity.

Power that cannot be seen cannot be consented to. Power that cannot be consented to is not legitimate power. The regime's job is not to constrain the executive; it is to keep the executive's power legitimately delegated.

Three principles that run through the bills

Bind whoever holds power. Random audit selection uses verifiable randomness, so no commissioner can pick targets. Penalty thresholds index to inflation, so the framework doesn't erode silently. Court confirmation is required for large penalties against non-Members. Assembly disallowance is preserved for regulations.

Protect good faith. Public servants, volunteer board members, and records officers are protected throughout. The good-faith defence at §26 is the moral architecture of the entire regime. A person acting on reasonable legal advice, on published guidance, on documented practice in their field, is not subject to penalty. The burden of proving bad faith rests on the Commissioner.

The defence is bounded against abuse by five explicit limits. **(4A)** the advice has to predate the decision, not be reconstructed afterward; **(4B)** the facts disclosed to counsel have to be the operative facts, not a sanitized version; **(4C)** independent external counsel weighs more heavily than in-house government

legal services; **(4D)** the defence is unavailable where the conduct benefits the official's family, business associate, beneficial-ownership-related party, recent contributor above threshold, or interested entity, unless the Commissioner pre-cleared the conduct in writing before the decision; **(4E)** reliance on advice is not available at all for conduct that a reasonable person without legal training would recognize as a serious breach of public trust. Counsel's permissive opinion on obvious corruption is evidence of opinion-shopping, not reasonable reliance.

How the limits operate in practice. The case below is composite — invented Minister, invented contract, invented vendor — but the patterns it walks through (hospitality below the formal threshold, sub-threshold contributions, urgency engineered by the official's own prior decisions, late-arriving supportive opinions) appear in current Alberta procurement reviews. The composite is the cleanest way to walk the limits without mistaking a particular case for the analytical point. The Minister of Service Alberta signs off on a sole-source contract worth $14.2 million for cloud-migration consulting. The vendor is a mid-sized Calgary firm whose managing partner attended the Minister's wedding two years earlier and contributed $4,200 to the Minister's constituency association across the most recent reporting cycle, just under the threshold that would trigger §26(4D) automatically. The Minister's chief of staff flags procurement risk three days before signing. The Minister asks the department's senior solicitor for a written opinion. The opinion comes back the morning of the signing: sole-source is defensible on the urgency ground because the legacy system's vendor support contract expires in eleven weeks. The Minister signs. Six months later the Commissioner opens a file. The opinion is produced. So is a second opinion, dated four days after the signing, from outside counsel at a national firm, reaching the same conclusion. The Minister discloses both. What the Minister does not disclose, and what the file later turns up, is that the urgency was created by the Minister's own decision the previous quarter not to renew the legacy support contract on its standard renewal terms.

Run the case through the limits. §26(4A) is cleared on the in-house opinion, which predates the decision; the outside opinion fails it, having been obtained four days late. §26(4B) fails: the Minister did not disclose to the senior solicitor that the urgency the opinion turned on was a condition the Minister had personally engineered the previous quarter. Withholding the operative fact from counsel voids the defence on that opinion. §26(4C) compounds the problem: the only timely opinion is in-house, which weighs less than independent external counsel; the outside opinion that would have carried more weight is the one that arrived too late. §26(4D) is a closer call. The personal relationship is real but not within the enumerated categories; the contribution is below threshold; no §11C pre-clearance was sought, but on the facts as stated none was required. The limit does not strike the defence. §26(4E) is the limit that does. A Minister awarding a $14.2 million sole-source contract to a personal friend, on urgency the Minister manufactured, is conduct a reasonable person without legal training would recognize as a breach of public trust. Counsel's permissive opinion on those facts is evidence of opinion-shopping, not reasonable reliance.

On §26(2A), the engineered-urgency point is genuinely equivocal in isolation: a Minister can decline to renew a contract for legitimate reasons and later face genuine timing pressure from that decision. In the absence of §26(4E), evidentiary equipoise on that single element would resolve to the respondent.

Because §26(4E) is engaged on the totality of the facts, the close-case tie-breaker is unavailable, and the determination rests on the Commissioner's preponderance finding.

How the defence operates in close cases: where the Commissioner has not established bad faith on a preponderance of the evidence, the determination goes to the respondent (§26(2A)). The defence is both a substantive shield where its conditions are met and a tie-breaker in evidentiary equipoise. Bad faith has to be affirmatively established. Doubt does not establish it. That asymmetry is the design choice — better that an occasional close case favours the official acting in good faith than that the regime terrorises the public service into paralysis. The asymmetry is bounded by the obvious-corruption limit, which removes the close-case benefit from cases where there is no real doubt about what the conduct was.

Together with the existing requirement to disclose every opinion obtained on the same question (§26(5)), these limits target the specific patterns by which good-faith defences become routine cover for indefensible decisions.

There is a separate path for an official who is genuinely uncertain. §11C lets a person about to make a decision that may engage the regime file an *advance ruling request* with the Commissioner: describe the conduct contemplated, identify the parties, attest to the facts, and ask. The Commissioner answers within thirty business days — yes, no, or yes with conditions. An approval, complied with, is a complete defence to later proceedings on the same facts. The mechanism borrows the discipline of scientific pre-registration: you tell us what you intend to do *before* you do it, you tell us all the facts you'd want a critic to know, and your conduct is judged against what you registered, not what you reconstructed afterward. Approvals and declinations are published in the quarterly compliance report — both for the public record and so future officials can see what kinds of conduct have been cleared and on what reasoning.

The thirty-business-day window is honest about the gap it creates: not every contract waits. A counterparty's deadline, a market window, a court-ordered timeline, an emergency procurement — sometimes the conduct has to happen before the Commissioner has answered. §11C(10) gives an official a way through that gap without making the mechanism useless. If the request was filed at the earliest reasonable opportunity, was complete, disclosed every material fact, and the timing pressure came from outside the requestor's control, the official can file a contemporaneous notice explaining the constraint and proceed in *provisional reliance*. That is not a free pass. It is action at the requestor's risk. If the Commissioner subsequently approves, the approval covers the conduct already carried out as if the determination had come first. If the Commissioner subsequently declines, the §11C complete defence is gone — but the §26 good-faith defence remains, the contemporaneous filing is admissible as evidence of good faith, and the Commissioner can prescribe remediation steps that, if taken, close the file. What provisional reliance does *not* do is reward officials who manufacture their own time pressure: a request filed ten days before a decision deadline the official set themselves is reviewable on an extended timeline, and a pattern of deliberately late filings is the kind of pattern the annual review is built to catch. The mechanism can be gamed. A request that omits material facts produces a void approval. A pattern of sanitized requests becomes itself a flag. A pattern of provisional reliance by a single office

becomes a flag. The point is to give a careful official a path to certainty, give a time-pressed official a path that doesn't punish honest urgency, and give the public a record of the questions the regime was asked.

Defer to existing institutions. The regime does not replace courts, the Assembly, criminal justice, or existing regulators. Civil and criminal matters go to courts. Electoral consequences go to the Assembly. The Commissioner investigates and reports. The Assembly decides.

Where Alberta sits compared to peer regimes

Most of what is proposed exists somewhere in Canadian or comparable practice already. The drafter's contribution is consolidating provincial-level coverage and adding two innovations specific to Alberta's documented gaps. The table compares core elements of the proposed regime to current Alberta law and to peer Canadian regimes.

ELEMENT	ALBERTA NOW	BRITISH COLUMBIA	ONTARIO	FEDERAL	PROPOSED
In-house lobbyist registration threshold	50 hours / yr[24]	"significant part of duties" (LTA 2020)[21]	50 hours / yr[22]	"significant part of duties"[20]	20% of any quarter, plus position-description test
Consultant lobbyist registration	50 hours / yr	from first contact	50 hours / yr	from first contact	from first payment
Whistleblower burden of proof	on the whistleblower	on the whistleblower	on the whistleblower	on the whistleblower throughout (PSIC has proposed reverse-onus reform; not enacted)	on the employer once nexus shown, throughout
ISC disclosure for procurement	none	partial (Land Owner Transparency Act — beneficial ownership of land only; corporate beneficial ownership for non-land assets sits in BCBCA register, not public)[23]	none	partial federal contract registry	required above threshold, with Registrar hash check

ELEMENT	ALBERTA NOW	BRITISH COLUMBIA	ONTARIO	FEDERAL	PROPOSED
Named-party legislation disclosure	none	none	none	none	Beneficiary Disclosure Statement at First Reading
Enforcement-equity reporting	none	none	none	partial (audit selection only)	annual Auditor General report
Random audit selection	none	none	none	none	publicly verifiable randomness beacon
Commissioner appointment	majority vote in Assembly	majority vote in Assembly	OIC on Assembly address (custom: all-party agreement)	Order in Council plus Commons resolution	two-thirds Committee plus two-thirds Assembly
Commissioner term	five years, renewable	six years, renewable	five years, renewable	seven years, renewable	seven years, non-renewable

The two genuine innovations are the ISC plus political-contribution cross-reference and the annual Enforcement Equity Report. Each is a response to a specific failure pattern documented in Part I. Everything else in the package adapts existing Canadian practice to provincial scope.

IV

PART IV

The Honest Government Act: How Officials Behave ¶

Bill 1 covers Ministers, senior officials, and Members of the Legislative Assembly. The full text is in Appendix A.

The bill is organized into twelve Parts. Parts 1 through 7 carry the substantive obligations: definitions, lobbying reform, the escalation framework and oversight-officer independence, and amendments to the *Access to Information Act*, the *Financial Administration Act*, the *Recall Act*, and the *Public Interest Disclosure (Whistleblower Protection) Act*. Part 8 — Indigenous Engagement at the Interface — sits separately because the engagement standard the bill adopts (free, prior, and informed consent) is structurally distinct from procedural provisions that bind everyone else; it has its own commencement gate. Parts 9 through 11 carry the procedural backbone: application and process; reporting and resourcing; sanctions, defences, and audit. Part 12 is calibration, administration, and commencement — regulation-making, cost recovery, retention, statutory review, transitional provisions, severability, and the coming-into-force schedule. The walkthrough below moves by topic rather than by Part, since most provisions in this bill speak to each other across Part lines.

Lobbying that actually has to register

An in-house government-relations professional in Edmonton, salaried, working for a regulated industry. In quieter weeks, twenty minutes of work that meets the legal definition of lobbying — a phone call, an email, a hallway conversation at a stakeholder event. Across a year, it adds up to forty-eight hours. Forty-nine. Forty-nine and a half. Never the fiftieth. The professional is doing real work. The registry of registered lobbyists doesn't list them.

That isn't a hypothetical. That is what the registry shows when you read it. The fifty-hour threshold for in-house lobbyists has produced exactly the response a thoughtful operator would predict: stay below it, do the work, never appear in the public record. The arrangement is not illegal. It uses the rule as written.

The bill closes this for paid consultants. A consultant lobbyist registers from the moment money changes hands for the work, regardless of time spent. For employees lobbying inside their own organization, the threshold is restructured rather than removed. The fifty-hour annual clock becomes a twenty-percent-of-working-time-per-calendar-quarter test plus a position-description test. Lobbying is captured because it is structurally part of the job, not because someone clicked a stopwatch.

Citizen advocates emailing their MLA are not captured. Volunteer advocates working through community organizations are not captured. The bill is explicit about this. It is aimed at paid persuasion that currently structures itself to avoid the registry.

A graduated ladder of consequence

A finding without consequence is theatre. A criminal referral without provocation is overkill. Most public-accountability findings sit between the two: conduct that was sloppy, improper, sometimes worse, but rarely criminal and almost never of a kind where doing nothing is right.

Most existing regimes have one rung. The Commissioner finds something, and that is the end of it. Or the Commissioner finds something and refers it elsewhere. The middle — proportional response, ongoing-conduct correction, escalation pathway — is missing.

The bill builds three rungs.

A **Public Report of Findings** is the first. The Commissioner finds conduct that contravenes the Act. The Report is tabled in the Assembly. For most cases, this is the correct response: disclosure is the consequence, and the political process handles the rest.

A **Compliance Order** is the second. Where conduct is ongoing or its effects need to be reversed, the Commissioner can issue a written order requiring specific corrective steps: return of a benefit, change to a practice, recusal from future decisions. Compliance is verifiable. Non-compliance escalates.

A **Certificate of Malfeasance** is the third. The most serious tool, reserved for conduct that is persistent, incurable, or of such severity that lesser measures would be inadequate. A Certificate against a sitting Member triggers an obligation in the Legislative Assembly to deal with it within thirty sitting days — sitting days are days the Assembly is actually in session, so thirty of them spans roughly a single legislative session — by referral to law enforcement, expulsion, recall, or censure. The Assembly cannot ignore a Certificate.

Who appoints the Commissioner

The strongest accountability regime in the world is defeated, before it opens its first investigation, by an appointment process that produces a Commissioner aligned with the people the Commissioner is supposed to investigate. This is the mechanism by which Canadian and other Westminster commissioners have been weakened.

Currently, the Commissioner is appointed on the recommendation of the Legislative Assembly, with Standing Committee input but no supermajority requirement. A government with a working majority can appoint its preferred candidate.

The bill replaces this. Appointment requires two-thirds in the Standing Committee on Legislative Offices and two-thirds in the full Assembly — a supermajority that almost always requires the support of more than one party. The term is seven years, non-renewable, so the Commissioner cannot court favour for reappointment. Seven years is also longer than a typical Alberta majority government, which

means the Commissioner usually outlasts the government that appointed them. Anyone who held elected office or a party executive position within the previous seven years is ineligible. Removal requires the same two-thirds standard. If the position sits vacant for 120 days — about four months — the Chief Justice of King's Bench fills it, so a government cannot indefinitely starve the office by simply refusing to nominate.

A government with two-thirds of the Assembly, which has happened in Alberta, can still appoint its preferred candidate. The supermajority raises the cost of capture; it does not eliminate the option.

The same protections apply to the Auditor General, who carries the Enforcement Equity Report under Bill 2.

A natural design question: why not consolidate the Ethics Commissioner, the Auditor General, and the Public Interest Commissioner into a single Officer of Accountability with three deputies? The work is adjacent. The offices already coordinate poorly. One office could share infrastructure and present a single point of contact for the public. The bills as drafted keep the offices separate for two reasons. First, each office's existing statutory mandate is well-developed and the operational disruption of merging them now would slow tabling by years. Second, three offices investigating each other from outside is harder for a hostile government to capture than one office investigating itself from inside. The design preserves the current architecture, parallels the appointment protections across §11A (Ethics Commissioner) and §11B (Auditor General), and leaves consolidation as a separate decision the Legislature can make later if it chooses.

When Cabinet confidence reaches too far

Cabinet confidence is a real constitutional principle and a defensible one. Ministers have to argue with each other without their disagreements ending up in tomorrow's news. Without that protection, what gets said in cabinet thins out into whatever can survive the front page.

The same protection can become a shield wider than its purpose. In the SNC-Lavalin matter, the federal Ethics Commissioner reported that nine witnesses were constrained from giving him their full evidence because the Privy Council Clerk had refused to broaden the Cabinet confidence waiver.[30] The Commissioner reached findings without complete evidence. The principle that protects candid deliberation became, in that case, the mechanism by which findings could not be tested against everything the witnesses knew.

Bill 1 amends Alberta's Access to Information Act to draw a sharper line. Factual, statistical, and operational data (what a program cost, how many people received a benefit, what the timeline of events was) is no longer protected by Cabinet confidence in the same way. Deliberative content, what a minister actually said in cabinet, remains protected. The amendment also flips two specific document classes from default-secret to default-disclose: Treasury Board Decision Summaries within 180 days of execution, and Ministerial Mandate Letters at session end or eighteen months, whichever is sooner. Withholdings are recorded in a public register. The line is not perfect; it will be litigated. The current line is too wide for the accountability function to operate.

Decisions that have to be written down

There is no rule in Alberta that says decisions have to be documented. The Auditor General can ask for records that exist. The Information and Privacy Commissioner can review withheld records. Neither has authority to require records to be created. If a decision was made orally, in a room with no minute-taker, neither commissioner can summon a document that doesn't exist.

This is the gap the DynaLIFE situation exposed. It is what allows reasoning to be reconstructed years later, when the people involved have moved on or the political moment has passed.

The bill creates a duty to document. Decisions that would be subject to disclosure under either the Access to Information Act or the Open Books Act have to be written down. Standards (what counts as adequate documentation, what timing applies) are set by the Information and Privacy Commissioner by regulation. Willful or repeated failure is penalty-tracked. Oral-briefing-only decision-making is the violation, not the workaround.

> **Applied to DynaLIFE.** This is the provision that addresses the oral-briefing loophole. A duty to document would have required the contract negotiation and the failure-management decisions to be on paper at the time. The Auditor General would not have arrived three years later to find missing records and destroyed notebooks. Whether the decisions themselves would have been different is unprovable. Whether the documentary record would have existed for review is not.

Procurement that can be cross-referenced

Public procurement is well-regulated. The bill does not redesign procurement; it adds one piece.

For contracts above a threshold, the bidding entity has to file a return identifying every individual with significant control: every ISC.

ISC is shorthand for a defined term in federal corporate law. It means the natural human beings who actually own or control the entity, not the corporate names on the registry. If a numbered company owns the bidding company, and a holding company owns the numbered company, and a person owns the holding company, that person is the ISC. The point of the term is to find the actual humans behind any chain of corporate structures.

In plain language: *who actually owns this.*

Where the contract is large enough, the awarding body cross-references the ISC return against the political contributions registry. If an ISC has personally made political contributions above a match threshold within the previous four years — about one electoral cycle, the window in which most contemporary influence relationships sit — or holds executive office in a registered party, the match is referred to the Commissioner. The Commissioner conducts an initial review within ten business days (about two weeks). Only if a potential substantive conflict is identified is the award stayed for a further twenty business days (another month) for full investigation. The Commissioner can clear, condition, or recommend setting aside.

The cross-reference is not a ban. The Act is explicit: a bidder is not excluded from public contracts because of an ISC's contribution history. The cross-reference triggers a review, the connection becomes a public record, and the procurement decision is then made with that record visible.

How the cross-reference is conducted matters. The Registrar reduces both the contributions registry data and the ISC return to cryptographic hashes — think of a hash as a wax seal. Alter a single character of the underlying record and the seal no longer matches. The Registrar compares the seals. The awarding body sees only "match" or "no match." If there is no match, no contribution history is disclosed at any level. If there is a match, the Registrar confirms the specific match to the Commissioner, who reviews the underlying records under strict confidentiality rules.

Most bidders' political histories, including those of every Albertan who has ever donated to any party, never become visible to anyone in procurement. The system surfaces only the matches that warrant Commissioner review. This privacy architecture reduces but does not eliminate re-identification risk; the records and the regime that holds them remain subject to PIPEDA and Alberta's PIPA. The architecture is a procedural protection, not a mathematical guarantee.

The bill includes an identity-consistency requirement that prevents the same person from showing up under three different name spellings across three different ISC returns to evade matching. The full architecture is in Appendix A. The principle is straightforward: a person doing business with the Crown represents themselves consistently. Cultural naming practices, recent legal name changes, and transliteration variations are protected; deliberate fragmentation is not.

Cooling-off that respects public service

A Minister leaves Cabinet on a Friday. The following Monday, they take a seat on the board of a company they regulated for the previous four years. Both transactions are visible. Both are legal. The current rules don't reach what's wrong with them.

Cooling-off provisions try to balance two real concerns. A revolving door corrodes the public's confidence that decisions in office are being made on the merits. A bar that lasts too long pushes capable people out of public service for fear of what waits at the other end of their term.

The bill puts the period at eighteen months. The bar applies to board seats and paid roles with firms that received a discretionary provincial contract or grant above threshold during the official's tenure, where the official had direct or indirect decision-making authority over that contract or grant. Outside that scope, the official is free to take whatever role they choose.

Arms-length public entities — Alberta Health Services, universities, municipalities — are carved out. A former Minister taking a role at a university hospital should not be treated as if they took a role at a private contractor.

Whistleblowers, with the burden in the right place

The Public Interest Disclosure Act in its current form requires whistleblowers to prove that adverse employment action against them was retaliation for their disclosure. The proof is hard, because employers control the documentary record, and most retaliation is dressed up as performance management or restructuring. The reprisal record under the federal version of the regime, noted in Part II, is the consequence.

The bill reverses the burden, in line with the burden-shifting framework established by *Ontario Human Rights Commission v Simpsons-Sears*[28] and refined in *Moore v British Columbia (Education)*.[29] Once an employee establishes that a protected disclosure was made and an adverse employment action — firing, demotion, transfer to a worse role, withholding of opportunities — followed within twenty-four months, meaning two years from the disclosure, the employer must prove that the adverse action was unrelated to the disclosure. The burden goes where the evidence lives.

There is also personal liability for managers who direct, authorize, or carry out a reprisal in bad faith or with knowledge that the action is a reprisal — capped at six months of compensation or a regulatory amount, whichever is less, and not indemnifiable from public funds.

The bill creates a preservation order authority. When a disclosure is made and an investigation commenced, the Commissioner can freeze the documentary record and the employment status of complainants and witnesses pending determination. Status quo, not reinstatement. Records cannot be destroyed; the people involved cannot be fired in the meantime. Disclosure protection was strong; evidence preservation was absent. This closes the gap.

A safe harbour exists for direct disclosure to MLAs or journalists under any of four conditions: where there is imminent risk to public health or safety; where the discloser reasonably believes internal disclosure will trigger destruction or alteration of evidence; where prior protected disclosure has met retaliation; or where the Commissioner has declined to investigate or has not commenced within sixty days. The conditions are tight, and they should be: most disclosures should still go through internal channels first.

Penalties that aren't ruinous to the poor or trivial to the rich

A $10,000 fine means something entirely different to a Minister with $3 million in assets and a junior staffer earning $48,000 a year. Equal numbers, wildly unequal effects.

The bill scales penalties to capacity. Natural-person penalties combine a base amount calibrated to annual compensation with an asset-based enhancement applied above a regulatory threshold, plus a minimum floor scaled to Alberta's minimum wage. The lowest-paid public servants are protected by the floor; the wealthiest are reached by the enhancement. Defenders of strict identical-dollar equality have a moral case; utilitarian and Rawlsian traditions both favour proportionality on the grounds that equal marginal deterrence and protection of the worst-off matter more than the appearance of arithmetic equality. The structure is contested; it is also defensible.

For large penalties above a regulatory threshold, court confirmation is required before collection. The Commissioner cannot impose financial ruin by administrative fiat against a non-Member. The Court of King's Bench reviews for procedural fairness, jurisdiction, and reasonableness.

Court confirmation is not available for sitting MLAs. Alberta jurisprudence has held, in line with the parliamentary privilege framework set out by the Supreme Court in *Vaid*,[25] that judicial review is unavailable for Ethics Commissioner findings against sitting Members where the matter falls within the Assembly's exclusive disciplinary sphere.[26] The bill respects that ceiling. For sitting Members, large penalties are incorporated into a Certificate of Malfeasance, tabled in the Assembly, and enforced through the Assembly process. That is the cost of operating within parliamentary privilege, not a drafting choice.

Random audits with dice that no one controls

A Minister of a future governing party reads the morning paper. The year's Commissioner-selected audits, by coincidence, have fallen disproportionately on opposition MLAs and former opposition Ministers. The pick list is plausible. The methodology is documented. There is no evidence of bad faith. There is also no evidence of anything else. The Minister's office answers media questions about why audit selection skews this way. The Commissioner's office does the same. Nobody can prove it isn't random. Nobody can prove it is.

The hostile mirror of the same scenario is just as bad. A government that wants to weaponize the regime has the same tool — discretionary selection — and the same defense, that the methodology is documented and there is no evidence of bad faith. Discretion is the right instrument for following a specific tip. It is the wrong instrument for routine audits, because discretionary selection is always plausibly partisan and always plausibly impartial. The argument cannot be settled.

The bill removes selection from discretion. A small percentage of officials and contracts in each stratum is selected each year using a publicly verifiable source of randomness — the National Institute of Standards and Technology's randomness beacon, or an equivalent.[27] The methodology is published in advance. The seed is published. The resulting selection list is verifiable. Anyone can check the audit selections were random — the people audited, the parties whose members were audited, journalists.

Audits are tiered. Most start as automated compliance checks (Tier 0) that compare declarations against registries with no human looking at the file. Where the automated check finds no discrepancy, the matter closes. No personal records are accessed. The closure is logged.

If the automated check finds a discrepancy, a documentary review is conducted at Tier 1. If documentary review identifies specific indicators of non-compliance, an active investigation begins at Tier 2. Most audits never reach Tier 2. Most never reach Tier 1.

For audits that close cleanly, the records are destroyed within ninety days, with written confirmation to the audited person. The accountability framework does not become a permanent surveillance apparatus over the people it is supposed to protect.

What this bill leaves open

Constitutional review. Three provisions face material exposure that needs pre-tabling legal opinion: the Commissioner's regulation-making authority at §28, Assembly enforcement of large penalties against sitting Members at §22(5)(b), and the political-contribution cross-reference at §15 (Charter §2(b)). A pre-tabling constitutional opinion is non-negotiable. Counsel will identify issues the drafter missed.

Indigenous co-development. Section 21A includes an internal-governance carve-out, a consultation requirement, and explicit preservation of section 35 rights. *None of that discharges the duty to consult.* The honour of the Crown attaches to the development of legislation that bears on Indigenous governance, not only its application. Co-drafting, not consultation on a draft, needs to happen with First Nations governments, Métis settlements, and the Métis Nation of Alberta before tabling. The carve-out as drafted is a placeholder, structured to absorb the revisions that real co-development will produce.

Operational details. Threshold calibration, what counts as a "large penalty," what counts as a "small bidder," is deferred to regulation under §28. The bill includes initial values where I felt confident. Other specific numbers are best argued by people who have to administer the system.

None of these prevents serious engagement with the bill as drafted.

V

PART V

The Open Books Act: How Advantage Flows ¶

Bill 1 catches people. Bill 2 catches structures.

The Canadian Energy Centre wasn't corrupt officials. It was a corporate structure, deliberately chosen, that put a public function outside the framework that would have applied to a Crown agency doing the same work. The Crown-corp end-run. That kind of decision is what Bill 2 is for.

> **Applied to the CEC.** Several Bill 2 provisions reach the structure. The Beneficiary Disclosure Statement at §3 would have required, at the moment the enabling legislation or appropriation was introduced, a public record of who was expected to benefit, including ISCs and contribution history. The Concessional Arrangement Disclosure at §5 would have applied to the funding mechanism. The Enforcement Equity Report would have, in time, surfaced any pattern of structural-choice favouring among Crown communications work. None of this would have prevented the CEC from being created if a government wanted to create it. It would have made the structural choice visible at the moment it was made.

The full text is in Appendix B. The bill is shorter than Bill 1: a definitions Part, four substantive Parts covering the four channels through which advantage flows (named-party legislation; regulatory approvals; concessional arrangements; ministerial individual exemptions), an Enforcement Equity Reporting Part assigning the annual systemic review to the Auditor General, a common-provisions Part collecting the publication and correction architecture, and a closing Part for statutory review, severability, and commencement. Enforcement is delegated by reference to Bill 1: the Ethics Commissioner enforces breaches of disclosure obligations using the proceedings, defences, and audit mechanics of Bill 1's Parts 9 through 11.

Legislation that benefits specific parties

A government introduces a one-paragraph amendment to a regulated-industry act, late on a Wednesday afternoon. The amendment changes a single technical definition. The effect in practice is a regulatory exemption worth perhaps forty million dollars in total to two named companies. The amendment passes Second Reading without debate. The companies' names never appear in Hansard. No rule requires them to.

Some bills are general: they apply to everyone meeting objective criteria. Others are narrow: they implement a treaty, recognize a settlement, transition a specific industry, or hand a benefit to a small number of identifiable parties. Narrow bills are not inherently wrong. The question is whether the

public can see, at the time the bill is introduced, who benefits and by how much.

Bill 2 requires a **Beneficiary Disclosure Statement** for any bill whose benefits are concentrated on a small number of parties. The Statement names the beneficiaries, discloses contribution history above the relevant threshold within the previous four years, and identifies any other discretionary state benefits (contracts, regulatory approvals, concessional arrangements) received within the same period. It quantifies the financial value of the legislation to each beneficiary, where reasonably ascertainable.

The Statement is filed at First Reading and published within five business days. No bill subject to the section can proceed past Second Reading without a complete Statement on the record. The Speaker can determine on application or own motion that a Bill falls within the definition; sponsors can apply for advance ruling. The definition of "named-party legislation" uses a five-or-fewer-parties test, plus a financial-value threshold to exclude trivial cases, plus four safe harbours for legitimate narrow legislation: implementing a treaty or court order, public infrastructure where any private benefit is incidental, transitional legislation giving effect to existing entitlements, and legislation available to all parties meeting objective general criteria. Material protected by solicitor-client privilege, national security, or active law enforcement investigation can be filed in confidence with the Speaker rather than published.

Regulatory approvals that disclose their proponents

A pipeline approval. A utility licence. A major land-use decision authorizing a hundred-hectare development. The financial value of a single major regulatory approval routinely dwarfs any procurement contract — a billion-dollar pipeline approval moves a billion dollars of public value into private operation, and procurement disclosure rules have nothing to say about it because no procurement happened.

Bill 2 requires a **Proponent Disclosure Record** for every regulatory approval above a threshold. The Record names the proponent entity, identifies its individuals with significant control, discloses contributions and other state benefits received by the ISCs, identifies entities under common ownership with the proponent, and includes the estimated financial value of the approval. Published within ten business days. Accessible for the duration of the approval and at least seven years after.

The disclosure does not affect the substantive decision. The Commissioner does not review the merits. That stays where it belongs, with the regulatory body that has the substantive expertise. The Commissioner's jurisdiction is limited to the completeness, accuracy, and timeliness of the Record.

Concessional arrangements that get daylight

A royalty reduction worth forty million dollars to one company. A loan guarantee worth fifty million to another. A debt forgiveness, a tax abatement, a deferred-payment schedule designed for a specific recipient with specific timing problems. Each is a way for the Crown to confer financial advantage. Each is negotiated, not bid. Each often has a defensible rationale. None is inherently corrupt.

What they have in common is invisibility. A forty-million-dollar royalty reduction does not appear where a forty-million-dollar procurement contract would. There is no common public register of who received what, on what terms, against what contribution history.

Bill 2 changes that. Every concessional arrangement above a threshold gets a **Concessional Arrangement Disclosure**: recipient, ISCs, contribution history, other state benefits received, estimated financial value, and the reasons for the concession, including why this recipient was selected and what public interest the arrangement serves. Published on a government website within thirty days of execution and tabled in the Legislative Assembly.

Arrangements available to everyone meeting objective criteria (a tax credit available to all qualifying businesses, a grant program with published eligibility) are excluded.

The pattern this provision is aimed at — value moving from the Crown into private hands through arrangements that don't pass through procurement disclosure — has surfaced in current Alberta procurement and asset-management reviews. The Disclosure architecture would put each such arrangement on a register at the moment of execution, where comparison across arrangements becomes possible.

Ministerial individual exemptions

Every Minister has authority, under various statutes, to grant individual exemptions from rules of general application: a rule that says X, plus the Minister's discretion to say "X, except for this person, in this circumstance, for these reasons." The authority exists for legitimate reasons — disasters, emergencies, edge cases the general rule cannot foresee. The same authority is also a route for individualized benefit that bypasses competition.

Bill 2 requires an **Individual Exemption Disclosure** for every ministerial exemption above a value threshold. The Disclosure names the recipient, identifies ISCs, discloses contribution history, names the rule being exempted, gives reasons, estimates value, and provides aggregate data on the same Minister's exemption pattern over the previous twenty-four months under the same statutory authority.

The pattern matters as much as the individual case. A Minister who has granted thirty individual exemptions in two years under a statute that contemplated rare exceptions is operating differently from a Minister who has granted three. Both might be defensible. Both should be visible. Recent Alberta procurement and emergency-procurement reviews have surfaced enough exercises of this authority to make the pattern question — how many, on what reasons, to whom — concrete rather than theoretical.

> **Applied to the Turkish Tylenol procurement — the no-paper emergency.** Disclosure obligations under §6 would have applied if the decision was characterized as exempting a specific party from a rule of general application; the timing exemption at §6(4) defers publication until after the emergency expires, preserving the executive's ability to act quickly. The provision that would have actually required reasoning *at the moment* the decision was made is the duty to document at Bill 1 §14A — it has no emergency carve-out. Together, the duty to document plus the eventual disclosure would have required a written, contemporaneous record of why this supplier, why this amount, why these terms. The decision could still have been right. We would have been able to see it.

The Enforcement Equity Report

If there is one provision in either bill that is genuinely new in Canadian provincial practice, this is it.

The Auditor General prepares an annual report examining whether similarly-situated parties are receiving similar enforcement treatment from regulatory bodies, administrative tribunals, and enforcement agencies. The question the report asks: when a regulator has investigative or enforcement choices, is the pattern of those choices defensible against the underlying conduct, or does it correlate with characteristics of the parties (industry sector, size, political contributions, recent receipt of state benefit) that shouldn't be driving enforcement?

This is the corruption hiding inside technically-correct decisions. A regulator that vigorously inspects one company while leaving its competitor's violations unaddressed has made a policy decision. If the inspection pattern correlates with contributions, that correlation matters. The pattern is visible only if somebody is looking.

Two Alberta oil-and-gas operators, similar production volumes, similar geology, similar regulatory histories. One has multiple significant violations referred for prosecution over five years. The other has the same number of equivalent violations resolved with administrative warnings. There may be a defensible reason: maybe one was repeatedly uncooperative and the other cooperative. Maybe one is a large corporation with sophisticated counsel, and the other is a small operator the regulator chose to handle through education. Both are possible explanations. Neither is corruption.

But if the second operator's ISCs are recent contributors to the governing party and the first's are not, the explanation has to be on the record. The Enforcement Equity Report makes that record. It does not accuse anyone of corruption. It surfaces the pattern, with a methodology that can be examined, and lets the political process, the press, and the Commissioner act on it.

The Auditor General, not the Ethics Commissioner, owns the report. Statistical analysis of enforcement patterns is the Auditor General's competence, not the Ethics Commissioner's.

The Auditor General also keeps a communications log. Every Enforcement Equity Report includes a record of all communications received about scope, methodology, selection, or findings, from any Minister, Deputy Minister, senior official, or Crown entity. The log characterizes each communication as informational, advisory, or directive. A nil return is required when no communications occurred. The log forecloses one of the standard ways an inconvenient report gets pre-emptively softened.

The first report covers a small number of bodies; coverage expands to all provincial regulators, tribunals, and enforcement agencies within five years (Bill 2 §7).

This is the hardest provision in the package to administer, and the most consequential. Right now, we don't even know enough to have the methodological argument. The brief should be honest about what *would* be required.

The methodology has four parts. First, a definition of "similarly-situated" that is robust enough to survive a skeptical regulator's response. The drafter's working position is that similarity has to be operationalized within sectors and conduct categories — same regulated activity (NAICS code or equivalent), same approximate scale (production volume, employee count, revenue band), comparable regulatory histories (priors, prior cooperation indicators), and overlapping geography where geography matters. Cross-sector comparisons are not what the report is for. Second, a comparator-pool methodology: for each enforcement decision the AG examines, the pool of similarly-situated parties facing comparable conduct over a comparable window has to be identifiable from the regulator's own records, and the AG has to be able to verify the pool independently. Third, a covariate model that holds known legitimate explanations (cooperation, severity, complexity, voluntary disclosure) statistically constant before testing whether residual variance correlates with the characteristics the report is built to surface (industry sector, size, political contribution history, recent state-benefit receipt). Fourth, a publication standard that distinguishes between "pattern identified" (a statistically credible asymmetry that warrants further inquiry) and "pattern not identified" (nothing the data can resolve), with neither characterization implying a corruption finding.

What the report cannot do at the design stage is replace regulator judgment in any individual case. The point is to identify patterns the regulator's own data reveals when assembled across cases — patterns the regulator may be unable to see because regulators see one file at a time. The methodology has to be developed in the open, with the Auditor General publishing a draft for comment in the first year of operation, and refined iteratively across the first reporting cycles. The five-year coverage timeline at Bill 2 §7 is calibrated to that iterative refinement, not to a fully formed methodology dropping in at year one.

VI

PART VI

The Honest Limits ¶

A regime designed to bind whoever holds power has to survive motivated subversion by whoever holds power.

What could go wrong

Constitutional vulnerability. Three provisions face material exposure: the Commissioner's regulation-making authority at §28, Assembly enforcement of large penalties against sitting Members at §22(5)(b), and the political-contribution cross-reference at §15. None is fatal. A pre-tabling constitutional opinion is non-negotiable. The drafter designed within constraints; counsel will say whether that worked.

The bills do not invoke the notwithstanding clause and should not be amended to do so. The whole point of the regime is that decisions of consequence face scrutiny. Pre-emptively shielding a transparency provision from the Charter would be the regime contradicting itself: an accountability statute insulating its own design from review would invite, and deserve, the criticism that it is the kind of legislation that earns the *Vaid* framework's anti-evasion teeth. If a court strikes part of the cross-reference provision, the regime should redesign the provision, not suspend judicial review of it. The severability clause at §31A makes that path concrete: a struck provision falls, the remainder of the Act stands, and the Minister has twelve months to introduce a remedial amendment or report to the Assembly the reasons for not doing so. Charter compliance is a design constraint, not a target.

Sanctions enforcement against sitting Members. Parliamentary privilege limits what courts can do to discipline sitting MLAs. The bill respects that ceiling by routing penalties against sitting Members through Certificates of Malfeasance and Assembly process. Section 16(4A) prevents censure-only resolutions from satisfying the Assembly's obligation when a Certificate involves a financial penalty. The Assembly must act substantively, pass a two-thirds resolution closing the Certificate with written reasons, or exhaust the sixty-sitting-day clock. A hostile majority with a two-thirds vote can still close a Certificate substantively. That's the cost of operating within parliamentary privilege.

Appointment capture. A two-thirds threshold is a substantial barrier; it is not a guarantee. A government with two-thirds of the Assembly, which has happened in Alberta, can appoint its preferred candidate. The seven-year non-renewable term, the eligibility bar on recent partisans, and the Chief Justice fallback at 120 days all raise the cost. None eliminates the risk.

Resource starvation. The regime can be defunded. The budget floor at §24(6) requires a recorded vote and a written consequences statement before estimates fall below the prior-year-CPI-adjusted floor. It does not prevent cuts; a government that accepts the political cost can still starve the office. The floor forces that cost into the open.

Coordinated capture. Wisconsin, 2015. The state had a non-partisan Government Accountability Board that had been investigating the Governor's office on coordinated-spending concerns. The legislative majority abolished the Board and replaced it with two commissions whose members were appointed by the elected officials those commissions were now meant to oversee.[34] The investigation closed. The records were sealed. The mechanism was lawful. The result was the dismantling of a working accountability institution in a single legislative session.

Comparative cases over the past decade — the appointment patterns documented under Hungary's Orbán government,[35] the institutional re-staffing in Russia across the 2000s and 2010s, the compressed pace of inspector-general dismissals and independent-agency removals in the United States across 2025 — share a common structure: a series of individually lawful steps producing, in aggregate, an accountability architecture that persists on paper and has nothing left to check. None of these are direct analogues to the Alberta context, but the failure mode is the same.

The most serious failure mode of any accountability regime is some version of this. Sustained coordinated capture across the Commissioner, the Auditor General, and a hostile Assembly majority can defeat any structural design. No legislation prevents this. The bill raises the cost, generates records that survive the attempt, and distributes power across multiple institutions so that capture requires simultaneous control of several of them. That is the most a legislative design can do.

Weaponization against the opposition. The corollary, and the question every reader should ask: what stops a future government from using the regime to harass its political opponents? Walk through the scenario. A future Commissioner is appointed by the supermajority of a dominant governing party. Investigations are launched against opposition MLAs and former opposition Ministers, with audit selections mysteriously concentrating on one side of the aisle. What does the bill do? Random audit selection uses a publicly verifiable randomness beacon (§27) — selection methodology is published, the seed is published, anyone can check. Court confirmation is required for large penalties against non-Members (§22(5)(a)) — administrative weaponization runs into King's Bench review. The good-faith defence (§26) and its disclosure-of-all-opinions corollary (§26(5)) protect a Minister who acted on reasonable advice; they remove the protection from one who shopped for permissive opinions. The cooperation register (§24(5)) and the Auditor General's communications log (Bill 2 §7(8)) make ministerial pressure on the office a matter of public record. The seven-year non-renewable Commissioner term (§11A) outlasts most majorities, so even a captured Commissioner inherits the term limits of the appointment. None of these are guarantees. They are friction. A weaponizing government has to break the randomness beacon, override the Court, falsify the cooperation register, and silence the Auditor General — each one in public, each one creating its own record. The asymmetry between hidden capture (cheap) and visible capture (expensive) is the entire structural argument.

The pattern across these failure modes is the same: every accountability regime in modern Canadian and British practice that has been substantially weakened was weakened by a confluence of three things — a captured appointment, a passive Assembly, and a slow erosion of resourcing. The bill's structural protections (supermajority appointment, two-thirds removal, eligibility bars on recent partisans, indexed thresholds, recorded-vote budget floors) raise the cost of each of those three independently. They do not eliminate the risk; they make it visible.

Capture economics

A serious objection: by consolidating accountability machinery into three named offices — the Ethics Commissioner, the Auditor General, and the Information and Privacy Commissioner — the bills create a smaller, more legible target than today's diffuse landscape of accountability friction. A determined captor today has to neutralize many uncoordinated frictions: the press, parliamentary committees, the courts, FOIP applicants, civil society, procurement law, the existing officers of the legislature. The bills propose to consolidate substantial accountability work into three statutory offices whose appointment, term, removal, and budget are governed by named provisions. The supermajority threshold is the captor's checklist, not their wall.

The objection is real, and the brief should not let the supermajority do rhetorical work the analysis hasn't done. The honest framing is that the bills are a bet, with a cost on each side. Today's diffuse landscape is harder to capture in any single move, and partially captured already — newsroom contraction has thinned investigative coverage, parliamentary committees have been thinned by rotation and partisan capture, FOIP timelines have lengthened, civil-society organizations have been thinned by funding pressure. Diffuse friction has degraded faster than concentrated friction would. The bet is that three hardened offices, individually capturable but each requiring visible, multi-step capture in plain sight, raise the cost of subversion above the floor at which capture happens quietly today.

That bet is contestable. Whether three hardened offices are actually harder to capture than a federation of weakening uncoordinated frictions depends on the rate of decay in each, the rate at which a captor can move on each, and the visibility of each move. The brief takes the bet and names it. A reader who thinks the bet is wrong has a coherent position; the brief should not pretend otherwise. The structural protections (supermajority appointment, two-thirds removal, eligibility bars, randomness beacon, court confirmation, cooperation register, AG communications log, indexed budget floor) are the components of the bet. They survive or fail together.

What it costs

The combined regime costs an estimated **$5 million per year at steady state**, achieved by year three rather than the usual year five — the timetable is designed to be operationally complete within a single four-year legislative mandate. Royal Assent in year one, most provisions in force at month six, the first Enforcement Equity Report at month twelve, comprehensive coverage of all designated regulatory bodies by month thirty-six. A government that tables this in its first session sees the regime fully running before the next election, not after it.

Year-one capital is approximately $1.7 million for the technology build — meaning the one-time cost of the ISC registry (the system that holds the disclosure of who actually owns each contracting entity), the cross-reference engine (which checks that registry against political contributions), the identity-consistency platform, and the Tier 0 automated audit system. Year-one operating spending is approximately $1.5 million during partial-year operations. The drafter's allocation across offices: roughly 18 FTE — full-time-equivalent positions, meaning either 18 full-time staff or some equivalent mix of part-time — at the Ethics Commissioner office; 6 FTE at the Auditor General office for the Enforcement Equity Report; 4 FTE at the Information and Privacy Commissioner for documentation standards and audit; plus shared technology operations. About 28 new accountability staff in total across three offices — a small body of work in absolute terms, larger than any single Alberta oversight office's recent expansion. Per capita the regime sits modestly higher than peer Canadian provincial oversight regimes — a function of broader scope rather than higher unit costs.

Five million dollars per year is roughly one one-hundredth of one percent of the provincial budget. Each of the three Part I cases ran ten to twenty times the regime's annual operating cost. Whether the regime would have prevented any of them is a counterfactual no accounting can resolve. What the design does claim is more modest: that decisions of this size would face contemporaneous scrutiny at the moment they were made — duty to document for the DynaLIFE oral-briefing arc, contemporaneous reasoning for the Tylenol emergency procurement, structural-choice disclosure for the CEC corporate vehicle. The bills make the moment of decision visible. They do not predict the outcome.

The structural claim is more modest: a regime of this kind creates conditions under which decisions of this size face scrutiny at the point they are made, rather than years later through buybacks, leaked documents, and Auditor General reports. Some treat the cost as a deductible — a predictable annual premium against unpredictable exposure to the kind of events Part I describes. Whether that's good value is a judgment for the reader.

The $5 million is the drafter's estimate, not a Treasury Board validation. Treasury Board validation is one of the items below.

What hasn't been done yet

Four items, each before tabling.

Constitutional opinion. The three provisions identified above need a pre-tabling opinion from administrative law counsel, addressing the *Vaid* parliamentary privilege framework, *Wigglesworth*[31] / *Guindon*[32] on administrative penalty, *Harper*[33] on §2(b) and political-contribution disclosure, and the structural-constitution questions raised by giving an officer of the legislature regulation-making authority.

The §22 penalty regime needs its own §11(d) analysis, and I should have run it in the body of the brief rather than gesturing at it. *Guindon* (2015 SCC 41) sets the threshold question as whether a proceeding is "by its very nature criminal" or imposes a "true penal consequence." The asset-based-enhancement penalty under §22 is calibrated to the value of the conduct it sanctions, can run into the millions for

senior actors, and is publicly attributed by Certificate; counsel will need to opine on whether that combination crosses the *Guindon* threshold and pulls the regime out of regulatory characterization. If it does, *Wigglesworth* requires the full procedural protections of §11 of the *Charter* — including, at minimum, presumption of innocence, proof beyond reasonable doubt on contested findings, and protection against self-incrimination at the investigative stage. The §22(5) court-confirmation route gives a Member access to a court before collection on large penalties; it does not, on its own, supply §11 procedural protections at the Commissioner stage where the determination is actually made, and it may not satisfy *Wigglesworth* if the threshold is crossed. Counsel should opine specifically on §22(1) through (5), §22(6) on the asset-based enhancement, the §23 publication regime as it interacts with reputation as penalty, and the burden allocation between Commissioner and respondent under §26.

Indigenous co-development. I drafted §21A without formal consultation. The carve-out is a placeholder. Legislation affecting Indigenous peoples has to be co-developed with First Nations governments, Métis settlements, and the Métis Nation of Alberta. I want to be precise about why, because the doctrinal point is narrower than I first wrote it. *Mikisew Cree* (2018 SCC 40)[5] held that the *Haida Nation*[37] duty to consult does not attach to the legislative process itself — Cabinet's development of bills sits inside parliamentary sovereignty, and the courts will not police it through the consultation doctrine. What survived in *Mikisew* is the honour of the Crown, which the plurality treated as a continuing principle that conditions how the Crown legislates even where the strict procedural duty does not. *Haida* still governs once the resulting statute is applied to a specific Crown action affecting an asserted right; *Mikisew* simply removes the courthouse door at the front end. So the legal floor for a bill of this kind is not enforceable consultation. It is honour-of-the-Crown conduct by the Crown that drafts and tables it, and that obligation, properly observed, makes co-development with the Treaty 6, 7, and 8 First Nations, the Métis Nation of Alberta, and the Métis Settlements General Council a precondition to tabling whether the courts would order it or not. I did not have access to do that work. Anyone moving the bill forward must do it.

A predicted critique, offered without claiming to substitute for the consultation it cannot replace: Indigenous governments and scholars are likely to identify several structural problems with §21A as drafted. First, the section is settler-drafted legislation defining the scope of "Indigenous internal governance" — the act of so defining is itself an exercise of Crown authority over a sphere where the Crown's authority is contested at the level of inherent jurisdiction. Second, the section preserves section 35 rights defensively ("shall not be interpreted so as to limit") rather than affirming them in the standard the *United Nations Declaration on the Rights of Indigenous Peoples* now sets — free, prior, and informed consent rather than consultation in good faith. Third, the materiality threshold for "Indigenous-owned entities" is set by regulation under §28(4), placing the trigger for consultation in the hands of the Lieutenant Governor in Council; co-development should set that threshold, not the executive. Fourth, the *Crown-corp end-run* framing assumes a clean line between Crown and private corporations that does not match how many First Nations and Métis Settlements operate — economic-development corporations performing what are functionally governance roles. Fifth, the regime's

enforcement architecture (Ethics Commissioner, Auditor General, Information and Privacy Commissioner) carries no Indigenous representation; cross-jurisdictional questions are decided entirely within Crown structures.

These critiques are visible in the recent scholarship and in the briefs Indigenous governments have filed in comparable provincial legislative processes. The bill is structured to remain open to whatever co-development produces — the carve-out, the consultation requirement, and the §28(4) regulation-making authority can each absorb substantial revision without restructuring. Naming the critiques here is a starting point, not a substitute. The work itself is a precondition to tabling, and it has not been done.

Independent fiscal validation. The $5 million figure is consistent with peer Canadian oversight regimes on a per-capita basis, slightly higher because of broader scope. It needs Treasury Board analysis or equivalent.

Legislative drafting review. Section numbers referencing existing Alberta statutes need a legislative drafter's verification. Internal consistency across the two bills needs another pass by someone trained in legislative drafting craft. This brief is one citizen's serious attempt, not the equivalent of a legislative counsel's office product.

On Indigenous engagement

What follows is a settler citizen's perspective on the interface between this drafted regime and the governance systems of Indigenous peoples in Alberta. It is not Indigenous perspective. It cannot be. The drafter is a settler, and the document is the document of a settler.

The two systems the bill operates between are not symmetrical, and pretending otherwise would do a disservice to both. Crown authority traces its lineage to a tradition of divine-right monarchy — the Crown's authority descends, historically, from a Christian-monarchical source, mediated now through constitutional convention but rooted in a claim about a source of legitimate rule that lies outside any human community. Indigenous governance traces a different lineage. It rises from relationships with the land, with kinship, with the living and the not-yet-living and those who came before. It is grounded in particular places and waters, and in treaties — including treaties that, on the Indigenous reading of them, were nation-to-nation agreements between sovereigns, not instruments of subordination.

The bill does not resolve which of these traditions is correct. That question exists at a level where legislation does not reach. What the bill does is identify the *interface* — the operational seam where the Crown's accountability machinery encounters Indigenous governance — and try to draw the seam in a way that is honest about the asymmetry, gives Indigenous governments operational space the bill should not displace, and leaves the deeper questions to the people whose questions they are.

In recognition that this material is structurally distinct from the procedural provisions that bind everyone else under the Act, §21A has been elevated to its own Part of Bill 1 — Part 8 — Indigenous Engagement at the Interface — with its own commencement gate under §32(3.1). The substantive engagement subsections cannot come into force until the Minister tables in the Assembly an engagement report describing the work done, with Treaty 6, Treaty 7, Treaty 8, the Métis Nation of Alberta, and the Métis Settlements General Council. The protective and definitional subsections come into force on Royal Assent so that the exemption for internal Indigenous governance is operative immediately.

What the package has tried to resolve preemptively, in the drafter's settler capacity, is the following.

The definition of "Indigenous government" in §21A(1) is now framed as a Crown-internal reference applicable at the interface. The Crown needs some word for the body whose internal governance the Act exempts and with whom the Commissioner engages. That word is unavoidable in a Crown enactment. The bill makes plain that the word does not, and is not intended to, define or characterize what an Indigenous government is in any inherent or constitutional sense. Indigenous governance derives from sources independent of and prior to the Crown.

The engagement standard under §21A(3) needs to be calibrated more carefully than the bill as drafted has it. The legal floor under *Mikisew Cree* is consultation, accommodating where appropriate; it is not consent. Free, prior, and informed consent is the UNDRIP standard, and federal UNDA (SC 2021, c 14)[36] is implementation legislation that obliges the federal Crown to make federal law consistent with the Declaration over time. UNDA does not have direct effect in Alberta, and Alberta has not enacted parallel implementing legislation. So a provincial statute that asserts FPIC as a binding standard up front is not codifying existing law. It is making a deliberate aspirational choice to operate above the legal floor, and the drafter — a settler, without consultation — is not the right person to make that choice unilaterally. The honest version of §21A(3) is honour-of-the-Crown conduct as the binding floor, with a statutory commitment to a co-development path toward FPIC, the path itself to be defined with the Treaty 6, 7, and 8 First Nations, the Métis Nation of Alberta, and the Métis Settlements General Council. The Indigenous Accountability Council under §21A(8) is the mechanism through which that path could be set; the §32(3.1) commencement gate is where it would land. Whether FPIC ends up the operating standard is for Indigenous governments to decide, not for me to assert in advance of the conversation.

§21A(5) is now an affirmative interpretation rule, not a defensive non-derogation clause. The Act is to be interpreted in a manner consistent with UNDRIP, with section 35, and with treaty rights — including treaty rights as recorded in oral tradition. Where the operation of any provision is uncertain in its application to a matter affecting Indigenous peoples, the interpretation that better gives effect to those rights prevails.

§21A(7) addresses the dual-character entity problem. Many First Nations and Métis Settlements operate economic-development corporations that the Crown's corporate logic categorizes as private companies but that the Indigenous government understands as governance instruments — extensions of the nation's authority rather than private actors. The bill now recognizes this. Where an Indigenous government identifies an entity as an Indigenous governance instrument, the natural-person ISC

disclosure under §15 does not apply; the Indigenous government identifies itself as the principal. Communications by elected officers of the Indigenous government on behalf of the nation, on matters affecting the nation, are not lobbying within §3. They are nation-to-nation diplomacy, and the bill should not pretend otherwise.

§21A(8) establishes an Indigenous Accountability Council with representatives selected by Treaty 6 First Nations, Treaty 7 First Nations, Treaty 8 First Nations of Alberta, the Métis Nation of Alberta, and the Métis Settlements General Council. The Council has statutory rights of consultation on matters affecting Indigenous governments and on regulations under §28(4A); its minority positions are tabled in the Assembly alongside Commissioner reports; its budget sits in main estimates as a separate line item, with the §24(6) budget-floor protections applied. The Council does not substitute for the Crown's separate constitutional and treaty-based obligations. It operates at the operational interface, not above it.

§28(4A) requires that any regulation defining the materiality threshold for Indigenous-owned entities, the form for identifying Indigenous governance instruments, or any other matter primarily affecting Indigenous governments, cannot come into force without a co-development report tabled in the Assembly. The threshold is no longer a matter of executive discretion under the Lieutenant Governor in Council. It is a matter of co-development, with Indigenous governance bodies named.

§32 of Bill 1 stages the §21A engagement provisions so they cannot come into force until the Minister tables in the Assembly an Indigenous engagement report. The report must describe the engagement done, the matters on which agreement was reached and the matters on which it was not, and any minority positions recorded during the engagement. Until the report is tabled, the Commissioner conducts engagement on a basis the Commissioner considers consistent with §21A(3), with the engagement record subject to revision once the §21A provisions are operational. The §21A definitional and protective subsections — (1), (1.1), (2), and (6) — come into force on the ordinary schedule, on the rationale that they protect Indigenous governance from the operation of this Act and do not impose new obligations on Indigenous governments.

These are the resolutions a settler drafter can attempt in good faith from a settler vantage. They are not a substitute for what only Indigenous engagement can determine.

What the drafter cannot do, and what Indigenous feedback alone can decide: whether the §21A line between exempt internal governance and covered contracting is drawn in the right place; whether the §21A(7) carve-out for Indigenous governance instruments is correctly drawn; whether the §21A(8) Council has the right composition, authorities, and procedure-of-constitution; whether the FPIC commitment is operationally workable as recalibrated; whether the §32 staging gives Indigenous governments enough time and the right framing; whether the bill should make space for Indigenous accountability traditions as parallel mechanisms or stay clear of them entirely; whether the audit, retention, and publication regime under §27, §29A, and §15(2A) honours Indigenous data sovereignty (OCAP — Ownership, Control, Access, and Possession of First Nations data); and the questions the drafter has not yet thought to ask. The bill is structured to absorb the answers. The drafter cannot supply them.

The package's request is not for endorsement. It is for engagement, in whatever form the participating Indigenous governance bodies prefer. The drafter has tried to design the bill so that what engagement returns can be folded back into the package without restructuring it. The carve-outs, the consultation standard, the Indigenous Accountability Council, the §28(4A) co-development gate, and the §32 staging can each absorb substantial revision.

The deeper claim of the bill is that accountability is a condition of legitimate government, not a constraint on it. That claim, applied to the drafter, requires that the package not be tabled — by any party — until the engagement contemplated in §32 has been done in substance, not in form. A bill that defines the interface between Crown and Indigenous governance without Indigenous engagement on the definition is a bill that contradicts itself. This package cannot.

VII

PART VII

The Invitation ¶

Three structural failures, named: the **oral-briefing loophole**, the **no-paper emergency**, the **Crown-corp end-run**. Two bills, drafted to make the moment of each kind of decision visible, regardless of which party is in office. Roughly five million dollars per year — one one-hundredth of one percent of the budget — to make decisions of the size in Part I face contemporaneous scrutiny.

If something in the package is worth supporting, the support has to be public and specific. *I want this provision because of these reasons.* General endorsement is worth less than a particular sentence put in front of a particular MLA.

If none of it is worth supporting, that is a position worth taking publicly. A no with reasoning beats a no without.

If you have an MLA, ask them, of any party, whether they would support this. Get an answer on the record. A no should come with a specific objection, not a general dismissal. The response is information.

The package isn't finished. Constitutional review, Indigenous co-development, fiscal validation, legislative drafting review: each named in Part VI. Several require external work I cannot do alone.

The bills are released under Creative Commons Attribution-ShareAlike 4.0. Any party, any advocacy group, any legislative drafter, any elected official can use them. Attribution and same-licence are the only conditions.

A draft email to your MLA

If you would like to ask your MLA about this directly and don't know where to start, here is a draft. Replace the bracketed parts and send. If you change nothing else, you have asked the question.

> Dear [MLA's name],
>
> I'm a constituent in [your riding]. Would you support legislation along the lines of the Honest Government Act and the Open Books Act — drafted by a private citizen, released under Creative Commons, designed to apply regardless of which party is in government? The package is at [URL].
>
> Three specific provisions I'd like your view on:
>
> 1. A duty to document decisions subject to disclosure, so the record exists at the time the decision is made (Bill 1, §14A).
> 2. A Beneficiary Disclosure Statement for legislation that benefits a small number of identifiable parties (Bill 2, §3).
> 3. An annual Auditor General report on whether enforcement reaches similarly-situated parties similarly (Bill 2, §7).
>
> A yes, a no with a reason, or a general dismissal — each tells me something. I'd appreciate a reply on the record.
>
> Thank you.
>
> [Your name]

The bills were drafted to be used.

Sources

The numbers, cases, and statutory references in this brief are drawn from the following.

Part I. Office of the Auditor General of Alberta, *An Examination of Community Laboratory Services (Contract with DynaLIFE)* (November 19, 2025); reporting on the 2022 children's acetaminophen procurement in *The Globe and Mail* and CBC News (2023–2025); CBC News, "Incorporation of Alberta's energy war room means much of its operations remain secret" (October 4, 2019); other reporting on the Canadian Energy Centre in *The Globe and Mail*, CBC News, and *Edmonton Journal*, 2019–2024; Public Accounts of Alberta, fiscal years 2021–22 through 2024–25.

Part II. *Conflicts of Interest Act* (federal), RSC 1985, c C-27.5; *Lobbying Act*, RSC 1985, c 44 (4th Supp.); *Public Servants Disclosure Protection Act*, SC 2005, c 46; *Conflicts of Interest Act* (Alberta), RSA 2000, c C-23; *Lobbyists Act* (Alberta), SA 2007, c L-20.5; *Public Interest Disclosure (Whistleblower Protection) Act* (Alberta), SA 2012, c P-39.5; House of Commons Standing Committee on Access to Information, Privacy and Ethics, statutory review reports of the federal lobbying and whistleblower regimes.

Part III. *R. v. Wigglesworth*, [1987] 2 SCR 541; *Guindon v. Canada*, 2015 SCC 41; *Canada (House of Commons) v. Vaid*, 2005 SCC 30; *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73; *Harper v. Canada (Attorney General)*, 2004 SCC 33; *United Nations Declaration on the Rights of Indigenous Peoples Act* (federal), SC 2021, c 14.

Part IV. Alberta *Lobbyists Act* registration data and Office of the Ethics Commissioner annual reports; National Institute of Standards and Technology, *Randomness Beacon Project* (csrc.nist.gov/projects/interoperable-randomness-beacons); *McIver v. Alberta (Ethics Commissioner)*, 2018 ABQB 240; *McIver v. Alberta (Ethics Commissioner)*, 2017 ABQB 695 (Speaker added as respondent on the procedural application).

Part V. *Financial Administration Act* (Alberta), RSA 2000, c F-12; *Auditor General Act* (Alberta), RSA 2000, c A-46; *Business Corporations Act* (BC), RSBC 2002, c 57, as amended by the *Land Owner Transparency Act* and corporate-transparency reforms (the source for ISC drafting language); UK *Lobbying Act 2014*; House of Commons Standing Committee on Access to Information, Privacy and Ethics studies on access reform.

Part VI. Hungarian Government Decree No. 308/2020 (cited as a comparative example of legislative capture); U.S. state-level dismantling of independent ethics offices, including the Wisconsin Government Accountability Board reorganization (2015) and the New York Joint Commission on Public Ethics restructuring (2022); peer Canadian provincial Commissioner office annual reports for FTE benchmarks.

Part VII. This brief.

The provisions referenced in the bills draw on existing statutory drafting in Alberta and elsewhere. Where this brief presents an innovation specific to the package — the ISC plus EFCDA cross-reference, the Beneficiary Disclosure Statement at First Reading, the Enforcement Equity Report, the publicly verifiable randomness beacon for audit selection — that is the drafter's own work, released under the same licence as the bills.

The estimates and analysis throughout are the drafter's own and have not been independently validated. Treasury Board fiscal validation, constitutional opinion, Indigenous co-development, and legislative drafting review are each named in Part VI as preconditions to tabling.

About the drafter

I am Will Conner. I am a fourth-year Bachelor of Computer Information Systems student at Mount Royal University in Calgary, where I have taken courses in business law, advanced business law, Indigenous leadership, systems thinking, and storytelling. I have thirty years of professional experience in

information technology — I started fixing computers as a kid and have been paid for that work since age seventeen — and I have worked across health care, social work, construction, and small business. I have drafted bylaws for non-profit organizations, sat on non-profit boards, co-founded a handful, and developed policy for non-profits and for the small businesses I have owned.

I am not a lawyer, a member of any political party, or an employee of any organization that lobbies, contracts with, or receives funding from the Government of Alberta. I have no commercial, professional, or political interest in the outcome of this package, beyond the interest of any other Albertan in the province being well-governed.

The package was drafted in personal time, on my own equipment, using publicly available legal databases, my own analysis, and a substantial amount of generative-AI-assisted research and drafting. The *Sources* list above names the cases and statutes I consulted. The structural-design choices, the failure-mode analysis, and the three innovations specific to the package — the ISC and contribution cross-reference, the Beneficiary Disclosure Statement, and the Enforcement Equity Report — are my own.

I do not have the standing or expertise to do the constitutional, fiscal, or Indigenous-co-development work that has to precede tabling. I have tried to be honest about what I have not done. The package is released under Creative Commons Attribution-ShareAlike 4.0 because the only thing I want from it is that it become useful to someone in a position to do that work.

Contact: github.com/Ixby/accountability-acts-alberta — issues, pull requests, and discussions are open.

Glossary

Beneficial owner. The natural person who ultimately controls or benefits from an entity, as distinct from the legal owner shown on a corporate registry. The bills require disclosure of beneficial owners (also called *individuals with significant control*, or ISCs) so that nominee structures cannot conceal who is actually behind a contracting party.

Carve-out. A statutory exception. Section 21A in Bill 1 carves out Indigenous internal governance from the Act's coverage; that means the Act does not apply to those matters.

Certificate of Malfeasance. The most serious of the three Commissioner findings, used for persistent or severe conduct. A Certificate against a sitting MLA triggers a sixty-sitting-day Assembly process to deal with it.

Compliance Order. The middle of the three Commissioner findings. A written order requiring specific corrective steps — returning a benefit, recusing from future decisions, changing a practice.

EFCDA. The *Election Finances and Contributions Disclosure Act*, RSA 2000, c E-2. Alberta's law on political donations and contribution disclosure.

FOIP. The *Freedom of Information and Protection of Privacy Act*, RSA 2000, c F-25. Alberta's access-to-information law. The Canadian Energy Centre was structured to operate outside FOIP.

FTE. Full-time equivalent. Either a full-time position or a combination of part-time positions adding up to one full-time. The combined regime is estimated at 28 FTE across three offices.

ISC. Individual with Significant Control. The natural person behind a contracting entity. See *beneficial owner*.

MADI. MyAlberta Digital Identity. The provincial identity-verification platform. Used in §15A as the primary identity check for ISC disclosures.

Notwithstanding clause. Section 33 of the *Canadian Charter of Rights and Freedoms*. Allows a legislature to insulate legislation from certain Charter rights for a renewable five-year period. The drafter's position is that the bills should not invoke it.

Order in Council. A decision of the Cabinet (Lieutenant Governor in Council). Many regulations and ministerial appointments are made by Order in Council.

PSDPA. *Public Servants Disclosure Protection Act*, the federal whistleblower statute (in force since 2007). Cited in this brief because the Public Sector Integrity Commissioner has tabled 18 case reports and made 9 Tribunal referrals between 2007 and 2024, with merit decisions in the single digits, illustrating how a regime designed for the right purpose can underperform in practice. The Commissioner has proposed reverse-onus reform; that reform has not been enacted.

Public Report of Findings. The first of the three Commissioner findings. The Commissioner publishes a finding that conduct contravenes the Act; the political process handles the rest.

Royal Assent. The point at which a bill becomes law in form. Most provisions of the bills come into force on Royal Assent or a fixed period after.

Section 35. Section 35 of the *Constitution Act, 1982*, recognizing existing Aboriginal and treaty rights of the Indigenous peoples of Canada.

Sitting day. A day on which the Legislative Assembly is actually meeting. Thirty sitting days spans roughly a single legislative session, not thirty calendar days.

UNDRIP. The *United Nations Declaration on the Rights of Indigenous Peoples*, implemented federally and in British Columbia. Sets a standard of free, prior, and informed consent for measures affecting Indigenous peoples.

FPIC. Free, prior, and informed consent. The standard set by UNDRIP for Crown engagement with Indigenous peoples on measures that affect them. The bills adopt FPIC as the engagement floor under §21A(3), notwithstanding that Alberta has not yet implemented UNDRIP.

UNDA. The *United Nations Declaration on the Rights of Indigenous Peoples Act* (federal), SC 2021, c 14, and the parallel *Declaration on the Rights of Indigenous Peoples Act* (BC), SBC 2019, c 44 — the implementing statutes that bring UNDRIP into Canadian law in those jurisdictions.

Indigenous Accountability Council. The standing body established under §21A(8) with representatives from Treaty 6, Treaty 7, Treaty 8, the Métis Nation of Alberta, and the Métis Settlements General Council, with statutory rights of consultation on matters affecting Indigenous governments and Indigenous governance instruments.

Indigenous governance instrument. Under §21A(7), an entity owned or controlled by one or more Indigenous governments and identified by them as an instrument of governance or economic self-determination — for example, an economic-development corporation. The bills do not require natural-person ISC disclosure for these entities; the Indigenous government is identified as the principal.

Common questions and objections

Won't this slow government down? The duty to document and the procurement-disclosure requirements add work to certain decisions. They do not add work to most. The marginal time cost on a major procurement is the time required to write reasons that should already exist; on a routine decision, none. If a decision cannot be made because writing it down would expose its reasoning, that is not the regime slowing government — that is the regime working.

Doesn't the federal regime do this already? The federal regime covers federal officials, federal contracts, federal lobbying. The province has its own jurisdiction, its own procurement, its own regulatory approvals. The DynaLIFE buyback, the Tylenol procurement, and the Canadian Energy Centre were all provincial decisions outside the federal regime's reach.

Why a Commissioner instead of expanding the Auditor General? The Auditor General audits financial administration and value-for-money. The Ethics Commissioner deals with conduct. The two functions differ in their evidentiary standards, their remedies, and their relationship to the Assembly. The bills use both: the Ethics Commissioner for individual conduct (Bill 1), the Auditor General for systemic enforcement equity (Bill 2). Combining them in one office would either dilute the audit function or politicize it.

This sounds like a partisan attack. The structural test the drafter applied to every provision is whether it survives being applied to a government the drafter likes. Random audit selection is not a tool a hostile Commissioner can aim. The good-faith defence and the obvious-corruption limit are symmetric. The cooperation register and the Auditor General's communications log catch ministerial pressure regardless of which party's Minister is applying it. The bills are designed to bind whoever wins.

Why doesn't this criminalize obvious corruption? Obvious corruption is already criminal under the *Criminal Code*: breach of trust, secret commissions, fraud. Police and Crown prosecutors handle that. The bills cover the much larger category of conduct that is improper but not criminal: failures of disclosure, conflicts of interest, decisions made in rooms with no paper. Criminal law is a poor tool for those.

Won't lawyers find loopholes? Some, probably. Most foreseeable ones have been written into the design with the loophole-finder in mind. The fifty-hour lobbying threshold became 20%-of-quarter-plus-role-test specifically because the fifty-hour test had a known loophole. The good-faith defence has five abuse-limits because each was a foreseeable abuse. Reviews at five and ten years are the mechanism for closing loopholes that emerge in practice.

Why the Creative Commons licence? Policy released under copyright can be cited but not adopted. Creative Commons Attribution-ShareAlike lets any party take the bills, change the parts they want changed, table them under their own name, and share-alike on the result. The licence removes the friction of adoption.

Who funded this? No one. The drafter is a private citizen with no organizational affiliation, no funding from any party or advocacy group, and no commercial interest. The cost of the work has been the drafter's time.

What stops a captured Commissioner from using this against opponents? The detailed answer is in Part VI. The short answer: the structural protections (verifiable random audit, court confirmation for large penalties against non-Members, the Auditor General and Information and Privacy Commissioner as parallel offices, the cooperation register) raise the cost of weaponization and make every step visible. Capture is possible. *Hidden* capture is much harder.

The bills give the Commissioner a lot of power. Who watches the watcher? Three things, working together. The Auditor General audits the Commissioner's office annually under §24. The Information and Privacy Commissioner enforces the privacy and retention provisions independently. The Assembly retains disallowance over the Commissioner's regulations under §28. None of these is sufficient on its own. Together they distribute the watching across institutions a single party would have to capture simultaneously.

Why these four cases? Aren't there others? There are. DynaLIFE, Tylenol, the CEC, and Bill 6 were chosen because they are recent, because the public record on each is reasonably complete, and because each illustrates a different *kind* of structural gap — records that didn't exist, emergency authority with no contemporaneous reasoning, a corporate vehicle outside ordinary disclosure law, and a bill tabled before its consultation. The bills are designed for the categories the cases reveal, not for the cases themselves. Three sit under UCP government, one under NDP government, by design.

Notes

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2. CBC News, "Incorporation of Alberta's energy war room means much of its operations remain secret," October 4, 2019. https://www.cbc.ca/news/canada/edmonton/canadian-energy-centre-freedom-of-information-rules-exemption-1.5317360 ↩

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4. Public Sector Integrity Commissioner, *Annual Reports* 2007–08 through 2023–24. https://psic-ispc.gc.ca/en/resources/corporate-publications ↩

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11. *Federal Accountability Act*, SC 2006, c 9; Royal Assent December 12, 2006. Amended the *Lobbyists Registration Act* and renamed it the *Lobbying Act*. Enacted in response to the Commission of Inquiry into the Sponsorship Program and Advertising Activities (Gomery Commission, 2005–06). https://laws-lois.justice.gc.ca/eng/acts/F-5.5/ ↩

12. *Public Servants Disclosure Protection Act*, SC 2005, c 46; in force April 15, 2007. https://laws-lois.justice.gc.ca/eng/acts/p-31.9/ ↩

13. *Alberta Accountability Act*, SA 2014, c 13 (Bill 2), Royal Assent December 11, 2014. Amended the *Conflicts of Interest Act*, the *Lobbyists Act*, and the *Public Service Act*; tabled in the fall sitting following Premier Redford's March 2014 resignation. CBC News, "Accountability act introduced by Alberta government," November 17, 2014. https://www.cbc.ca/news/canada/edmonton/accountability-act-introduced-by-alberta-government-1.2865061 ↩

14. *Public Interest Disclosure (Whistleblower Protection) Act*, SA 2012, c P-39.5; in force June 1, 2013 with Alta Reg 71/2013 and the establishment of the Office of the Public Interest Commissioner. https://www.canlii.org/en/ab/laws/stat/sa-2012-c-p-39.5/latest/sa-2012-c-p-39.5.html ↩

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brief's "significant part of duties" reflects the statutory language; the operative threshold under the current bulletin is materially lower. https://lobbycanada.gc.ca/en/rules/the-lobbying-act/advice-and-interpretation-lobbying-act/significant-part-of-duties-registration-threshold-for-organizations-and-corporations ↩

21. *Lobbyists Transparency Act*, SBC 2018, c 54; in force May 4, 2020. Replaced the prior 100-hour threshold with a "significant part of duties" standard. https://www.bclaws.gov.bc.ca/civix/document/id/complete/statreg/18054 ↩

22. *Lobbyists Registration Act, 1998*, SO 1998, c 27, Sched. Section 5(1) requires registration where in-house lobbyists, individually or collectively, devote at least 50 hours per year to lobbying activity. https://www.ontario.ca/laws/statute/98l27 ↩

23. *Land Owner Transparency Act*, SBC 2019, c 23; registry launched November 30, 2020 and opened to public search April 30, 2021. Creates a publicly searchable registry of beneficial interests in B.C. land; corporate beneficial ownership for non-land assets is recorded in the *Business Corporations Act* transparency register, which is not publicly accessible. https://www.bclaws.gov.bc.ca/civix/document/id/complete/statreg/19023 ↩

24. *Lobbyists Act*, SA 2007, c L-20.5. The original 2007 Act set the in-house registration threshold at 100 hours annually; the *Lobbyists Amendment Act, 2018* (Bill 11) lowered the threshold to 50 hours annually inclusive of preparation time. https://www.canlii.org/en/ab/laws/stat/sa-2007-c-l-20.5/latest/sa-2007-c-l-20.5.html ↩

25. *Canada (House of Commons) v. Vaid*, 2005 SCC 30, [2005] 1 SCR 667. Sets the doctrine-of-necessity test for parliamentary privilege. https://www.canlii.org/en/ca/scc/doc/2005/2005scc30/2005scc30.html ↩

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28. *Ontario Human Rights Commission v. Simpsons-Sears Ltd.*, [1985] 2 SCR 536, 1985 CanLII 18 (SCC). Established the burden-shifting framework for adverse-effect discrimination. https://www.canlii.org/en/ca/scc/doc/1985/1985canlii18/1985canlii18.html ↩

29. *Moore v. British Columbia (Education)*, 2012 SCC 61, [2012] 3 SCR 360. Refined the prima facie test. https://www.canlii.org/en/ca/scc/doc/2012/2012scc61/2012scc61.html ↩

30. *Trudeau II Report* at paras. 51–55 and 304–315. The partial cabinet-confidence waiver issued by Order in Council on February 25, 2019 covered the Attorney General and persons who participated directly in discussions with her about the SNC-Lavalin prosecution; nine witnesses were constrained from providing the Commissioner their full evidence as a result. https://ciec-ccie.parl.gc.ca/en/publications/Documents/InvestigationReports/Trudeau%20II%20Report.pdf ↩

31. *R. v. Wigglesworth*, [1987] 2 SCR 541, 1987 CanLII 41 (SCC). Established the two-branch test for the application of section 11 of the *Charter*: proceedings criminal by their very nature, or proceedings imposing a "true penal consequence." https://www.canlii.org/en/ca/scc/doc/1987/1987canlii41/1987canlii41.html ↩

32. *Guindon v. Canada*, 2015 SCC 41, [2015] 3 SCR 3. Confirmed the *Wigglesworth* framework and held that administrative monetary penalties under section 163.2 of the *Income Tax Act* are regulatory, not criminal, and do not engage section 11 of the *Charter*. https://www.canlii.org/en/ca/scc/doc/2015/2015scc41/2015scc41.html ↩

33. *Harper v. Canada (Attorney General)*, 2004 SCC 33, [2004] 1 SCR 827. Held that third-party election-spending limits in the *Canada Elections Act* infringe section 2(b) of the *Charter* but are saved under section 1 on electoral-fairness grounds. https://www.canlii.org/en/ca/scc/doc/2004/2004scc33/2004scc33.html ↩

34. 2015 Wisconsin Act 118, signed December 16, 2015 by Governor Scott Walker; dissolved the Wisconsin Government Accountability Board (effective June 30, 2016) and replaced it with two partisan-balance commissions: the Wisconsin Ethics Commission and the Wisconsin Elections Commission. https://docs.legis.wisconsin.gov/2015/related/acts/118 ↩

35. For documentation of the appointment-pattern referenced, see European Parliament, Committee on Civil Liberties, Justice and Home Affairs, *Sargentini Report* (2018); Cato Institute, *How Viktor Orban's Hungary Eroded the Rule of Law and Free Markets* (2024). https://www.cato.org/policy-analysis/how-viktor-orbans-hungary-eroded-rule-law-free-markets The brief's reference is to a structural pattern, not to a direct doctrinal analogue. ↩

36. *United Nations Declaration on the Rights of Indigenous Peoples Act*, SC 2021, c 14; in force June 21, 2021. Section 5 obliges the Government of Canada, in consultation and cooperation with Indigenous peoples, to take all measures necessary to ensure the laws of Canada are consistent with the *United Nations Declaration on the Rights of Indigenous Peoples*. The Act binds the federal Crown; Alberta has not enacted parallel implementing legislation. https://laws-lois.justice.gc.ca/eng/acts/u-2.2/ ↩

37. *Haida Nation v. British Columbia (Minister of Forests)*, 2004 SCC 73, [2004] 3 SCR 511. Established the Crown's duty to consult and, where appropriate, accommodate Aboriginal peoples whose claimed rights or title may be adversely affected by Crown conduct, grounded in the honour of the Crown. https://www.canlii.org/en/ca/scc/doc/2004/2004scc73/2004scc73.html ↩

Appendix A — Bill 1: The Honest Government Act

Full drafted text. Released under CC-BY-SA 4.0.

Preamble

WHEREAS the people of Alberta are entitled to government that is transparent in its decisions, accountable for its conduct, and free from undue influence;

WHEREAS public confidence in democratic institutions depends more on visible integrity than on severe enforcement, and the primary remedy for failures of public trust is sunshine — the obligation to disclose, to explain, and to answer to the Legislative Assembly;

WHEREAS oversight mechanisms serve the public interest only where they remain politically independent of the officials they oversee, and such independence is preserved by separating the power to investigate from the power to impose electoral or punitive consequences, and by introducing verifiable randomness into the selection of matters for proactive review;

WHEREAS a functioning accountability regime requires graduated responses proportionate to the conduct, with correction preferred to punishment, with consequences calibrated so the poor do not face ruin and the wealthy cannot purchase immunity, and with good-faith actors protected from penalty;

WHEREAS the consequences under this Act apply equally to natural persons and to entities, such that no form of legal organization provides insulation from accountability;

WHEREAS the administration of this Act must operate within realistic budgetary constraints, using risk-based triage, self-certification with audit, and cost recovery;

WHEREAS this Act is intended to fill gaps in existing accountability mechanisms rather than to replace or duplicate the functions of the courts, criminal justice authorities, the Chief Electoral Officer, or the Legislative Assembly;

WHEREAS accountability regimes must not impose disproportionate burden on volunteer civic participants, line public-service workers, small businesses, or non-profit organizations whose conduct does not implicate the corruption risks this Act is designed to address;

AND WHEREAS it is the intent of the Legislature that this Act be interpreted liberally in favour of transparency, moderately in the application of coercive measures, protectively of good-faith actors, proportionately to the capacity and role of those subject to it, and always subject to procedural fairness;

HIS MAJESTY, by and with the advice and consent of the Legislative Assembly of Alberta, enacts as follows:

Short Title

1. This Act may be cited as the *Honest Government Act*.

Part 1 — Interpretation

2. In this Act:

(a) "annual compensation" means, in relation to a natural person, all remuneration received by the person in the preceding calendar year from all sources attributable to the person's public office, employment, or professional activity, including salary, bonuses, director's fees, consulting fees, and pension entitlements.

(b) "annual revenue" means, in relation to an entity, the revenue of the entity from all sources attributable to operations in Alberta for the preceding fiscal year, as reported in audited financial statements or tax filings.

(c) "beneficial ownership" means ultimate ownership or control of an entity, asset, or transaction, whether held directly or indirectly through one or more entities, trusts, nominees, or arrangements.

(d) "Certificate of Malfeasance" means a Certificate issued by the Commissioner under §9.

(e) "closely-held entity" means a partnership, limited liability partnership, private corporation, or other entity in which the owners, shareholders, or partners are also the primary operators, and whose ownership is not publicly traded.

(f) "Commissioner" means the Ethics Commissioner appointed under the *Conflicts of Interest Act*, except where context requires reference to another officer of the Legislature.

(g) "Compliance Order" means a written order issued by the Commissioner under §8.

(h) "declined-but-substantiated violation" means conduct found by the Commissioner to constitute a violation of this Act but disposed of without formal penalty under §25(6) on cost-proportionality grounds.

(i) "disgorgement" means the return to the Crown or to an identified victim of any financial or material benefit obtained through conduct contrary to this Act or a statute within the Commissioner's jurisdiction.

(j) "entity" means a corporation, partnership, limited partnership, limited liability partnership, cooperative, society, trust, sole proprietorship, joint venture, or other legal person or association of persons, whether incorporated or unincorporated, and includes a non-profit organization.

(k) "journalist" means a person who contributes regularly and directly to the gathering, production, writing, or dissemination of information intended for public consumption through any medium, subject to editorial oversight or established journalistic standards.

(l) "law enforcement authority" means the Royal Canadian Mounted Police, a municipal police service, the Alberta Serious Incident Response Team, or any other police or investigative body with jurisdiction over the conduct in question.

(m) "net assets" means the value of a person's or entity's assets less liabilities, as declared under the *Conflicts of Interest Act*, reported in audited financial statements, or otherwise verified under this Act.

(n) "parliamentary session" has the meaning given under Alberta legislative convention.

(o) "person" means a natural person or an entity, except where context requires reference specifically to a natural person.

(p) "public agency" has the meaning given in the *Alberta Public Agencies Governance Act*.

(q) "Public Report of Findings" means a written report issued by the Commissioner under §7.

(r) "randomness beacon" means a publicly accessible source of verifiable random values, including the randomness beacon operated by the National Institute of Standards and Technology or an equivalent internationally recognized source.

(s) "related transactions" means transactions involving the same counterparty, the same beneficial owner, or entities under common control or common beneficial ownership as determined under §25(10), occurring within a 36-month period.

(t) "reprisal" means any measure taken against an employee that adversely affects the employee's employment or working conditions because the employee made a protected disclosure, cooperated with an investigation, or is reasonably believed by the employer to have done or to intend to do either. It includes dismissal, demotion, discipline, transfer, reassignment, reduction of hours, withholding of benefits or opportunities, and the creation of a hostile work environment.

(u) "senior official" means: (i) a Deputy Minister or Associate Deputy Minister; (ii) an Assistant Deputy Minister; (iii) a Chief of Staff or Principal Secretary to a Minister or the Premier; (iv) a senior political staff member reporting directly to a Minister or the Premier, holding a position designated by regulation; and (v) the head of a public agency.

(v) "significant part of duties" means, in relation to in-house lobbying, lobbying activities amounting to 20 percent or more of the employee's working time in any calendar quarter, except where the employer is a non-profit organization with annual revenue below the threshold prescribed by regulation, in which case the percentage threshold is as prescribed by regulation; or a position description, performance expectation, or regular reporting obligation that contemplates lobbying as a recurring function.

(w) "family member" means a spouse, common-law partner, or dependent child of the individual, and does not include adult children, parents, or siblings unless they are also an individual with significant control of the same entity.

Part 2 — Amendments to the *Lobbyists Act*, RSA 2000, c L-20.5

3. Section 1(1)(h) is amended:

(a) by striking out subclause (i) and substituting:

> "(i) any person, whether paid or unpaid, retained by a client to communicate with a public office holder on behalf of the client, regardless of time spent (a 'consultant lobbyist');"

(b) by striking out subclause (ii) and substituting:

> "(ii) any employee of an organization or entity for whom communication with a public office holder constitutes a significant part of duties, as defined in the *Honest Government Act* (an 'in-house lobbyist');"

(c) by adding:

> "(iii) For greater certainty, communications by individual citizens, volunteer advocates, and members of community organizations not retained or employed to lobby, whose activities do not meet the 'significant part of duties' test, are not captured by this Act."

4. Section 6 is amended by adding:

> **(4)** A designated office holder who engages in a prescribed communication with a lobbyist shall, within 10 business days, file a transparency return in the form required by the Registrar.
>
> **(5)** "Prescribed communication" means any communication relating to the development of a Bill, regulation, program, or the awarding of a contract or grant above the threshold prescribed by regulation.

5. The following is added after section 18:

> **18.1** No person shall receive a payment for lobbying that is in whole or in part contingent on the outcome of a lobbying activity.

Part 3 — The Escalation Framework, Oversight Officer Independence, and Amendments to the *Conflicts of Interest Act*, RSA 2000, c C-23 and the *Auditor General Act*, RSA 2000, c A-46

GENERAL PRINCIPLES AND TRIAGE AUTHORITY

6. In exercising the powers under this Part, the Commissioner shall:

(a) respect the principle that this Act complements and does not replace the work of the courts, criminal justice authorities, the Chief Electoral Officer, and the Legislative Assembly; where another institution is better positioned, prefer referral over administrative substitution;

(b) refer matters that may disclose criminal conduct to the appropriate law enforcement authority without prejudice to the Commissioner's own proceedings;

(c) reserve the Certificate of Malfeasance for conduct that is persistent, incurable, or of such severity that lesser measures would be inadequate;

(d) prefer correction to punishment where correction is possible and adequate;

(e) apply the least restrictive measure consistent with the conduct and the public interest;

(f) in every proceeding, consider whether disgorgement of quantified benefit under §7, §8, or §9 is warranted, and address disgorgement explicitly;

(g) prioritize investigation and enforcement based on materiality, public interest, and resource availability, and for that purpose may establish by published guideline a materiality threshold below which conduct is disposed of by note in the quarterly compliance report; dispose of related matters through consolidated public report; and, by regulation under §28(4), designate low-risk conduct categories for handling through standing compliance protocols rather than individual investigation; and

(h) where the exercise of any power under this Act pierces solicitor-client privilege, Cabinet confidence, parliamentary privilege, the privilege against self-incrimination, or accesses personal or financial information that the subject would not otherwise have disclosed, do so on the *surgical-and-accountable* principle: the access shall be limited to the least intrusive scope consistent with the purpose for which it is taken; logged in the privilege-and-privacy register established under §23(1A) with the date, the subject, the authority relied upon, the scope, and the purpose; subject to destruction under §25(9B), §27(6A), or §29A as soon as the purpose for which it was taken has been served; and reviewable under Part 9.

TIER 1 — PUBLIC REPORT OF FINDINGS

7(1) Where, following investigation with notice and opportunity to respond, the Commissioner finds that a Member, former Member, senior official, former senior official, or entity has engaged in conduct contrary to the *Conflicts of Interest Act* or another statute within the Commissioner's jurisdiction, and the conduct meets the materiality threshold, the Commissioner shall issue a Public Report of Findings.

(2) A Public Report of Findings shall identify the person; describe the conduct investigated; set out the factual findings and reasons; state whether the Commissioner is proceeding to Tier 2 or Tier 3 or closing the matter; inform the person of review rights under Part 9 and the good-faith defense under §26; and, where the conduct involves a quantifiable benefit, address disgorgement explicitly, stating the quantified value, the proposed recipient, and any enforcement recommendation.

(3) Conduct below the materiality threshold may be disposed of by note in the quarterly compliance report, identifying the person, describing the conduct, and giving reasons for disposition without formal report.

(4) The Commissioner shall table a Public Report of Findings forthwith in the Legislative Assembly, or deliver it to the Speaker for tabling on the first sitting day if the Assembly is not sitting, and shall publish it to the Commissioner's website.

TIER 2 — COMPLIANCE ORDER

8(1) Where conduct identified in a Public Report of Findings is correctable, the Commissioner may issue a Compliance Order directing specific corrective action within 60 to 90 days.

(2) Corrective action may include divestment of a conflicting interest; recusal from future decisions; disgorgement of the full quantified benefit, with less-than-full disgorgement requiring written reasons and, where the amount forgiven exceeds the threshold prescribed by regulation, Auditor General consultation with reasons published; correction of disclosure; in the case of an entity, governance, compliance, or monitoring reforms; or such other specific action as the Commissioner considers necessary.

(3) A Compliance Order shall be published in the quarterly compliance report.

(4) Upon timely and substantial compliance, the matter is closed and shall not proceed to Tier 3 on the same conduct, unless the conduct is later found more extensive, further similar conduct occurs within 24 months, or the person materially misrepresents compliance.

TIER 3 — CERTIFICATE OF MALFEASANCE

9(1) The Commissioner shall issue a Certificate of Malfeasance where a Compliance Order has not been complied with, or where the conduct is of such nature or severity that correction is not possible or inadequate, including conduct that, if substantiated, could constitute an offence under Canadian criminal law; intentional deception of the Commissioner or a public body; repeat conduct following a prior Public Report within 24 months; related transactions above the aggregate Tier 3 threshold prescribed by regulation; or single transactions above the Tier 3 threshold prescribed by regulation.

(2) A Certificate of Malfeasance shall identify the person; state the financial value and nature of the benefit; set out the findings and reasons for Tier 3 escalation; specify any disgorgement, repayment, restitution, or further sanction recommended, with reasons if less than full disgorgement is recommended; and inform the person of review rights and the good-faith defense.

(3) The Commissioner shall table a Certificate forthwith in the Legislative Assembly, or deliver it to the Speaker for tabling on the first sitting day.

POST-EMPLOYMENT RESTRICTIONS

10. Section 29 of the *Conflicts of Interest Act* is amended:

(a) in subsection (1), by striking out "12 months" and substituting "18 months";

(b) by adding:

> **(3)** No former Minister or senior official shall, for 18 months following termination of service, accept employment with or a board seat at a private-sector entity that received a discretionary provincial contract or grant above the threshold prescribed by regulation during the official's tenure, where the official had direct or indirect decision-making authority over the contract or grant.
>
> **(3.1)** "Private-sector entity" includes any entity under common control or common beneficial ownership (as determined under §25(10) of the *Honest Government Act*) with a recipient.
>
> **(4)** Subsection (3) does not apply to arms-length public entities (including Alberta Health Services, public post-secondary institutions, school boards, and municipalities); non-profit organizations receiving operational funding under an established program of general application, where the former official had no decision-making role regarding the specific grant; or employment with no connection to the contract or grant in question.
>
> **(5)** Breach results in repayment of transition allowances or severance, in an amount proportionate to the remaining restriction period, subject to review under Part 9.

11. Section 31 is amended by adding:

> **(3)** The Commissioner shall not grant a waiver for any restriction related to procurement, appointments to public agencies, or financial grants above the threshold prescribed by regulation.

11A. Section 15 of the *Conflicts of Interest Act* is amended:

(a) by striking out subsection (1) and substituting:

> **(1)** The Ethics Commissioner shall be appointed by Order in Council on the recommendation of the Lieutenant Governor in Council, following:
>
> (i) an open, merit-based competition administered by the Select Standing Committee on Legislative Offices, with the position publicly advertised and the selection criteria publicly posted before the competition opens;
>
> (ii) recommendation of a candidate by the Committee, passed by not fewer than two-thirds of Committee members present and voting, with written reasons for the recommendation published; and
>
> (iii) approval by resolution of the Legislative Assembly, passed by not fewer than two-thirds of all Members present and voting.

(b) by striking out subsection (2) and substituting:

> **(2)** The Ethics Commissioner holds office for a term of 7 years and is not eligible for reappointment.

(c) by adding after subsection (2):

> **(2.1)** No person is eligible to be appointed Ethics Commissioner who has, within 7 years immediately preceding the appointment, held elected office in any federal, provincial, or municipal jurisdiction in Canada; or held executive office — including the positions of president, vice-president, leader, deputy leader, executive director, campaign director, or equivalent — in any registered political party.
>
> **(2.2)** The Select Standing Committee on Legislative Offices shall publish the selection criteria, the names of all applicants who consent to public identification, and a summary of the Committee's reasons for its recommendation, to the extent consistent with applicant privacy and the integrity of the selection process.

(d) by striking out subsection (3) and substituting:

> **(3)** The Ethics Commissioner may be removed from office for cause only, on:
>
> (i) a report of the Select Standing Committee on Legislative Offices recommending removal, with written reasons; and
>
> (ii) a resolution of the Legislative Assembly passed by not fewer than two-thirds of all Members present and voting.

(e) by adding after subsection (3):

> **(4)** Where the office of Ethics Commissioner is or becomes vacant and no appointment has been made under subsection (1) within 120 days of the vacancy, the Chief Justice of the Court of King's Bench of Alberta shall appoint a qualified individual to serve as acting Ethics Commissioner. The acting Commissioner serves until an appointment is made under subsection (1) and has all the powers and duties of the Ethics Commissioner during that period. An individual appointed under this subsection must meet the eligibility requirements in subsection (2.1). The Chief Justice shall publish written reasons for the appointment. Service as acting Commissioner does not count against the term limit in subsection (2) and does not affect eligibility for formal appointment under subsection (1).

11B. The provisions of the *Auditor General Act*, RSA 2000, c A-46, governing the appointment, eligibility, term, and removal of the Auditor General are amended as follows [specific section numbers require verification against current statutory text before tabling]:

(a) The Auditor General shall be appointed by Order in Council on the recommendation of the Lieutenant Governor in Council, following:

> (i) an open, merit-based competition administered by the Standing Committee on Public Accounts, with the position publicly advertised and the selection criteria publicly posted before the competition opens;
>
> (ii) recommendation of a candidate by the Committee, passed by not fewer than two-thirds of Committee members present and voting, with written reasons for the recommendation published; and
>
> (iii) approval by resolution of the Legislative Assembly, passed by not fewer than two-thirds of all Members present and voting.

(b) No person is eligible to be appointed Auditor General who has, within 7 years immediately preceding the appointment, held elected office in any federal, provincial, or municipal jurisdiction in Canada; or held executive office — including the positions of president, vice-president, leader, deputy leader, executive director, campaign director, or equivalent — in any registered political party. The Standing Committee on Public Accounts shall publish the selection criteria, the names of all applicants who consent to public identification, and a summary of the Committee's reasons for its recommendation, to the extent consistent with applicant privacy and the integrity of the selection process.

(c) The Auditor General may be removed from office for cause only, on:

> (i) a report of the Standing Committee on Public Accounts recommending removal, with written reasons; and
>
> (ii) a resolution of the Legislative Assembly passed by not fewer than two-thirds of all Members present and voting.

(d) Where the office of Auditor General is or becomes vacant and no appointment has been made under paragraph (a) within 120 days of the vacancy, the Chief Justice of the Court of King's Bench of Alberta shall appoint a qualified individual to serve as acting Auditor General. The acting Auditor General serves until an appointment is made under paragraph (a) and has all the powers and duties of the Auditor General during that period. An individual appointed under this paragraph must meet the eligibility requirements in paragraph (b). The Chief Justice shall publish written reasons for the appointment. Service as acting Auditor General does not count against any statutory term limit and does not affect eligibility for formal appointment under paragraph (a).

ADVANCE RULINGS

11C(1) Request for advance ruling. A person subject to this Act, or an official considering conduct that may engage this Act, may request an advance ruling from the Commissioner. The request shall be in writing and shall:

(a) describe the conduct contemplated and the parties involved with sufficient particularity to enable the Commissioner to assess whether any provision of this Act would be engaged;

(b) identify the provisions of this Act that the requestor believes may be engaged, and any other provisions of accountability legislation the requestor considers relevant;

(c) disclose every material fact the requestor reasonably believes the Commissioner would consider relevant to the determination, including any facts adverse to the requestor's preferred outcome;

(d) attest, on signature of the requestor, that all material facts have been disclosed and that the requestor will conduct the contemplated conduct in accordance with the request as filed and any conditions the Commissioner attaches.

(2) Decision. The Commissioner shall, within 30 business days of a complete request, issue one of:

(a) an approval, with or without conditions;

(b) a declination, with written reasons;

(c) a request for further information, in which case subsection (2) re-runs from the date the further information is received.

The 30-business-day period may be extended once, by published notice, where the matter raises a question of first impression or requires consultation with the Auditor General or the Information and Privacy Commissioner.

(3) Effect of approval. An approval under subsection (2)(a) is a complete defense to subsequent proceedings under this Act in respect of the same conduct on the same facts disclosed, including the proceedings to which the limits in §26(4), (4A), (4B), (4C), (4D), and (4E) would otherwise apply, provided that:

(a) the conduct was carried out in accordance with the request as filed and any conditions the Commissioner attached;

(b) no material fact was withheld from the request; and

(c) the conditions, if any, were complied with.

The defense under this subsection is available in addition to, not in lieu of, the good-faith defense under §26.

(4) Withholding of material facts. Where the Commissioner finds, after the conduct is carried out, that a material fact was withheld from the advance-ruling request, the approval is void from the date the conduct was carried out, and proceedings may continue as if no advance ruling had issued. The Commissioner shall give the affected person notice and opportunity to respond before making such a finding.

(5) Publication. Approvals, declinations, and conditions imposed under subsection (2) shall be published in the quarterly compliance report under §23, and on the Commissioner's website, in the form prescribed by regulation. Personal information not material to the public-interest reasoning may be redacted; the substantive reasoning shall not be redacted. Where the Commissioner determines that immediate publication would interfere with an ongoing investigation by another authority, publication may be deferred for a stated period not exceeding 24 months, with publication of the deferral itself in the same quarterly report.

(6) General guidance. Where requests of similar character have been received in sufficient number, the Commissioner may, by published guidance, indicate general categories of conduct that are or are not engaged by this Act. Conduct falling within a published category has the same effect as an advance ruling under subsection (3) for the duration the guidance remains in force.

(7) Cost recovery. The Commissioner may charge a fee for advance-ruling requests, calibrated to the capacity of the requestor under §25(3) and §25(4), and waived for good-faith inquiries from junior staff (within the meaning of §25(3)) or unpaid volunteer board members. Fees are recovered under §29.

(8) No advisory binding on third parties. An advance ruling determines the application of this Act to the conduct disclosed; it does not adjudicate the rights or interests of third parties, and it is not binding on any other authority, court, or tribunal.

(9) Anti-gaming. The advance-ruling mechanism is bounded against strategic use as follows:

(a) **Aggregation.** Where the conduct contemplated is reasonably part of a course of related conduct, the Commissioner may require that all reasonably-related conduct be addressed in a single request. Artificial

severance — submitting components of a related course of conduct as separate requests, each looking unproblematic in isolation — is grounds for declination of any of the severed requests.

(b) **Disclosure of related requests.** A requestor shall disclose, in each request, every other advance-ruling request the requestor or persons acting in concert with the requestor have filed on the same or related subject matter within the preceding 24 months, including any request that was withdrawn before decision.

(c) **Material divergence voids approval.** Where the conduct as carried out materially differs from the conduct as described in the request — in scope, parties, terms, timing, or any other respect a reasonable person would consider material to the Commissioner's analysis — the approval is void as to the divergent conduct, and proceedings may continue as if no advance ruling had issued.

(d) **Off-record contact prohibited.** A requestor and any person acting on the requestor's behalf shall conduct all communications about a pending request through the Commissioner's prescribed written channels. Off-record contact about a pending request — including contact through political or personal intermediaries — is conduct within the jurisdiction of the Commissioner under this Act and may, on its own, found a Public Report or Compliance Order regardless of the outcome of the request itself.

(e) **Time-bounded approvals.** An approval is valid for 12 months from the date of issue. Conduct not carried out within that period requires a fresh request unless the Commissioner extends the period in writing for stated reasons. Approvals do not function as standing cover for indefinite future conduct.

(f) **Ex post audit.** The Commissioner shall audit a random sample of approved requests, selected under the verifiable-randomness procedure in §27, to verify that conduct was carried out in accordance with the request and any conditions. Audit findings are aggregated in the quarterly compliance report under §23 and may identify individual non-compliance.

(g) **Annual pattern review.** The Commissioner shall publish annually, in the report under §24(3), an analysis of the year's advance-ruling activity covering: categories of requests, approval and declination ratios, average review times, conditions imposed, ex post audit results, and any patterns the Commissioner identifies as suggesting strategic use of the mechanism. Where patterns suggest a particular requestor, office, or class of conduct is using the mechanism strategically rather than for genuine certainty-seeking, the Commissioner shall identify the pattern and may recommend regulatory or legislative response.

(h) **Anti-bunching at decision deadlines.** A request received within 10 business days of a decision deadline the requestor faces in connection with the conduct is reviewable on an extended timeline at the Commissioner's discretion, and the Commissioner may decline to issue an approval where the time pressure prevents adequate review. Time-pressured requests do not defeat the Commissioner's ability to take longer where the matter warrants it.

(10) Provisional reliance pending determination. Where conduct that is the subject of a complete advance-ruling request must, by reason of timing the requestor cannot control, be carried out before the Commissioner issues a determination under subsection (2), the requestor may proceed in provisional reliance on the request, subject to the following:

(a) **Threshold for availability.** Provisional reliance is available only where:

(i) the request was filed at the earliest reasonable opportunity after the conduct was contemplated;

(ii) the request was complete on filing and disclosed every material fact in accordance with subsection (1);

(iii) the timing pressure arose from circumstances outside the requestor's control, and not from the requestor's own scheduling, deferral, or arrangement of decision deadlines connected with the conduct; and

(iv) the requestor filed contemporaneous written notice with the Commissioner, before carrying out the conduct, stating the date by which the conduct must be carried out, the reason awaiting the determination is not possible, and the specific external constraint that creates the timing.

(b) **Action at risk.** Conduct carried out in provisional reliance is conduct at the requestor's own risk. The complete defense under subsection (3) is available only if the Commissioner subsequently issues an approval under subsection (2)(a) on the same facts disclosed and the conduct as carried out conforms to that approval and any conditions.

(c) **Subsequent approval.** Where the Commissioner subsequently approves under subsection (2)(a) and the conduct as carried out conforms to the request and any conditions, the approval applies to the conduct already carried out as if the determination had been issued before the conduct. Conditions identified by the Commissioner as time-sensitive and incapable of retroactive application bind only future steps and shall be addressed by remediation under paragraph (d) or by future compliance, as the Commissioner directs.

(d) **Subsequent declination or non-conforming approval.** Where the Commissioner subsequently declines, or approves on conditions that the conduct as carried out cannot satisfy:

(i) the complete defense under subsection (3) is not available;

(ii) the good-faith defense under §26 remains available on its own terms, and the contemporaneous filing under paragraph (a)(iv) is admissible as evidence relevant to good faith;

(iii) the Commissioner may, in the same determination, identify remediation steps — including unwinding, restitution, divestiture, public correction, or modification of ongoing terms — that, if undertaken in good faith within a stated period, will bring the conduct into compliance and bar further proceedings under this Act on that conduct; and

(iv) where remediation is impossible, refused, or unsuccessful, proceedings under this Act may continue as if no advance ruling had issued.

(e) **Manufactured time pressure.** A finding under subsection (9)(h) that the requestor manufactured or aggravated the timing pressure is determinative against the availability of provisional reliance under this subsection. The contemporaneous filing under paragraph (a)(iv) is itself reviewable for accuracy, and a materially false statement in that filing is conduct within the jurisdiction of the Commissioner under this Act independent of the underlying request.

(f) **Preliminary view.** On receipt of notice under paragraph (a)(iv), the Commissioner may, within the time available before the conduct must be carried out, issue a preliminary view identifying any conditions the Commissioner would likely require or any aspect of the conduct the Commissioner would likely decline. A preliminary view is not a determination under subsection (2) and does not give rise to the defense under subsection (3), but a requestor's compliance with a preliminary view is admissible as evidence of good faith under §26 and counts toward remediation under paragraph (d)(iii).

(g) **Reporting.** Each instance of provisional reliance shall be identified in the quarterly compliance report under §23, with the basis stated under paragraph (a)(iv) and the eventual determination, and shall be aggregated in the annual pattern review under subsection (9)(g). A pattern of provisional reliance by a single requestor, office, or class of conduct is a pattern within the meaning of subsection (9)(g) and may be the subject of regulatory or legislative recommendation.

Part 4 — Amendments to the *Access to Information Act*

12. Section 4 is amended by adding:

> **(1.1)** This Act shall be interpreted according to a presumption of disclosure. Where a public body relies on a discretionary exception, the public body bears the burden of demonstrating, on a balance of probabilities, that the public interest in withholding outweighs the public interest in disclosure.

13. Section 15 [Cabinet Confidences] is amended by adding:

> **(3)** Subsection (1) does not apply to factual, statistical, operational, or background data provided to the Executive Council, except where disclosure would reveal the substance of Cabinet deliberations; Treasury Board Decision Summaries recording a final decision, which shall be proactively disclosed within 180 days of execution, subject to subsection (4); or Ministerial Mandate Letters, which shall be proactively disclosed at the conclusion of the parliamentary session in which they are issued or 18 months after issuance, whichever is earlier, subject to subsection (4).
>
> **(4)** A public body may withhold such a record where disclosure would prejudice an ongoing procurement until concluded; reveal solicitor-client privileged legal advice; compromise an active law enforcement investigation; or endanger national security or public safety. Such a decision is subject to review by the Information and Privacy Commissioner and appeal under Part 9 of the *Honest Government Act*.
>
> **(5)** Where a Ministerial Mandate Letter is withheld from proactive disclosure under subsection (3) on the grounds of an exception in subsection (4), the withholding shall be recorded within 30 days in a public register maintained by the Information and Privacy Commissioner, identifying: (a) the Minister to whom the mandate letter was issued; (b) a description of the subject matter of the letter sufficient to inform the public of its general nature, as assessed by the Information and Privacy Commissioner — who may require greater particularity on application by any person; (c) the date the letter was issued and the date of the withholding determination; and (d) the exception claimed under subsection (4) and the reasons therefor. The register shall remain publicly accessible for not less than 7 years.

14. The following is added after section 92:

93(1) Where the Information and Privacy Commissioner finds that a Deputy Minister or head of a public body has willfully and repeatedly delayed record production without reasonable justification, failed to correct after written warning, and cannot establish the good-faith defense under §26 of the *Honest Government Act*, the Commissioner shall, in sequence, identify the public body and the Deputy Minister or head of the public body in the quarterly compliance report; if non-compliance persists 90 days after publication, issue a Compliance Order directing corrective action within 60 days; and if non-compliance persists, impose an administrative penalty under §25 of that Act.

(2) Before imposing a penalty, the Commissioner shall provide written notice of intent with the proposed amount and calculation; afford at least 14 days to respond, including opportunity to raise the good-faith defense; and issue written reasons.

(3) A penalty under this section is stayed pending any review, appeal, or court confirmation under Part 9 of the *Honest Government Act*.

(4) No penalty shall be imposed on an employee for good-faith application of a statutory exception, lawful redaction of third-party personal information protected under the *Protection of Privacy Act*, exercise of a duty to consult third parties, or on line records officers below the Deputy Minister level unless individually subject to a Compliance Order or Certificate.

14A. The following is added after section 93:

94(1) Duty to document. A public body shall create and maintain records sufficient to document:

(a) decisions relating to procurement, appointment, regulatory approval, concessional arrangement, ministerial individual exemption, or other matter subject to disclosure under this Act or the *Honest Government Act*;

(b) substantive communications between a public office holder and a registered lobbyist or person engaged in lobbying activity, whether in person, by telephone, by text message, by electronic mail, or by any other means;

(c) substantive communications within the Executive Council or Treasury Board that reflect final decisions or the factual bases relied upon in arriving at final decisions, subject to the exceptions in section 15.

(2) Standard of adequacy. The Information and Privacy Commissioner shall, by regulation, establish standards for the adequacy of documentation required under subsection (1), including minimum content for decision records; requirements for timely creation; retention periods; and protocols for transitory records. Standards under this subsection shall recognize that informal operational communications are not captured by subsection (1) unless they record a decision or a factual basis for a decision.

(3) Consequences of failure. Willful or repeated failure to document a decision or communication required under subsection (1), where the failure is not justified by a statutory exception, is conduct subject to section 93 of this Act and proceedings under the *Honest Government Act*, subject to the good-faith defense under §26 of that Act.

(4) Relationship to other records obligations. This section is in addition to, and not in lieu of, obligations under any other statute establishing records-creation or records-retention requirements.

Part 5 — Amendments to the *Financial Administration Act*, RSA 2000, c F-12

15. The following is added after section 82:

82.1(1) No public body shall award a contract above the threshold prescribed by regulation unless the bidder has provided a return identifying every individual with significant control (ISC) of the bidding entity, in the form and scope prescribed.

(1A) Simplified track for small bidders. A bidder whose annual revenue in the preceding fiscal year is below the small-bidder threshold prescribed by regulation may satisfy the requirement under subsection (1) by filing a simplified ISC declaration with the Registrar on an annual basis, in a form prescribed by regulation that is materially less detailed than the full return under subsection (1), and referencing the declaration in each bid submitted during the year. The simplified declaration is subject to subsections (2) through (7) with necessary modifications, and to audit under subsection (4). Any material change during the year in ISC identity or in the contribution history of any ISC shall be disclosed by amended declaration within 30 days. Processing fees under §29(2) of the *Honest Government Act* for small-bidder declarations shall not exceed the small-bidder fee cap prescribed by regulation, which shall be materially lower than the cap applicable under subsection (1).

(2) For contracts above the cross-reference threshold prescribed by regulation, the awarding public body shall, as part of procurement, cross-reference the ISC return against the contributions registry under the *Election Finances and Contributions Disclosure Act*, RSA 2000, c E-2, and certify to its chief financial officer that no ISC has personally, within the preceding 48 months, made a contribution above the match threshold prescribed by regulation to any party or constituency association, or held executive office in a registered party; or such a match has been identified and referred to the Ethics Commissioner. Family member contributions where the family member is not themselves an ISC are not captured by this cross-reference.

(2A) The cross-reference under subsection (2) shall be conducted by the Registrar as a hash comparison against the contributions registry. The Registrar shall return only a match/no-match indicator to the awarding public body. Where no match above the contribution threshold is indicated, no contribution history is disclosed at any level. Where a match is indicated, the Registrar shall confirm the specific match to the Commissioner; the Commissioner may access the contribution history for the sole purpose of the subsection (2) review. Records accessed under this subsection are confidential under §25(9) and shall not be published except as required by a Certificate or court confirmation under §22(5).

(3) Where a match is referred, the Commissioner shall conduct initial review within 10 business days. If no substantive conflict, the award may proceed. If a potential substantive conflict is identified, the award is stayed for a further 20 business days for full investigation, after which the Commissioner shall clear, condition, or recommend setting aside the award.

(4) The Commissioner shall audit a statistically valid sample of certifications annually, and shall conduct random full reviews under §27 of the *Honest Government Act*. A failure to refer a match that should have been referred may subject the certifying officer to proceedings under Part 3 of that Act, subject to the good-faith defense.

(5) Records shall be maintained for not less than 7 years and made available to the Commissioner on request.

(6) Nothing in this section prevents any person or entity from bidding on provincial contracts; this section establishes procedural transparency, not exclusion from eligibility.

(7) Unlimited-lookback disclosure. For contracts above the full-disclosure threshold, the bidder shall disclose any contribution above the match threshold made at any time by any ISC to any Alberta political party, constituency association, or candidate, without temporal limit. This disclosure is for transparency only and does not trigger automatic review unless the contribution falls within the 48-month match window.

(8) Accountability as procurement condition. A bidder for a contract above the full-disclosure threshold is deemed to have acknowledged, by submitting a bid, that compliance with this section and section 82.2 is a condition of contracting with the Crown, in the same manner as other compliance conditions attached to provincial procurement.

15A. The following is added after section 82.1:

82.2(1) Identity consistency — natural persons. For the purpose of returning and maintaining ISC information under section 82.1, every natural person who is an individual with significant control of a bidding entity shall verify their identity through the identity verification platform designated by the Minister by regulation, which as of commencement is the MyAlberta Digital Identity platform. The platform shall issue a persistent unique identifier for each verified individual; the Registrar shall retain only that identifier, and the underlying identity credential shall not be retained by the Registrar.

(2) Fallback identification — natural persons. Where a natural person ISC does not have access to the platform under subsection (1), the Registrar shall accept, in the following order, as the basis for identity hashing:

(a) an Alberta driver's licence or Alberta Identification Card — the number shall be hashed on receipt and the plaintext discarded;

(b) a Social Insurance Number, for Canadian residents without provincial photo identification;

(c) a foreign persistent national identification number prescribed by regulation, together with the country of jurisdiction, under sworn declaration — Commissioner verification of identity is required above the contract threshold prescribed by regulation; or

(d) date of birth, country of citizenship, and such further combination of identifiers as the Commissioner prescribes by regulation — notarized verification is required above the contract threshold prescribed by regulation for identity combinations under this paragraph.

A passport number shall not be used as a persistent identity basis for the purposes of this section.

(3) Entity identification. Every entity that is a bidder or through which beneficial ownership is held shall be identified by:

(a) its Alberta corporate registry number, where registered in Alberta;

(b) its Canada Revenue Agency Business Number, for federally registered entities; or

(c) its foreign corporate registry number and jurisdiction of incorporation, for entities incorporated outside Canada — Commissioner verification is required above the contract threshold prescribed by regulation.

The entity track and the natural person ISC track are maintained as separate hash streams, linked only through the ISC return that connects entity identifiers to their natural person ISC identifiers.

(4) Name consistency and automated matching. The Registrar shall maintain automated cross-registry matching with a similarity threshold prescribed by the Commissioner by regulation, across ISC returns. Where the automated system identifies a potential match between returns using different name spellings, transliterations, or legal name variations for what appears to be the same individual, the Registrar shall issue a name consistency notice to the person. The person shall, within 30 days, confirm the match or provide documentation establishing that the returns relate to different individuals. Timely correction of an inadvertent variation does not constitute a finding of fragmentation and does not attract consequences under subsection (5).

(5) Consequences of identity fragmentation. Where the Commissioner determines, on a balance of probabilities, that a natural person has deliberately represented themselves under different names, identifiers, or identity combinations across two or more ISC returns in order to evade cross-matching, the following escalating consequences apply:

(i) *First finding:* the Commissioner shall issue a correction order requiring the person to consolidate all returns under a single consistent identity; impose an administrative fee under §25 with necessary modifications; and flag the person for 12-month enhanced scrutiny review of all ISC returns in which the person appears.

(ii) *Second finding within 5 years:* the Commissioner shall impose an administrative penalty under §25; and suspend the procurement eligibility of every entity in which the person is an ISC for 24 months across all provincial contracts, subject to review under Part 9.

(iii) *Third finding, or a finding of deliberate systematic identity fragmentation:* the Commissioner shall impose the maximum administrative penalty available under §25; permanently ban the person from serving as an ISC for any entity bidding on provincial contracts; and refer the matter for criminal investigation under §6(b). Entity-level consequences under subsection (6) apply.

(6) Entity-level reach. A procurement suspension under subsection (5)(ii) or a permanent ban under subsection (5)(iii) applies to all entities in which the person is or was an ISC at the time of the finding, and to entities where the Commissioner determines the person has beneficial ownership within the meaning of §25(10). Entity-level application is subject to the Commissioner's written assessment of materiality and does not automatically extend to entities where the person's interest or influence is de minimis.

(7) Good-faith defense. The good-faith defense under §26 applies to proceedings under subsection (5). For greater certainty, cultural naming practices, recent legal name changes, documentation inconsistencies in immigration or civil records, and transliteration variations in official documents are not evidence of deliberate fragmentation, and a person who responds promptly to a name consistency notice under subsection (4) is not subject to the consequences under subsection (5).

Part 6 — Amendments to the *Recall Act*, SA 2021, c R-5.7

16. Section 5 is amended by adding:

(4) Where the Ethics Commissioner tables a Certificate of Malfeasance regarding a sitting Member, the Legislative Assembly shall, within 30 sitting days, deal with the Certificate by resolution in one or more of the following ways: referral to the appropriate law enforcement authority for investigation (simple majority); expulsion (two-thirds majority); referral to the Chief Electoral Officer for recall (simple majority); or censure (simple majority). Resolutions under this subsection are not mutually exclusive.

(4A) Where a Certificate tabled under subsection (4) incorporates a financial penalty determination under §22(5)(b) exceeding the threshold prescribed by regulation, the following requirements apply:

(a) A resolution consisting solely of censure under subsection (4)(iv) does not satisfy the Assembly's obligation under this section.

(b) The Certificate remains open until: (i) the Assembly passes a resolution under subsection (4)(i), (ii), or (iii); (ii) the Assembly passes a closing resolution under paragraph (c); or (iii) 60 sitting days have elapsed from the date of tabling, in which case subsection (5) applies.

(c) The Assembly may close a Certificate incorporating a financial penalty determination by resolution passed by not fewer than two-thirds of all Members present and voting, with written reasons explaining why the conduct does not, on the facts found by the Commissioner, warrant a response under subsection (4)(i), (ii), or (iii). Such a resolution shall be published in the Votes and Proceedings with the names of Members voting for and against, and shall be delivered to the Commissioner for publication on the Commissioner's website.

(d) The Assembly may pass a censure resolution under subsection (4)(iv) and thereafter proceed to a resolution under paragraph (b) within the applicable period; a censure resolution does not restart the clock under this subsection.

(4B) Subsection (4A) does not apply where the Certificate has been set aside in whole or in part by the Commissioner on reconsideration or by a court on review such that no financial penalty determination remains outstanding.

(5) If the Assembly has not dealt with the Certificate within 30 sitting days, the matter is deemed referred to the appropriate law enforcement authority for investigation. Deemed referral does not constitute a referral for recall.

(6) On an explicit recall referral, the Chief Electoral Officer shall issue a recall petition, waive the notice of intent and initial signature requirement, and deem the petition period commenced on the date of referral. The petition period is held in abeyance if the Member files review under Part 9 of the *Honest Government Act* until the application is withdrawn, dismissed with appeals exhausted, or the Certificate is upheld in whole or in part sufficient to sustain a finding of malfeasance. A Certificate set aside on review terminates proceedings, and signatures collected shall not be used for any purpose.

(7) Backstop on law enforcement decline. Where a law enforcement authority receives a referral under subsection (4) or a deemed referral under subsection (5) and declines to investigate or closes the matter without investigation, the authority shall notify the Speaker in writing with reasons, subject to any legal constraint on disclosure of investigative reasoning. On receipt, the Speaker shall cause the Certificate to be retabled with the authority's notice. The Assembly shall, within 15 sitting days of retabling, deal with the Certificate by resolution under subsection (4), with a recorded vote, and the rules of subsection (6) apply to any such resolution.

Part 7 — Amendments to the *Public Interest Disclosure (Whistleblower Protection) Act* and the *Alberta Public Agencies Governance Act*

17. Section 3 of the *Public Interest Disclosure (Whistleblower Protection) Act* is amended in the definition of "wrongdoing" by adding:

> **(f)** a serious ethical breach involving a conflict of interest, procurement impropriety, the awarding of a contract, grant, or appointment in contravention of statute or established policy, or the directed suppression, alteration, or withholding of factual information provided to a public body or the Executive Council, where not authorized by statute, required by solicitor-client privilege, or undertaken to protect third-party personal information under the *Protection of Privacy Act*.

18. Section 24 is amended by adding:

> **(4)** In proceedings under this section, once an employee establishes that a protected disclosure was made and an adverse employment action followed within 24 months, the burden shifts to the employer to demonstrate, on a balance of probabilities, that the adverse action was taken for reasons unrelated to the disclosure.
>
> **(5)** Primary liability for damages rests with the employer or public body.
>
> **(6)** An individual who directs, authorizes, or personally carries out a reprisal is personally liable, jointly and severally with the employer, where the tribunal finds the individual acted in bad faith or with knowledge that the action was a reprisal.
>
> **(7)** Personal liability under subsection (6) is capped at the lesser of six months of the individual's annual compensation or the amount prescribed by regulation. It is not indemnifiable by the Crown, a public body, or any insurance arrangement funded in whole or in part by public money.

18A. The following preservation order authority is added to the *Public Interest Disclosure (Whistleblower Protection) Act*:

(1) Where a protected disclosure has been made or the Commissioner has commenced an investigation into wrongdoing involving the employment of any person, the Commissioner may issue a preservation order to any person or entity, directing that:

> (a) specified records, documents, electronic files, correspondence, or other information be preserved in their current form and not altered, deleted, moved, or transferred without the Commissioner's written consent; and
>
> (b) the employment status, compensation, duties, and working conditions of any employee who is or may be a complainant, disclosing employee, or witness in the proceedings not be altered pending the Commissioner's final determination, except in the ordinary course of operations demonstrably unrelated to the investigation.

(2) A preservation order under subsection (1)(b) operates as a status quo order, not a reinstatement order. It prevents the initiation of adverse employment action during the investigation period. It does not reverse adverse employment action taken before the order was issued, unless the Commissioner has reasonable grounds, on an ex parte review of available evidence, to conclude the prior action was a reprisal, in which case the order may include a direction for temporary reinstatement pending full determination.

(3) A preservation order remains in effect for 90 days and may be renewed by the Commissioner for further 90-day periods until the Commissioner's final determination, to a maximum total period of 18 months, or until a court varies or sets aside the order on review under subsection (4), whichever is earlier.

(4) A preservation order is subject to expedited review by the Court of King's Bench on application by the person or entity subject to the order. The Court shall schedule a hearing within 10 business days of filing. Review is limited to whether the Commissioner had reasonable grounds to issue the order; the Court shall not conduct a full merits review of the underlying investigation at this stage.

(5) Breach of a preservation order is conduct within the jurisdiction of the Commissioner under this Act, subject to the escalation framework in Part 3. Willful breach — including the destruction, alteration, or concealment of records after receipt of a preservation order — may give rise to a Certificate of Malfeasance without the requirement for prior Public Report or Compliance Order under that framework.

(6) The Commissioner shall, as a matter of practice, issue a preservation order under subsection (1)(a) at the commencement of any investigation where evidence relevant to the investigation is or may be under the control of a party to the proceedings or an affiliated entity, unless the Commissioner has specific written reasons for concluding that the order is premature or would compromise the investigation.

19. The following is added after section 31:

> **32(1)** An employee may disclose wrongdoing directly to a Member of the Legislative Assembly or a journalist, without loss of protection, where the wrongdoing presents imminent risk to public health, public safety, or the integrity of public funds such that delay would defeat the purpose of disclosure; the employee has reasonable grounds to believe internal disclosure will result in destruction, alteration, or concealment of evidence; a prior protected disclosure has resulted in or reasonably apprehended reprisal; or the Commissioner has declined to investigate or failed to commence investigation within 60 days.
>
> **(2)** A disclosure made in good faith is protected for all purposes of this Act, provided the employee discloses only information reasonably necessary and does not disclose solicitor-client privileged information or information causing clear and substantial harm to an identifiable third party unconnected to the wrongdoing.

20. Section 9 of the *Alberta Public Agencies Governance Act* is amended by adding:

> **(4)** Every Order in Council appointing an individual to a paid senior position at a public agency (board chair, chief executive officer, or senior executive) shall be accompanied by a published justification stating the selection criteria; the appointee's qualifications; and whether the appointee has, within 48 months preceding appointment, made contributions above the threshold prescribed by regulation, or held executive office in a registered political party.
>
> **(5)** "Paid senior position" does not include volunteer appointments with no remuneration or per diem stipend only, or advisory committee or council appointments without executive authority. For volunteer appointments, the Minister shall disclose in the quarterly appointments bulletin only those appointees meeting the contribution threshold prescribed by regulation, or who have held executive office in a registered political party within 24 months.
>
> **(6)** All other Orders in Council appointing individuals to public agencies shall be reported in a consolidated quarterly appointments bulletin identifying the appointee, the agency, the nature of the position, and any applicable disclosures.
>
> **(7)** The justification shall be published on a government website within 10 business days and shall remain accessible for the duration of the appointment and at least 7 years after.
>
> **(8)** This section applies prospectively only.

Part 8 — Indigenous Engagement at the Interface

This Part addresses the operational seam where the Crown's accountability machinery encounters the governance systems of Indigenous peoples. It establishes a Crown-internal definition for interface purposes only, an exemption for internal Indigenous governance, an engagement standard consistent with free, prior, and informed consent, an affirmative interpretation rule, a carve-out for Indigenous governance instruments, and an Indigenous Accountability Council. Nothing in this Part is intended to define or characterize Indigenous governance, which derives from sources independent of and prior to the Crown.

21A(1) Definition for interface purposes. The term "Indigenous government" is used in this section solely to identify, for the limited purposes of this Act and at the interface between the Crown and Indigenous governance systems, those bodies whose internal governance is exempt from the operation of this Act and with whom the Crown is required to engage under this section. The term does not, and is not intended to, define, characterize, recognize, withhold recognition from, or limit the inherent jurisdiction or self-determination of Indigenous peoples, which exists independently of any Crown enactment and derives from the inherent rights of Indigenous peoples and from treaty. For the limited purposes of this section, "Indigenous government" means a First Nations government, a Métis government, or an Inuit government that is recognized under federal law, under a self-government agreement, under the *Metis Settlements Act*, or under an agreement with the Government of Canada or a province of Canada, and includes a band council constituted under the *Indian Act* (Canada), a Métis Settlement, and the Métis Nation of Alberta.

(1.1) Crown-internal reference, not characterization. For greater certainty, subsection (1) is a Crown-internal reference applicable at the boundary between this Act and the governance systems of Indigenous peoples. Nothing in this Act is to be read as conferring, withholding, defining, or modifying recognition of Indigenous governance, which derives from sources independent of and prior to the Crown.

(2) Nothing in this Act applies to the internal governance of an Indigenous government, including the conduct of its elected officials, employees, or agents in the discharge of their governance functions.

(3) Engagement standard. Where a determination, investigation, audit, or other action under this Act would affect an Indigenous government, or an entity materially owned or controlled by an Indigenous government as defined by regulation made in accordance with §28(4A), the Commissioner shall, before commencing the action, engage with the affected Indigenous government on a basis consistent with the principle of free, prior, and informed consent under the *United Nations Declaration on the Rights of Indigenous Peoples*. The engagement shall:

(a) be initiated with sufficient notice to permit the Indigenous government to participate meaningfully;

(b) provide all information reasonably necessary for informed participation;

(c) address the subject matter, scope, and procedural conduct of the action;

(d) be conducted on terms agreed to by the Indigenous government to the extent consistent with the Commissioner's statutory duties;

(e) accommodate the outcome of the engagement to the extent reasonably possible without defeating the purposes of this Act.

Where consent is not obtained, the Commissioner may proceed only on written reasons published in the quarterly compliance report under §23, identifying the engagement undertaken, the matters on which agreement was not reached, and the basis for proceeding. This subsection establishes a floor; nothing prevents

an Indigenous government from agreeing in writing to less rigorous procedures where it considers them appropriate, and any such agreement is binding on the Commissioner for the matter to which it relates.

(4) For greater certainty, this Act applies to contracts, grants, regulatory approvals, and other provincial decisions involving entities described in subsection (3) as it applies to any other person or entity, subject to engagement and accommodation under that subsection and subject to subsection (7) where the entity is an Indigenous-owned governance instrument.

(5) Affirmative interpretation. This Act shall be interpreted in a manner consistent with:

(a) the principles of the *United Nations Declaration on the Rights of Indigenous Peoples*, including the principle of free, prior, and informed consent for measures affecting Indigenous peoples;

(b) the constitutional rights of Indigenous peoples of Canada recognized and affirmed under section 35 of the *Constitution Act, 1982*; and

(c) treaty rights, whether recorded in writing or in the oral records of treaty-making.

Where the operation of any provision of this Act is uncertain in its application to a matter affecting Indigenous peoples, the interpretation that better gives effect to paragraphs (a), (b), and (c) shall prevail.

(6) Nothing in this section limits the jurisdiction of the courts or administrative tribunals to adjudicate matters involving constitutional rights, treaty rights, or the duty to consult.

(7) Indigenous-owned governance instruments. Where an entity is owned or controlled by one or more Indigenous governments, in whole or in such proportion as is established under §28(4A), and is identified in writing by the Indigenous government as an instrument of its governance or of its economic self-determination (an "Indigenous governance instrument"):

(a) the requirement under §15 to identify individuals with significant control is satisfied by the Indigenous government identifying itself as the principal of the entity, in the form prescribed by regulation under §28(4A); the natural-person ISC requirement does not apply, on the rationale that the entity's authority derives from the Indigenous government and not from natural-person ownership;

(b) the cross-reference under §15(2) does not apply to the entity as such, but applies to any natural person identified by the Indigenous government in connection with the entity's bid in any capacity that, in another bidder, would constitute an ISC;

(c) communications by elected officers or designated representatives of the Indigenous government with provincial officials, on behalf of the Indigenous government, in respect of matters affecting the Indigenous government or the Indigenous governance instrument, are not lobbying within the meaning of §3 and are not subject to the registration or other obligations of Part 2; and

(d) the obligations under this Act applicable to the entity are otherwise as for any other entity, except as provided by this subsection.

(8) Indigenous Accountability Council. There is established an Indigenous Accountability Council with the following composition, mandate, and authority:

(a) Membership comprises one representative selected by Treaty 6 First Nations, one selected by Treaty 7 First Nations, one selected by Treaty 8 First Nations of Alberta, one selected by the Métis Nation of Alberta, one selected by the Métis Settlements General Council, and such other members as may be added by agreement among the Council and the Crown to reflect Indigenous communities not otherwise represented;

(b) The Commissioner, the Auditor General, and the Information and Privacy Commissioner shall consult the Council before making a regulation under §28(4A); before issuing a Public Report, Compliance Order, or Certificate that affects an Indigenous government or an Indigenous governance instrument; before publishing the annual pattern review under §11C(9)(g) where the review identifies patterns affecting Indigenous matters; and on such other matters as the Council and the Commissioners may agree.

(c) The Council may, on its own initiative, file a written submission with respect to any matter within the jurisdiction of the Commissioner, the Auditor General, or the Information and Privacy Commissioner that affects Indigenous governments or Indigenous governance instruments. A submission filed under this paragraph shall be acknowledged in writing within 30 days and shall be addressed in any subsequent report or determination, with the Council's position recorded;

(d) Where the Council, by majority of members present and voting, records a minority position on a matter on which it has been consulted, that minority position shall be tabled in the Legislative Assembly alongside the related Commissioner Report, Order, or Certificate, and shall be published with the related document on the Commissioner's website;

(e) The Council shall be funded through main estimates as a separate line item, in an amount sufficient to permit meaningful participation including travel, language services, technical advice, and member honoraria; the budget floor under §24(6) applies to the Council with necessary modifications;

(f) The Council's procedures, terms of office, replacement of members, conflict-of-interest rules, and other operational matters are established by the Council itself, and are not subject to regulation under this Act except where the Council requests by resolution that a regulation be made;

(g) The establishment of the Council under this subsection does not, and is not intended to, substitute for or limit the Crown's separate obligations to consult and accommodate, or to obtain free, prior, and informed consent, in respect of any specific matter; the Council exists at the operational interface and does not replace the constitutional and treaty-based relationships between the Crown and Indigenous peoples.

Part 9 — Application and Process

GENERAL APPLICATION

21. This Part applies to all determinations made under this Act or under any statute as amended by this Act, including Public Reports of Findings, Compliance Orders, Certificates of Malfeasance, administrative penalties, post-employment findings, disgorgement orders, beneficial ownership determinations, and stays of contract award, except where expressly excluded.

WRIT PERIOD

21B(1) During a provincial general election or by-election, from the day the election writ is issued to the day the writ is returned:

> (a) The Commissioner shall not commence a new investigation under this Act.
>
> (b) Investigations commenced before the issue of the writ continue in all respects, including the collection of evidence, the conduct of hearings, and the preparation of Reports, Orders, and Certificates.
>
> (c) Public Reports of Findings, Compliance Orders, and Certificates of Malfeasance arising from investigations in progress at the issue of the writ shall be issued on their normal timetable and shall not be delayed or accelerated on account of the writ period. The Commissioner shall not time the release of any Report, Order, or Certificate to coincide with electoral events.
>
> (d) A Certificate of Malfeasance issued during a writ period shall be delivered to the Speaker for tabling on the first sitting day following the return of the writ.

(2) Subsection (1)(a) does not prevent: (a) the receipt and registration of complaints during a writ period; (b) the continuation of random audit work in progress at the issue of the writ; or (c) administrative and operational functions of the Commissioner office not involving the commencement of a new investigation.

(3) For greater certainty, where the writ is issued while a complaint is pending and no investigation has yet been formally commenced, the Commissioner shall hold the complaint and commence investigation after the return of the writ, unless the writ is returned without an election having been held, in which case investigation may commence immediately.

REVIEW AND APPEAL

22(1) A person aggrieved by a determination may apply to the Commissioner for reconsideration within 30 days.

(2) The Commissioner shall conduct reconsideration based on the original record, any further submissions of the applicant, and any submissions the Commissioner determines necessary in the interests of fairness. A written decision with reasons shall issue within 60 days.

(3) A person aggrieved by a reconsideration decision may apply to the Court of King's Bench for judicial review within 30 days. The standard of review is correctness on questions of procedural fairness and jurisdiction, and reasonableness on questions of fact and mixed fact and law.

(4) Filing an application under this section stays the operation of the determination until the application is resolved, except as expressly provided.

(5) Court confirmation for large penalties — non-Members.

(5)(a) Where a determination includes an administrative penalty exceeding the threshold prescribed by regulation against a respondent who is not a sitting Member of the Legislative Assembly, the Commissioner shall not proceed to collection until the penalty has been confirmed by the Court of King's Bench on application. On application, the Court shall review for procedural fairness, jurisdictional compliance, and reasonableness; afford the person opportunity to be heard and to raise the good-faith defense; and confirm, vary, or set aside the penalty. The Court may substitute its own determination where the Commissioner's determination is not reasonable. The person subject to the penalty may consolidate reconsideration, judicial review, and court confirmation proceedings into a single merits hearing, in which case the Court may conduct full merits review notwithstanding the standard-of-review framework in subsection (3). Pending confirmation, no collection, garnishment, execution, or enforcement action may be taken, and the stay under subsection (4) applies. The Chief Justice may designate a rotation of judges or a specialized panel to manage confirmation volume.

(5)(b) Assembly process for sitting Members. Where a determination includes an administrative penalty exceeding the threshold prescribed by regulation against a respondent who is a sitting Member of the Legislative Assembly, the Commissioner shall incorporate the penalty determination into a Certificate of Malfeasance under §9 and table it in the Legislative Assembly. The penalty shall be enforced exclusively through the Assembly process under §16; court confirmation under subsection (5)(a) is not available for penalties against sitting Members. This subsection does not limit the Commissioner's jurisdiction to investigate a Member's conduct or to issue Certificates of Malfeasance; it addresses only the enforcement mechanism for large monetary penalties. Nothing in this subsection is to be read as waiving parliamentary privilege with respect to the conduct of Members in the exercise of their legislative functions.

(6) Constitutional and executive privilege preserved. Nothing in this section limits the respondent's ability to raise Cabinet confidence, executive privilege, or interference with a core executive function as grounds in any reconsideration, judicial review, or court confirmation proceeding; the Commissioner and the Court shall consider such grounds within the framework of reasonableness review.

PROTECTION AGAINST PROCEEDINGS FOR DELAY

22A(1) Where a person or entity commences a judicial review application, constitutional challenge, injunction application, or other court proceeding in connection with a determination, investigation, or action of the Commissioner under this Act (a "challenge"), and the Commissioner has reasonable grounds to believe the challenge was brought primarily to cause delay, impose litigation costs, or frustrate the purposes of this Act rather than to obtain genuine legal relief, the Commissioner may apply to the Court of King's Bench for an expedited hearing and relief under this section.

(2) On application under subsection (1), the Court shall, on an expedited basis within 20 business days of filing, determine whether the challenge has a reasonable prospect of success on the merits. In making this determination, the Court shall consider:

> (a) whether the legal grounds raised are novel and serious, or substantially the same as grounds previously raised and rejected in proceedings involving similar Commissioner determinations;
>
> (b) whether the timing of the challenge correlates with critical enforcement steps, including imminent collection, imminent tabling of a Certificate, or an approaching limitation period; and
>
> (c) whether the relief sought, if granted, would have a practical effect on the respondent's legal obligations disproportionate to the genuine legal question raised.

(3) Where the Court determines that a challenge has no reasonable prospect of success on the merits, the Court shall:

> (a) dismiss the challenge;
>
> (b) award costs to the Commissioner on a solicitor-client basis; and
>
> (c) where the Court finds the challenge was brought in bad faith, impose a further sanction calibrated to the capacity of the applicant under §25 with necessary modifications.

(4) In any proceeding under this Act or relating to a determination under this Act, costs shall be awarded presumptively to the Commissioner on a solicitor-client basis where the challenge fails. A court may depart from this presumption only where the challenge raised a genuine, novel, and serious legal question of public importance not previously adjudicated, stating written reasons for departure.

(5) The stay of enforcement under §22(4) applies to final collection, garnishment, and execution only. No stay arising under §22(4) or any court proceeding shall apply to:

> (a) the Commissioner's obligation to publish a Report, Certificate, or compliance record under this Act;
>
> (b) any requirement to produce, preserve, or disclose records in an ongoing investigation; or
>
> (c) the Commissioner's authority to conduct the underlying investigation while proceedings regarding a determination from that investigation are pending.

(6) Where an applicant has not taken any steps to prosecute a challenge within 60 days of filing, the Commissioner may apply to the Court for dismissal for delay. The Court shall schedule a hearing on such application within 10 business days. Costs on dismissal for delay are presumptively awarded to the Commissioner on a solicitor-client basis under subsection (4).

(7) The Commissioner may, on application to the Court, seek an order requiring security for costs before a challenge may continue, where the Commissioner establishes on a balance of probabilities that the challenge was brought primarily for delay and that the Commissioner would suffer material financial prejudice in the absence of such security.

Part 10 — Reporting and Resourcing

QUARTERLY COMPLIANCE REPORT

23(1) The Commissioners responsible for the statutes affected by this Act shall jointly publish a quarterly public report identifying Certificates issued during the period, with the Assembly's response; administrative penalties imposed, with the basis of calculation and any court confirmation; individuals and entities subject to Compliance Orders, including disgorgement; public bodies in persistent non-compliance with disclosure obligations (with identification at the Deputy Minister level, not line records officers unless individually subject to order); declined-but-substantiated violations under §25(6), aggregated by category, and identification of persons, entities, or beneficial owners crossing the accumulation threshold; beneficial ownership determinations; random audit results in aggregate; below-threshold dispositions; systemic obstacles; and recommendations to the Legislative Assembly.

(1A) Privilege-and-privacy register. Each Commissioner shall maintain a register of every exercise of authority under this Act that pierces solicitor-client privilege, Cabinet confidence, parliamentary privilege, the privilege against self-incrimination, or accesses personal or financial information of an identifiable person not otherwise disclosed. Each entry shall record: (a) the date of the access; (b) the category of person whose information was accessed (without identifying the person except where the matter has otherwise been made public); (c) the privilege or category of information pierced; (d) the statutory authority relied upon and the scope of the access; (e) the purpose; and (f) the date the information was destroyed under §25(9B), §27(6A), or §29A, or a notation that destruction is pending. The register shall be summarized annually in the report under §24(3) (with category-level aggregates and any patterns of repeat access), and made available to the Information and Privacy Commissioner on request for the purpose of the Privacy Impact Assessment under §30(2).

(2) The report shall be tabled in the Legislative Assembly, published on each Commissioner's website, and made available in plain-language summary form.

RESOURCING AND BUDGET VISIBILITY

24(1) The Legislature affirms its intent that the Commissioner offices be resourced commensurate with the expanded mandate.

(2) The Commissioners shall, within 90 days of commencement, jointly submit to Treasury Board a resource plan.

(3) The Commissioners shall report annually to the Legislative Assembly on administration of this Act, including caseload by category and tier; resource adequacy, with an explicit statement of whether current caseload exceeds current capacity and the operational consequences of any shortfall; aggregate administrative cost; fee revenue collected under §29; declined-violation patterns; random audit results; beneficial ownership determinations; and any systemic obstacles.

(4) Monthly resource adequacy notice. In addition to the annual report under subsection (3), the Commissioner shall publish a monthly resource adequacy notice on a date the Commissioner designates at the beginning of each calendar year by public notice, which date shall not be changed except on 90 days' advance public notice. The Commissioner shall prescribe the form of the notice, which shall include at minimum: (a) current caseload by category; (b) current funded capacity by function; (c) whether caseload or mandatory program obligations exceed funded capacity in any category, with the operational consequence of any shortfall stated plainly; (d) status of each technology and infrastructure build required under this Act, including whether capital appropriations have been received and whether builds are on schedule. Where the notice identifies that caseload exceeds funded capacity or that a required infrastructure build has not received appropriation within 12 months of commencement of the relevant provision, the Commissioner shall simultaneously deliver the notice to the Speaker for tabling at the next sitting day.

(5) Cooperation register. The annual report under subsection (3) shall include a cooperation register identifying: (a) each request made by the Commissioner or Auditor General to the Lieutenant Governor in Council for threshold-setting or regulation-making under §28(1) through §28(4) in the preceding year; (b) whether a regulation responsive to the request was made within 90 days; (c) if a regulation was made, whether the Commissioner and Auditor General assess it as consistent with the purposes of this Act, with reasons; and (d) if no responsive regulation was made within 90 days, the operational consequence and the Commissioners' joint assessment of the effect on the operative scope of the relevant provisions.

(6) Budget floor. The annual main estimates submitted to the Legislative Assembly shall include an appropriation for the Commissioner office not less than the greater of:

> (a) the appropriation approved for the Commissioner office in the immediately preceding fiscal year, adjusted for the change in the Alberta Consumer Price Index, all items, as described in §28(1); and
>
> (b) the minimum operational funding level identified in the most recent resource plan under subsection (2) and confirmed in the most recent monthly resource adequacy notice under subsection (4).

Where the proposed estimates include an appropriation below the floor established by this subsection, the President of the Treasury Board shall, prior to or contemporaneously with the tabling of the estimates, table in the Legislative Assembly a written statement identifying: (i) the amount of the proposed reduction and the resulting shortfall below the floor; (ii) each operational function or program that will be reduced or suspended as a result, assessed against the most recent monthly resource adequacy notice under subsection (4); and (iii) the Commissioner's written response to the proposed reduction, obtained by the President of the Treasury Board not less than 14 days before tabling. Any provision in the estimates reducing the Commissioner office's appropriation below the floor shall be voted on separately and by recorded vote in the Committee of Supply.

(7) Constitutional qualification. Subsection (6) does not limit the constitutional authority of the Legislative Assembly to determine appropriations. It operates as a procedural requirement — mandatory disclosure of operational consequences and a separate recorded vote — not as a substantive constraint on legislative authority. An appropriation below the floor adopted in compliance with subsection (6) is valid and effective.

Part 11 — Sanctions, Defences, and Audit

PROPORTIONAL PENALTY FRAMEWORK

25(1) This section applies to all administrative penalties under this Act, to natural persons and entities equally.

(2) Penalties shall be calibrated to the capacity of the person or entity subject to them, such that they are neither ruinous to those of limited means nor rendered trivial by the wealth, income, or revenue of those of substantial capacity; be administered at a cost proportionate to the public interest served; and not be evadable through systematic trivial violations.

(3) Natural person penalties shall consist of a base amount equal to a percentage of annual compensation, tiered by violation count; an asset-based enhancement equal to a percentage of net assets above the asset threshold, tiered by violation count; and a minimum floor scaled to Alberta minimum wage. Specific percentages, thresholds, and floor values are prescribed by regulation. The minimum floor shall not apply to persons whose annual compensation is below the junior staff threshold prescribed by regulation; for such persons, the base percentage applies alone, with asset enhancement only where net assets exceed the asset threshold.

(4) Entity penalties shall consist of a base amount equal to a percentage of annual revenue, tiered by violation count; an asset-based enhancement equal to a percentage of net assets above the entity asset threshold, tiered by violation count; and a minimum floor scaled by violation tier. For closely-held entities, the net assets calculation shall include the personal net assets of operator-owners, aggregated and prorated by ownership interest. Director and officer personal liability attaches, jointly and severally with the entity, where the tribunal finds the director or officer knew of the conduct, had authority to prevent or remedy it, and failed to exercise that authority. Unpaid non-profit directors are exempt from personal liability unless direct personal involvement in the conduct is established. Specific percentages, thresholds, and floor values are prescribed by regulation.

(5) Collection. Penalties on natural persons shall be collected by deduction from compensation, pension, investment income, or other periodic income over a period not exceeding the maximum prescribed by regulation, unless the person elects earlier payment. No penalty shall be demanded as a lump sum where such demand would cause undue hardship. Entity penalties may be collected by any lawful Crown civil process.

(6) Cost proportionality and decline tracking. The Commissioner shall not pursue a penalty where the reasonably anticipated cost of imposition, collection, and defence exceeds the penalty amount, unless the public interest in deterrence clearly warrants the expenditure (with written reasons) or the person or entity has accumulated declined-but-substantiated violations above the accumulation threshold prescribed by regulation. The Commissioner shall maintain a register of declined-but-substantiated violations identifying the person or entity, the conduct, the value at issue, and the date; shall give written notice of each entry with warning of the accumulation consequence; and shall aggregate declines by beneficial owner (per subsection (10)) and by director or officer identity, not only by legal person. On reaching the accumulation threshold, the cost-

proportionality exemption ceases to apply; the next determined violation is treated as a third-tier violation under subsection (3) or (4) with maximum asset-based enhancement, subject to a Compliance Order or Certificate of Malfeasance as appropriate. The Commissioner shall notify the person or entity one violation in advance of the threshold being reached.

(7) Non-indemnification. A penalty under this Act shall not be indemnified by the Crown, a public body, or any insurance arrangement funded in whole or in part by public money. For director and officer personal liability, non-indemnification applies to indemnification by the Crown or public bodies but does not prohibit indemnification by the entity itself where permitted by applicable corporate law.

(8) Relationship to other remedies. A penalty under this section is in addition to, and not in lieu of, disgorgement under §7, §8, or §9; severance repayment under §10(5); restitution or compensation ordered by any court or tribunal; and any penalty, fine, or forfeiture imposed under the criminal law following referral under §6(b), §9(1), or §16.

(9) Verification of means. The Commissioner may rely on disclosure filings under the *Conflicts of Interest Act* and the *Public Service Act*; audited financial statements and tax filings; information obtained in investigation; information provided in response to written notice; beneficial ownership determinations under subsection (10); and such other information as is reasonably necessary. Where verification of net assets is impractical or disproportionately expensive, the Commissioner may calculate the asset-based enhancement under subsection (3) or (4) based on the person's or entity's gross income as reported under the *Income Tax Act* (Canada) for the preceding three years, as a verifiable proxy for capacity. Information obtained for this purpose is confidential and shall not be disclosed except as necessary to impose, collect, confirm, or enforce the penalty; in aggregate or anonymized form in reports under §23 or §24; or as required by law. The Commissioner shall collect personal and financial information only to the extent reasonably necessary for the determination at issue, and shall not retain such information beyond the period required for that determination.

(9A) Self-declaration cascade. The Commissioner shall determine penalty capacity in the following order:

(a) public disclosure filings under the *Conflicts of Interest Act*;

(b) self-declaration by the respondent under oath, to be provided within 14 days of written notice that capacity is in issue;

(c) audited financial statements or tax filings, where self-declaration is challenged by the Commissioner on reasonable grounds; and

(d) net asset verification through investigation only where (a) through (c) are insufficient and the magnitude of the anticipated penalty justifies the investigative intrusion.

(9B) Destruction of financial information. Financial information collected under subsection (9) or (9A) shall be destroyed no later than the later of: (a) 90 days after the penalty has been collected or the proceeding has otherwise concluded; or (b) the expiry of any applicable appeal period. The Commissioner shall provide written confirmation of destruction to the respondent. This subsection does not require destruction of aggregate or anonymized data, information publicly available from other sources, or information the subject of an ongoing proceeding.

(10) Beneficial ownership determinations. The Commissioner may, on reasonable grounds and following investigation, determine that two or more entities or persons are under common beneficial ownership for purposes including aggregating related transactions; aggregating declined-but-substantiated violations; determining the scope of post-employment restrictions under §10(3.1); applying the unlimited-lookback disclosure under §15(7); and any other determination under this Act where beneficial ownership is relevant. A

determination is prima facie true, and the person or entity challenging it bears the onus of disproof on a balance of probabilities. The Commissioner may consider corporate, partnership, and trust records; ISC returns; patterns of financial flow, control, or benefit; nominee arrangements; shared directors, officers, signatories, or addresses; and any other relevant information. A determination is subject to reconsideration and review under Part 9.

(10A) Pattern-based investigation of close-associate contributions. The Commissioner may, on reasonable grounds and where a pattern of indirect influence is suggested, treat contributions made by close associates of an official or ISC — including adult children, siblings, parents, business partners, or persons with whom the official or ISC shares an address, an employer, or a controlled entity — as relevant evidence in an investigation under this Act, notwithstanding that those persons are not themselves family members within §2(w) or ISCs within §15. This subsection does not create a separate trigger for procurement review under §15 and does not require the disclosure of close-associate contributions outside the context of an open investigation. It clarifies the Commissioner's existing authority to consider patterns of contribution and benefit when determining whether a relationship of beneficial influence exists. Procedural fairness, the good-faith defense, and review under Part 9 apply to any determination made under this subsection.

GOOD-FAITH DEFENSE

26(1) A person or entity is not subject to penalty, disgorgement, or other consequence under this Act where:

(a) the conduct was undertaken in good faith;

(b) the person or entity acted on reasonable reliance on one or more of: written or reliably documented professional advice from qualified legal or ethics counsel; statutory interpretation consistent with published judicial or administrative authority; published guidance from the Commissioner, the Auditor General, or another authorized public body; or documented practice in the relevant field, office, or sector that has not been criticized by the Commissioner, the Auditor General, or the Information and Privacy Commissioner in any published report within the preceding 60 months; and

(c) the person or entity did not know, and could not reasonably have been expected to know, that the conduct contravened this Act.

(2) In any proceeding, the person or entity is presumed to have acted in good faith. The burden of establishing bad faith rests on the Commissioner on a balance of probabilities.

(2A) Tie-breaker. Where the evidence on the question of bad faith is in equipoise — that is, the Commissioner has not established bad faith on a preponderance — the determination shall be in favour of the respondent. The defense functions both as a substantive shield where the conditions in subsection (1) are met and as a tie-breaker where the Commissioner has not affirmatively established bad faith.

(3) Where the defense is successfully raised, no penalty, disgorgement, or punitive consequence shall be imposed; the Commissioner may issue a Public Report of Findings identifying the conduct and the good-faith basis for guidance and future compliance; the Commissioner may recommend revised guidance; and a Compliance Order may be issued to correct the conduct on a prospective basis, but shall not require repayment, disgorgement, or penalty.

(4) The defense does not apply to conduct involving intentional deception of the Commissioner or a public body; conduct where the person or entity ignored specific prior advice from the Commissioner regarding the same or substantially similar conduct; conduct constituting willful blindness to a clear requirement of this Act; conduct where the person or entity, or any other person or entity, has been the subject of a Public Report of Findings involving substantially similar conduct within 24 months; or conduct by a Deputy Minister or head of a public

body involving redaction or record-production delay under the *Access to Information Act*, where the Information and Privacy Commissioner has, in any published ruling within the preceding 36 months, determined that the same public body's practices were excessive or unjustified in substantially similar circumstances.

(4A) Time-of-decision rule. Reliance under subsection (1)(b) must be reliance at the time the decision was made. Advice obtained after the conduct occurred, or after a complaint was filed, does not establish reasonable reliance for the purposes of the defense, although it may be relevant to mitigation under §25(2).

(4B) Material facts. The defense is not available where the person or entity, in seeking the advice or guidance relied upon, withheld from the advisor any fact that a reasonable advisor would have considered material to the question. Disclosure under subsection (5) shall include the facts provided to the advisor as well as the advice received.

(4C) Independence weighting. In assessing the reasonableness of reliance under subsection (1)(b), the Commissioner may give less weight to advice from counsel internal to the public body whose conduct is in issue than to advice from independent external counsel, particularly where the matter involves a question on which the public body has an institutional interest in a particular conclusion.

(4D) Direct conflict carve-out. The defense is not available where the conduct conferred a discretionary benefit upon: a family member, business associate, or beneficial-ownership-related party of the official within the meaning of §25(10); a person who, within the preceding 48 months, made a contribution above the contribution threshold to a registered political party with which the official is affiliated; or an entity in which the official held a beneficial interest at the time of the conduct, unless the conduct was pre-cleared by the Commissioner under §11C before the decision was made and the conduct was carried out in accordance with that pre-clearance.

(4E) Obvious-corruption limit. Reliance on advice does not establish reasonable reliance where, on the balance of probabilities, the conduct is of a kind that a reasonable person without legal training would have recognized as a serious breach of public trust. This includes (without limiting the generality): the award of a public benefit to oneself; the conferral of a benefit on a person with whom the official had an active personal, business, or romantic relationship at the time of the decision; the receipt or acceptance of a thing of value in connection with the conduct; or the exercise of a discretionary power in exchange for a present or anticipated future benefit to the official. Counsel's permissive opinion on conduct of this character shall be treated as evidence of opinion-shopping under subsection (5) rather than as reasonable reliance under subsection (1)(b).

(5) Disclosure of advice relied upon. Where the defense under this section is raised on the basis of professional advice, the person or entity shall disclose to the Commissioner: (a) the written advice relied upon, including the scope of the mandate given to counsel, the facts provided to counsel, and any conflicting advice received from any source; and (b) all other written legal opinions obtained at any time that addressed whether the same conduct, or conduct substantially similar to it, would be permissible under this Act, the *Conflicts of Interest Act*, the *Lobbyists Act*, or any other statute within the Commissioner's jurisdiction — regardless of whether those opinions were relied upon or reached contrary conclusions. Disclosure under paragraph (b) is limited to opinions directly addressing the permissibility of the conduct in question; it does not require disclosure of general legal advice unrelated to that conduct. Failure to disclose is grounds for the Commissioner to reject the defense. Where a person or entity obtained multiple opinions on the same question, discarded opinions reaching contrary conclusions, and relied on a permissive minority opinion, the Commissioner may treat that pattern as evidence of willful blindness within the meaning of §26(4)(c). Disclosure under this subsection constitutes a limited waiver of solicitor-client privilege for purposes of the defense only and does not waive privilege for other purposes; the Commissioner shall treat such disclosures as confidential under §25(9) and shall not use them in any other proceeding except as necessary to evaluate or contest the defense.

RANDOM AUDIT PROGRAM

27(1) Purpose. The random audit program reduces the political surface of Commissioner investigation decisions through verifiable randomness; creates universal deterrent effect through non-zero probability of audit; detects patterns not captured by complaint-triggered investigation; and generates population-level data on compliance.

(2) Annual program — tiered structure. The Commissioner shall conduct a random audit program annually with a sample size between 2 and 5 percent of the audit population in each stratum, using a publicly verifiable source of randomness for selection (either a recognized randomness beacon or a transparent algorithm applied to publicly-verifiable data published by a source independent of the Commissioner and the Government of Alberta). Stratified populations include sitting Members and former Members who held office within 48 months; senior officials; individuals in paid senior positions at public agencies; contracts awarded under §15 above the contract threshold within 48 months; and Orders in Council making appointments at or above the threshold in §20 within 48 months. The Commissioner shall publish in advance the methodology, random seed, resulting selection list (subject to privacy protections), and any population exclusions with reasons. Audits proceed through the following tiers:

(a) *Tier 0 — Automated compliance check.* An automated system cross-references available disclosures against relevant registries. Where no discrepancy above the screening threshold prescribed by regulation is identified, the matter closes at Tier 0 with a closure note. No personal or financial records are accessed and no human review occurs at Tier 0.

(b) *Tier 1 — Documentary review.* Where Tier 0 identifies a discrepancy above the screening threshold, a Commissioner officer conducts a structured documentary review. Documentary review is limited to records already in the Commissioner's possession or records the person or entity is required to maintain under this Act.

(c) *Tier 2 — Active investigation.* Commences only where Tier 1 identifies specific indicators of non-compliance, subject to a materiality assessment under §6(g). Tier 2 investigation may involve the collection of additional records, interviews, and use of the Commissioner's investigative powers. The procedural rights under subsection (4) apply in full from commencement of Tier 2.

(3) Scope. A random audit is a structured compliance review, not a forensic investigation. It may include retrospective review within 48 months. Excluded from scope are matters previously resolved by Public Report, Compliance Order, or Certificate; solicitor-client privileged information; third-party personal information under the *Protection of Privacy Act*; Cabinet confidences not excepted under §13; and matters subject to active law enforcement investigation to the extent disclosure would prejudice it. Audits commence through documentary review; deeper investigation triggers only on specific screening indicators identified in published protocols.

(4) Procedural rights. The person or entity selected has the right to be informed of selection, methodology, and scope before commencement. Findings are subject to the same notice, response, escalation, and appeal framework as complaint-triggered investigation, including the good-faith defense and Part 9 review. Random selection alone does not constitute an adverse finding; a selection producing no findings results in a closure note. The good-faith defense applies in full.

(5) Integrity. The Commissioner shall not use random selection as a pretext for targeted investigation; selection methodology must be verifiable as random and stratified, and any deviation from published methodology must be reported to the Legislative Assembly. Closure where random audit identifies no conduct warranting formal response shall be final and shall not support subsequent adverse inference.

(6) Reporting. Aggregate results are reported in the quarterly compliance report and the annual report; individual matters follow the standard escalation framework.

(6A) Clean-file destruction. Where a random audit closes at Tier 0 or Tier 1 without escalation to Tier 2, the Commissioner shall, within 90 days of closure:

(a) destroy all personal and financial records accessed or collected during the audit that are not otherwise required to be retained under this Act;

(b) provide written confirmation of destruction to the person or entity subject to the audit; and

(c) retain only aggregate compliance data and the closure note — the closure note shall not identify the audited person or entity in any public report.

Part 12 — Calibration, Administration, and Commencement

THRESHOLD AND REGULATION-MAKING AUTHORITY

28(1) Initial values and indexation. Where this Act refers to a threshold, floor, ceiling, or other dollar value prescribed by regulation, the Lieutenant Governor in Council shall establish by regulation an initial value consistent with the purposes of this Act within 90 days of the coming into force of the provision to which the threshold applies. Where the Lieutenant Governor in Council has not established an initial value within the 90-day period, the Commissioner, jointly with the Auditor General, may by regulation establish an initial value, subject to subsection (5). Thresholds established under this subsection shall be adjusted annually on April 1 in accordance with the change in the Alberta Consumer Price Index, all items, for the preceding calendar year, as published by Statistics Canada or a successor agency. The Commissioner shall publish adjusted values not later than March 1 of each year and table them in the Legislative Assembly; adjusted values take effect on the April 1 following publication.

(2) Phased introduction. Regulations under subsection (1) may, for the first 24 months after the coming into force of each relevant provision, establish higher thresholds than those intended for long-term operation. The Commissioner, jointly with the Auditor General, may extend such initial thresholds for a further period not exceeding 24 months where their joint report demonstrates that administrative capacity has not yet been established. Any extension shall be reported to the Legislative Assembly with reasons and is subject to subsection (5).

(3) Sector- and transaction-specific thresholds. Where this Act refers to a threshold for a specific sector of provincial procurement, a specific category of transactions (including sole-source contracts, emergency procurement, and discretionary grants), or a specific category of appointment, the Commissioner, jointly with the Auditor General, may by regulation establish such a threshold, supported by evidence of elevated corruption risk. Regulations under this subsection are subject to subsection (5).

(4) Operational matters. The Commissioner, jointly with the Auditor General where relevant, may by regulation make provision for operational matters necessary for the effective administration of this Act, including the junior staff compensation threshold under §25(3); the non-profit revenue cutoff and lobbying duties percentage threshold under §2(v); the small-bidder threshold under §15(1A) and the corresponding small-bidder fee cap; the materiality threshold for Indigenous government ownership or control under §21A(3) and the form prescribed for identification of Indigenous governance instruments under §21A(7), each subject to subsection (4A);

centralized compliance services to support small ministries and public agencies, funded through main estimates; protocols for random audit intensity scaling; the form and content of simplified ISC disclosure and the consolidated quarterly appointments bulletin; the method of determining clean compliance history for the purposes of any processing fee credit; tier percentages, floor amounts, collection periods, and accumulation thresholds referenced in §25; and such other operational matters as are necessary. Regulations under this subsection are subject to subsection (5).

(4A) Co-development of Indigenous-affecting regulations. A regulation under subsection (4) that establishes the materiality threshold for Indigenous government ownership or control under §21A(3), or the form prescribed for identification of Indigenous governance instruments under §21A(7), or any other matter the Commissioner identifies as primarily affecting Indigenous governments or Indigenous governance instruments, shall not come into force unless and until the Minister tables in the Legislative Assembly a co-development report. The report shall describe:

(a) the engagement conducted with Treaty 6 First Nations, Treaty 7 First Nations, Treaty 8 First Nations of Alberta, the Métis Nation of Alberta, the Métis Settlements General Council, the Indigenous Accountability Council under §21A(8), and such other Indigenous governance bodies as the Minister identifies as having a material interest;

(b) the matters on which agreement was reached and any matters on which agreement was not reached, including the positions taken by participating Indigenous bodies;

(c) the basis on which the regulation, as proposed, reflects the outcome of co-development; and

(d) any minority position recorded by an Indigenous governance body during the co-development process, which shall be reproduced in the report and tabled with the regulation.

The co-development report shall be tabled at least 60 sitting days before the regulation comes into force, and the regulation is subject to subsection (5) during that period.

(5) Assembly oversight. Regulations under subsections (1) through (4) shall be laid before the Legislative Assembly within 15 sitting days of being made. The Assembly may, by resolution within 30 sitting days of tabling, disallow any such regulation in whole or in part; a regulation disallowed is void from the date of the resolution, and a regulation not disallowed within 30 sitting days is confirmed. The Assembly may at any time, by resolution, amend or disallow any regulation made under this section whether previously confirmed or not; the Commissioner shall give effect to such a resolution within 30 days of its passage. The Commissioner shall report annually to the Assembly on the use of regulation-making authority under this section, with the report referred on tabling to the appropriate standing committee.

(6) Substantive regulations. Regulations under this Act other than those described in subsections (1) through (4), and in particular regulations designating positions under §2(u)(iv) or otherwise affecting private rights not addressed elsewhere, shall be made by the Lieutenant Governor in Council, and shall be laid before the Legislative Assembly within 15 sitting days of being made.

(7) Threshold adequacy. The Commissioner shall include in the annual report under §24(3) an assessment of whether each threshold prescribed by regulation under this section is consistent with the purposes of this Act, with reasons. Where the Commissioner determines, with reasons published, that a threshold prescribed by the Lieutenant Governor in Council would substantially defeat the operative effect of one or more provisions of this Act, the Commissioner may, jointly with the Auditor General, make a regulation establishing an alternative threshold for that provision. A regulation under this subsection is subject to the Assembly oversight provisions in subsection (5). A regulation made under this subsection prevails over a conflicting regulation of the

Lieutenant Governor in Council to the extent of the conflict, unless and until disallowed under subsection (5). A disallowance of a regulation made under this subsection shall be recorded in the cooperation register under §24(5), with the operational consequence of the disallowance stated plainly.

COST RECOVERY

29(1) The Registrar of Lobbyists may charge registration and filing fees in amounts established by regulation.

(2) A public body may recover the administrative cost of ISC return processing from the bidding entity in an amount established by regulation and included as a disclosed line item in procurement documentation. Total processing fees charged to any single bidder across all bids in any fiscal year shall not exceed the cap prescribed by regulation. A bidder with the prescribed period or more of clean compliance history is eligible for a processing fee credit as prescribed by regulation.

(3) Fees collected under this section shall be used to offset the administrative cost of this Act and shall be reported in the annual report under §24.

(4) False complaint fee. Where the Commissioner finds, in writing with reasons, that a complaint was frivolous, vexatious, or made in bad faith, including as part of a pattern of such complaints from the same complainant or from complainants acting in concert, the Commissioner may require the complainant to pay a fee to offset the administrative cost of responding to the complaint. The fee shall be calibrated proportionately to the complainant's capacity under §25(3) or §25(4) with necessary modifications; shall not be imposed on complainants making a single complaint that is found unfounded on the merits without a further finding of bad faith; shall be subject to review and appeal under Part 9; and shall be collected by the processes available for administrative penalties. A fee under this subsection shall not be imposed on a journalist acting in the course of journalism, on a whistleblower protected under the *Public Interest Disclosure (Whistleblower Protection) Act*, or on an individual citizen making a first complaint regarding a matter of personal experience.

PERSONAL INFORMATION RETENTION

29A(1) Personal information held under this Act shall be destroyed no later than 10 years from the date of its creation, unless:

(a) retention is required by ongoing proceedings, court order, or statutory obligation;

(b) the information is in a form that is already in the public domain; or

(c) the information has been anonymized or aggregated such that it can no longer be attributed to an identifiable individual.

(2) The Commissioner shall publish an annual retention schedule identifying the categories of personal information held, the applicable retention period for each category, and the destruction method. The retention schedule shall be tabled in the Legislative Assembly.

(3) Where personal information subject to this section is used in a public Report, Certificate, or compliance record, the record itself is subject to the applicable retention period for official records, but underlying personal information not incorporated into the public record shall be destroyed on the schedule applicable to personal information in general.

STATUTORY REVIEW

30(1) Within 5 years of commencement, the Minister responsible for the administration of this Act shall cause a comprehensive review of the operation of the Act to be conducted.

(2) The review shall assess the Act's effectiveness against its stated purposes; administrative cost relative to public interest served; the proportional penalty framework (including equity of application, deterrent effect at the tail, efficacy of decline-tracking, and whether junior staff and unpaid non-profit director protections achieve their intended purposes); the good-faith defense (including frequency of successful invocation and any evidence of abuse); the random audit program; beneficial ownership determinations; disgorgement orders; the privacy impact of the regime (including whether disclosures are proportionate to the accountability purpose served and whether the retention, destruction, and data minimization provisions under §25(9), §25(9B), §27(6A), and §29A are operating as intended); and any unintended consequences, procedural obstacles, or gaps in coverage. The Minister shall consult with the Commissioners, public bodies, and affected members of the public, and shall report findings with any recommendations for amendment to the Legislative Assembly. In addition, the Commissioner shall, within 12 months of commencement, publish a Privacy Impact Assessment in accordance with standards established by the Information and Privacy Commissioner of Alberta, assessing the collection, use, and disclosure of personal information under this Act.

TRANSITIONAL PROVISIONS

31(1) Obligations for proactive disclosure under §13(3) apply only to records executed or issued on or after the commencement of Part 4.

(2) Section 20 (Alberta Public Agencies Governance Act amendments) applies only to appointments made on or after commencement.

(3) Part 6 (Recall Act amendments) applies only to Certificates issued on or after commencement.

(4) During the 180-day phase-in period following Royal Assent, the Commissioners may issue interim guidance and may, on application, grant time-limited extensions to public bodies demonstrating good-faith efforts toward compliance.

(5) Identity platform dependency. Where the identity verification platform designated under §15A(1) does not support the issuance of persistent cross-application identifiers as distinct from session-specific credentials, the Commissioner shall publish a written notice to that effect and the fallback chain under §15A(2) shall apply until the platform capability is confirmed in writing by the Minister responsible for Service Alberta. This subsection ceases to have effect on the publication of that confirmation.

SEVERABILITY

31A(1) If any provision of this Act, or the application of any provision to any person or circumstance, is held by a court of competent jurisdiction to be invalid, unconstitutional, or otherwise unenforceable, the remainder of this Act, and the application of the provision to other persons or circumstances, remain in full force and effect.

(2) Where a provision is severed under subsection (1), the Commissioner shall, in the next quarterly compliance report under §23, identify the provision severed, the basis on which it was severed, and the operational consequences for the regime. The Minister shall introduce remedial legislation, or report in writing to the Legislative Assembly the reasons for not doing so, within 12 months of the determination.

(3) It is the legislative intent of this Act that each provision be capable of independent operation to the maximum extent consistent with its terms, and that severance preserve the protective effect of the remainder of the Act in respect of the public interest in transparent and accountable government.

COMMENCEMENT

32(1) The following provisions come into force on Royal Assent: §1 (Short Title); Part 1 (Interpretation); §§17, 18, 19 (Public Interest Disclosure amendments); §21A(1), (1.1), (2), and (6) (the definitional and protective

subsections of Part 8 — Indigenous Engagement at the Interface); Part 9 (Application and Process — §§21, 21B, 22, 22A); and §26 (Good-Faith Defense). The remaining subsections of §21A come into force in accordance with subsection (3.1). Sections in Parts 10 and 11 come into force in accordance with subsections (2) and (3).

(2) The following provisions come into force 180 days after Royal Assent: Parts 2, 3, 4, 5, and 7; §23 (Quarterly Compliance Report), with the first report due at the close of the first full fiscal quarter following commencement; §§24, 25, 28, 29 (Resourcing, Proportional Penalty Framework, Threshold and Regulation-Making Authority, Cost Recovery); and §§30, 31 (Statutory Review, Transitional Provisions). For greater certainty, §28(4A) (the co-development requirement for Indigenous-affecting regulations) applies on and after 180 days after Royal Assent regardless of whether §21A's engagement provisions are in force.

(3) Section 27 (Random Audit Program) comes into force 365 days after Royal Assent, with the first audit conducted in the first full fiscal year following commencement.

(3.1) Indigenous engagement preconditions. Notwithstanding subsections (1) and (2):

(a) §21A(3), (4), (5), (7), and (8) shall not come into force unless and until the Minister tables in the Legislative Assembly an Indigenous engagement report describing the engagement conducted with Treaty 6 First Nations, Treaty 7 First Nations, Treaty 8 First Nations of Alberta, the Métis Nation of Alberta, and the Métis Settlements General Council on the substance of those provisions and on the establishment of the Indigenous Accountability Council under §21A(8); the matters on which agreement was reached and any matters on which it was not; and any minority position recorded during the engagement;

(b) §21A(1), (1.1), (2), and (6) come into force on Royal Assent under subsection (1), on the rationale that they protect Indigenous governance from the operation of this Act and do not impose new obligations on Indigenous governments;

(c) until §21A(3) is in force, the Commissioner shall, in respect of any action that would be subject to that subsection on its coming into force, conduct engagement on a basis the Commissioner considers consistent with §21A(3) and shall record the basis in the quarterly compliance report under §23, with the engagement record subject to revision once §21A(3) and the Indigenous Accountability Council under §21A(8) are operational;

(d) the Indigenous engagement report under paragraph (a) shall be tabled no later than 24 months after Royal Assent, failing which the Minister shall table in the Assembly written reasons for the delay and a revised tabling schedule, with such reasons referred on tabling to the appropriate standing committee.

(4) Except as otherwise provided in this section, this Act comes into force on Royal Assent.

Appendix B — Bill 2: The Open Books Act

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Preamble

WHEREAS the largest transfers of value from the Crown to private parties occur not through competitive procurement or open public contracting, but through legislative exceptions, regulatory approvals, concessional fiscal arrangements, and ministerial individual exemptions — decisions made in settings where competitive pressure and public scrutiny are weakest;

WHEREAS public confidence in democratic institutions depends on transparency in the conferral of state advantage, and on visible equity in the application of state enforcement power;

WHEREAS the accountability regime established by the *Honest Government Act* addresses the conduct of Ministers and officials but does not directly address the systemic conferral of privilege through legislation, regulation, and administrative discretion;

WHEREAS a legislature that grants special advantage to a named party, a regulator that approves a major project, a Minister who reduces royalties or forgives debt, and an enforcement body that applies the law differentially across comparable parties are each points at which private benefit flows from public authority, and each should be accompanied by disclosure sufficient to support public accountability;

AND WHEREAS this Act is intended to complement the *Honest Government Act* by extending transparency obligations to decision-making contexts where the executive, the regulatory state, or the legislature itself confers advantage on specific parties;

HIS MAJESTY, by and with the advice and consent of the Legislative Assembly of Alberta, enacts as follows:

Short Title

1. This Act may be cited as the *Open Books Act*.

Part 1 — Interpretation

2. In this Act:

(a) "Commissioner" has the meaning given in the Honest Government Act.

(b) "concessional arrangement" means any arrangement by which the Crown, a public body, or a Crown corporation confers financial advantage on a specific party by reducing, forgiving, deferring, guaranteeing, or otherwise altering an obligation that party would otherwise owe, and includes royalty reductions, tax abatements, tax credits granted on an individual basis, loan guarantees, debt forgiveness, deferred payment arrangements, and other fiscal concessions, but does not include arrangements available to all parties meeting objective criteria established by statute or regulation of general application.

(c) "contribution threshold" means the threshold for contribution disclosure prescribed by regulation under §28 of the Honest Government Act.

(d) "ISC" (individual with significant control) has the meaning given in section 15 of the *Financial Administration Act* as amended by the Honest Government Act.

(e) "ministerial individual exemption" means any decision by a Minister, or by an official acting on the delegated authority of a Minister, to grant a specific person or entity an exemption from, variation of, or relief from a requirement that would otherwise apply under a statute, regulation, or administrative policy of general application.

(f) "named-party legislation" means any Bill introduced in the Legislative Assembly — whether a private Bill, a public Bill, or an amendment to a Bill — that confers benefit:

(i) on one or more specifically named parties;

(ii) on a class of parties so narrowly defined that the class effectively identifies five or fewer specific parties; or

(iii) on a class of parties where, based on publicly available information at the time of introduction, a substantial majority of the benefit is reasonably expected to flow to five or fewer identifiable parties and the estimated financial value of that benefit to those parties exceeds the threshold prescribed by regulation under §28 of the *Honest Government Act*;

but does not include:

(iv) legislation available to all parties meeting objective criteria established by statute or regulation of general application, where the criteria are not designed to identify specific parties;

(v) legislation whose primary stated purpose is the construction, improvement, or operation of public infrastructure, the delivery of a public service, or the implementation of a public benefit program, where any benefit to specific identifiable parties is incidental to and not the primary object of the legislation;

(vi) legislation implementing the terms of a treaty, court order, arbitration award, settlement agreement, or constitutional obligation to which the Crown or the Government of Alberta is a party; or

(vii) transitional or administrative legislation that identifies specific parties solely to modify, repeal, or give effect to an obligation or entitlement those parties already hold under existing law.

(g) "regulatory approval" means a decision by a regulatory body, tribunal, board, commission, agency, or delegated authority under the law of Alberta to approve, license, permit, authorize, or exempt a specific project, transaction, facility, or activity of a specific person or entity.

(h) "regulatory body" means any body, board, commission, tribunal, agency, or other authority established under the law of Alberta with power to grant regulatory approvals, and includes the Alberta Energy Regulator, the Alberta Utilities Commission, the Land and Property Rights Tribunal, and any successor or analogous body.

(i) Other definitions from the Honest Government Act apply to this Act with necessary modifications.

Part 2 — Disclosure Accompanying Named-Party Legislation

3(1) Any named-party legislation introduced in the Legislative Assembly shall be accompanied, at the time of introduction, by a **Beneficiary Disclosure Statement** filed by the sponsoring Minister or Member, in the form prescribed by regulation.

(2) The Beneficiary Disclosure Statement shall include the common content under §8C, plus, for public Bills with narrow application, an explanation of why the benefit is conferred through legislation of narrow application rather than through legislation of general application.

(3) The Beneficiary Disclosure Statement shall be tabled at First Reading and published on the Legislative Assembly's website within 5 business days of filing.

(4) No Bill subject to this section shall proceed past Second Reading without a complete Beneficiary Disclosure Statement on the record.

(5) A Member may, at any reading, move that a Beneficiary Disclosure Statement be revised to correct material omissions or inaccuracies. Such a motion is debatable and amendable.

(6) Where the Speaker determines, on application by any Member or on the Speaker's own motion, that a Bill falls within the definition of named-party legislation in §2(f), the Speaker shall direct the sponsor to file a Beneficiary Disclosure Statement. Sponsors may apply to the Speaker for advance ruling on whether a proposed Bill falls within the definition.

(7) Nothing in this section requires disclosure of information subject to solicitor-client privilege, national security, or active law enforcement investigation. Where partial disclosure is provided on such grounds, the sponsor shall state the reasons for partial disclosure and make the complete Statement available to the Speaker in confidence.

Part 3 — Disclosure Accompanying Regulatory Approvals

4(1) Where a regulatory body grants a regulatory approval in respect of a project, transaction, facility, or activity whose estimated value exceeds the threshold prescribed by regulation, the regulatory body shall publish, within 10 business days of the approval, a **Proponent Disclosure Record** in the form prescribed by regulation.

(2) The Proponent Disclosure Record shall include the common content under §8C, plus any entity under common control or common beneficial ownership with the proponent, as determined under §25(10) of the *Honest Government Act*, together with the disclosure required by §8C for such entities.

(3) The Proponent Disclosure Record shall be published on the regulatory body's website and shall remain accessible for the duration of the approval's effect and for not less than 7 years thereafter.

(4) Where the proponent is a publicly-traded entity, ISC disclosure may be satisfied by reference to the proponent's disclosure under applicable securities legislation, provided the securities disclosure meets or exceeds the requirements of this section.

(5) This section does not affect the substantive criteria governing regulatory approvals and does not empower the Commissioner to review the merits of an approval. The Commissioner's jurisdiction under this section is

limited to the completeness, accuracy, and timeliness of the Proponent Disclosure Record.

(6) Where the regulatory body determines that full disclosure under this section would reveal information subject to solicitor-client privilege, national security, active law enforcement investigation, or legitimate commercial confidence not otherwise subject to public disclosure under applicable law, the body may publish a partial Record with reasons, and shall deliver the complete Record to the Speaker in confidence.

Part 4 — Disclosure Accompanying Crown Concessional Arrangements

5(1) Where the Crown, a public body, or a Crown corporation enters into a concessional arrangement with a specific party whose estimated value to the party exceeds the threshold prescribed by regulation, the authorizing Minister shall publish, within 30 days of execution, a **Concessional Arrangement Disclosure** in the form prescribed by regulation.

(2) The Concessional Arrangement Disclosure shall include the common content under §8C, plus the reasons for the concession (including why the recipient was selected, why the concession was granted on the terms specified, and what public interest the concession serves), and any other concessional arrangement under this Part entered into by the same Minister within the preceding 24 months.

(3) The Concessional Arrangement Disclosure shall be tabled in the Legislative Assembly forthwith, or delivered to the Speaker for tabling on the first sitting day thereafter, and published on a government website.

(4) Concessional arrangements meeting the definition in §2(b) but available to all parties meeting objective statutory criteria of general application are not subject to this section.

(5) Where the authorizing Minister determines that full disclosure would reveal information subject to solicitor-client privilege, national security, active law enforcement investigation, or commercially sensitive information the disclosure of which would cause material harm to the recipient unrelated to the matters this Act is designed to illuminate, the Minister may publish a partial Disclosure with reasons, and shall deliver the complete Disclosure to the Speaker in confidence.

Part 5 — Disclosure of Ministerial Individual Exemptions

6(1) Every ministerial individual exemption whose estimated value to the recipient exceeds the threshold prescribed by regulation shall be accompanied by an **Individual Exemption Disclosure** in the form prescribed by regulation.

(2) The Individual Exemption Disclosure shall include the common content under §8C, plus the statute or regulation from which exemption is granted and the specific requirement exempted, the reasons for granting the exemption (including the public interest served), and aggregate data on prior ministerial individual exemptions granted by the same Minister within the preceding 24 months under the same statutory authority (including the total number, total estimated value, and any patterns in recipient characteristics).

(3) The Individual Exemption Disclosure shall be published on a government website within 30 days of the exemption and shall remain accessible for the duration of the exemption and for not less than 7 years thereafter.

(4) Ministerial individual exemptions granted under emergency authority in circumstances requiring urgent action may be published within 30 days of the expiration of the emergency circumstances, with the Minister required to table a report to the Legislative Assembly within 10 sitting days of such publication explaining the circumstances.

Part 6 — Enforcement Equity Reporting

7(1) The Auditor General, in collaboration with the Ethics Commissioner, shall prepare and publish annually an **Enforcement Equity Report** examining the enforcement activity of provincial regulatory bodies, administrative tribunals, and enforcement agencies.

(2) The Enforcement Equity Report shall, for each regulatory body, tribunal, or enforcement agency examined, identify patterns in enforcement action across comparably-situated parties, including whether similarly-situated parties have been subject to similar enforcement outcomes; whether enforcement intensity correlates with any observable characteristic of parties including industry sector, size, political affiliation of ISCs or senior officers, recent contributions to Alberta political parties, or recent receipt of discretionary state benefit; any statistically significant disparities in enforcement outcomes that cannot be adequately explained by differences in the underlying conduct; and any patterns warranting further investigation under the Honest Government Act or referral to the appropriate law enforcement authority.

(3) The Auditor General shall have access to the enforcement records and decision data of regulatory bodies, tribunals, and enforcement agencies sufficient to prepare the Report, subject to solicitor-client privilege, active law enforcement investigation constraints, and protection of third-party personal information under the *Protection of Privacy Act*.

(4) The Report shall be tabled in the Legislative Assembly and published on the Auditor General's website. Patterns identified as warranting further investigation may be referred to the Ethics Commissioner for proceedings under the Honest Government Act.

(5) Regulatory bodies, tribunals, and enforcement agencies shall provide the Auditor General with such information and cooperation as is reasonably necessary to prepare the Report. A failure to cooperate is conduct within the jurisdiction of the Ethics Commissioner under the Honest Government Act.

(6) The Report is a statistical and analytical document. Findings of pattern do not constitute findings against specific individuals or entities; such findings arise, if at all, through proceedings under the Honest Government Act or through referral to other competent authority.

(7) Phased implementation. The first Enforcement Equity Report shall examine no fewer than five regulatory bodies, tribunals, or enforcement agencies, selected by the Auditor General based on elevated risk, transaction volume, or public-interest significance. Subsequent annual Reports shall expand coverage, achieving comprehensive examination of all provincial regulatory bodies, tribunals, and enforcement agencies within 24 months of the first Report. The Auditor General shall publish the selection methodology and the intended phase-in schedule at the time of the first Report. The compressed schedule is intended to make the regime operationally complete within a single legislative mandate.

(8) Communications log. Each Enforcement Equity Report shall include a complete log of all communications received by the Auditor General from any Minister, Deputy Minister, senior official, or entity of the Crown regarding the scope, methodology, selection of bodies examined, or findings of the Report, identifying the date, sender, and substance of each communication. The log shall be complete regardless of whether communications were formal or informal, written or oral. The Auditor General shall characterize each logged communication as informational, advisory, or directive, with reasons, and that characterization shall be included in the log. The obligation to log applies to communications received at any time during the preparation of the Report, including in the period following delivery of draft findings. A nil return — confirming no such communications were received — is required where no communications occurred.

Part 7 — Enforcement and Common Provisions

8(1) Cross-reference to Honest Government Act. The following provisions of the Honest Government Act apply to conduct within the jurisdiction of the Commissioner under this Act, with necessary modifications, as if enacted in this Act:

(a) the escalation framework in Part 3 (Public Report of Findings, Compliance Order, Certificate of Malfeasance); (b) the proportional penalty framework in §25, including the decline-tracking mechanism in §25(6) and the beneficial ownership determination authority in §25(10); (c) the good-faith defense in §26; (d) the review and appeal provisions in Part 9; (e) the quarterly compliance report obligation in §23, extended to include matters arising under this Act; (f) the resourcing and budget visibility provisions in §24; (g) the threshold and regulation-making authority in §28; (h) the cost recovery provisions in §29.

(2) Coordination with other statutes. Nothing in this Act limits the application of the *Access to Information Act*, the *Conflicts of Interest Act*, the *Financial Administration Act*, or any other statute. Disclosure obligations under this Act are in addition to, and not in lieu of, disclosure obligations under any other statute.

(3) Complaints and investigation. A person may file a complaint with the Commissioner alleging non-compliance with this Act. The Commissioner may investigate on complaint, on audit under §27 of the Honest Government Act (Random Audit Program, extended by this subsection to include obligations under this Act), or on the Commissioner's own initiative on reasonable grounds.

(4) Institutional deference. This Act is intended to complement and not replace the work of the courts, criminal justice authorities, regulatory bodies, the Auditor General, and the Legislative Assembly. Nothing in this Act empowers the Commissioner to substitute administrative judgment for the substantive decisions of regulatory bodies, the Legislative Assembly, or Ministers acting within their lawful authority. The Commissioner's jurisdiction under this Act is limited to the transparency of those decisions, not their substance.

8A. Annual named-party compliance assessment. The Commissioner shall include in the annual report under §24(3) of the *Honest Government Act* an assessment of compliance with Part 2 of this Act, identifying: (a) every Bill introduced in the Legislative Assembly in the preceding year for which a Beneficiary Disclosure Statement was filed, with a note on whether the Statement was materially complete; (b) every Bill the Commissioner assesses as meeting the definition of named-party legislation under §2(f) for which no Beneficiary Disclosure Statement

was filed, with the Commissioner's reasons for that assessment; and (c) any pattern of non-filing across the preceding three years. The assessment under paragraph (b) is the Commissioner's administrative opinion regarding the application of §2(f) to the named Bill; it does not constitute a ruling on a matter of parliamentary procedure and is without prejudice to any determination made by the Speaker. The Commissioner's assessment shall be tabled in the Legislative Assembly and published on the Commissioner's website.

8B. Common provisions for published disclosures. The following apply to every Beneficiary Disclosure Statement, Proponent Disclosure Record, Concessional Arrangement Disclosure, and Individual Exemption Disclosure (each a "published disclosure" for the purposes of this section):

(1) Enforcement. Failure to publish a required disclosure, or material inaccuracy in a published disclosure, is conduct within the jurisdiction of the Ethics Commissioner under the *Honest Government Act* and may give rise to proceedings under Parts 3, 9, 10, and 11 of that Act, as applicable.

(2) Right of correction. Any person whose personal information is included in a published disclosure may, within 60 days of publication, apply to the Commissioner to correct a material inaccuracy. The Commissioner shall determine the application within 30 days and, if warranted, direct that a correction notice be published alongside the original disclosure. The original disclosure shall not be removed; the correction notice shall be prominently linked and shall identify the nature of the inaccuracy and the corrected information.

8C. Common content for published disclosures. Every published disclosure under Parts 2 through 5 shall include the following common content, in the form prescribed by regulation:

(a) the identification of every person or entity expected to benefit directly from, or to receive advantage under, the legislation, regulatory approval, concessional arrangement, or ministerial individual exemption;

(b) for each beneficiary that is an entity, every individual with significant control of the entity within the meaning of §15 of the *Honest Government Act*;

(c) for each beneficiary who is a natural person, and for each individual with significant control identified under (b), any contribution made within the preceding 48 months to any Alberta political party, constituency association, or candidate where the contribution exceeds the contribution threshold;

(d) for each beneficiary that is an entity, any other discretionary provincial contract, grant, regulatory approval, concessional arrangement, or ministerial individual exemption received within the preceding 48 months;

(e) a quantified estimate of the financial value of the legislation, approval, arrangement, or exemption to each beneficiary, to the extent reasonably ascertainable, with assumptions and methodology where the estimate is not direct.

The domain-specific content additional to the common content under this section is set out at §3(2), §4(2), §5(2), and §6(2) for each respective disclosure.

Part 8 — Statutory Review and Commencement

STATUTORY REVIEW

9. Within 5 years of commencement, the Minister responsible for the administration of this Act shall cause a comprehensive review of the operation of the Act to be conducted jointly with the review required under §30 of

the Honest Government Act. The review shall assess the effectiveness of Parts 2 through 6 in illuminating systemic advantage conferred through legislation, regulation, concessional arrangement, and enforcement disparity; the administrative cost of the Act relative to the public interest served; the adequacy of the Enforcement Equity Report as a tool for identifying patterns warranting further investigation; any unintended consequences or gaps; and consult with the Commissioners, the Auditor General, public bodies, regulatory bodies, and affected members of the public, reporting findings with any recommendations for amendment to the Legislative Assembly.

SEVERABILITY

9A(1) If any provision of this Act, or the application of any provision to any person or circumstance, is held by a court of competent jurisdiction to be invalid, unconstitutional, or otherwise unenforceable, the remainder of this Act, and the application of the provision to other persons or circumstances, remain in full force and effect.

(2) Where a provision is severed under subsection (1), the Auditor General shall, in the next Enforcement Equity Report under §7, identify the provision severed and the operational consequences. The Minister shall introduce remedial legislation, or report in writing to the Legislative Assembly the reasons for not doing so, within 12 months of the determination.

(3) It is the legislative intent of this Act that each provision be capable of independent operation to the maximum extent consistent with its terms, and that severance preserve the protective effect of the remainder in respect of the public interest in transparent disclosure of advantage conferred by the Crown.

COMMENCEMENT

10(1) The following provisions come into force 180 days after Royal Assent: §1 (Short Title); Part 1 (Interpretation); Parts 2, 3, 4, and 5 (Named-Party Legislation, Regulatory Approvals, Concessional Arrangements, and Ministerial Individual Exemptions); and Part 7 (Enforcement and Common Provisions).

(2) Part 6 (Enforcement Equity Reporting) comes into force 270 days after Royal Assent. The first Enforcement Equity Report shall be published no later than 12 months after Royal Assent, covering the enforcement activity of the preceding fiscal year. Together with the comprehensive-coverage clause at §7(7), this timetable is designed to deliver full operational scope within 36 months of Royal Assent — within a typical four-year legislative mandate.

(3) During the 180-day phase-in period, the Commissioner and the Auditor General may issue interim guidance. The Commissioner may, on application, grant time-limited extensions to regulatory bodies and public bodies demonstrating good-faith efforts toward compliance.

(4) Obligations under Parts 2 through 5 apply only to named-party legislation introduced, regulatory approvals granted, concessional arrangements entered into, and ministerial individual exemptions made on or after the commencement of those respective Parts.

(5) Except as otherwise provided, this Act comes into force on Royal Assent.

Appendix C — Methodology proposal for the Enforcement Equity Report

A drafted starting point for the Auditor General's office. Released under CC-BY-SA 4.0.

A drafted starting point for the Auditor General's office. Released under CC-BY-SA 4.0. Not a final methodology; a structured proposal designed to be revised in consultation with the office that would administer it.

Why this is an appendix

The Enforcement Equity Report at Bill 2 §7 is the most novel provision in the package and the most underspecified. Part V names a four-part methodological framework — a definition of "similarly-situated parties," a comparator-pool methodology, a covariate model, and a publication standard — but does not develop any of them in operational detail. A reader who is asked to take the provision seriously without seeing what its administration would actually look like has reasonable cause to set the brief down at that point.

This appendix runs the framework. It is not a final methodology. It is a structured proposal for what one looks like, written so that the Auditor General's office, regulators, scholars, and members of the regulated public can argue with it section by section. The intended use is the first-year *draft for comment* contemplated by Part V — a document the AG's office would publish, receive submissions on, and refine before the first formal Enforcement Equity Report is tabled.

The appendix borrows nothing operational from any specific Canadian or international regulator's existing practice, because none has published a methodology for systemic enforcement-equity analysis at provincial scale. Where the appendix gestures at analogues, those analogues are partial — fairness-in-policing analyses, securities-enforcement reviews, tax-administration audits — and none of them resolves the core problem the EE Report is built to address.

Purpose and scope

The EE Report asks one question. When a regulator makes an enforcement decision — to inspect, to sanction, to refer for prosecution, to resolve administratively, to defer, to close — does the pattern of those decisions, when assembled across cases, correlate with characteristics of the regulated parties that should not be driving enforcement?

The report does not adjudicate any individual case. Individual adjudication is what the regulator's existing processes do. The report does not replace regulator judgement. It sits one layer above the case file, looking at decisions in aggregate.

The report covers regulatory bodies, administrative tribunals, and enforcement agencies as defined in Bill 2 §7. The first report covers a small number of bodies; coverage expands to all designated bodies within five years. The five-year timeline is deliberate, because the methodology has to be developed in the open and refined iteratively. A fully formed methodology dropping in at year one would be either undercooked or a fiction.

What the report does *not* cover: the Crown's own conduct in litigation; case-specific privilege; matters subject to active law-enforcement investigation; regulatory decisions that are already subject to judicial review on the same record. The report is a pattern-detector. It is not a court.

The four-part framework, developed

PART 1 — SIMILARLY-SITUATED PARTIES

The hardest definition in the appendix. Two regulated parties are "similarly-situated" for the purposes of the EE Report if their underlying conduct is comparable on the regulator's own definitional terms, and the parties are comparable along axes the regulator's enforcement decisions might reasonably attend to.

Four operational tests for similarity. Each is a necessary condition; together they are sufficient for inclusion in a comparator pool.

Sector. Same regulated activity, defined by the regulator's own classification system or by NAICS / NOC code where the regulator does not maintain one. Cross-sector comparisons are not what the report is for. A pipeline operator's enforcement record is not comparable to a hospital's enforcement record, regardless of how the underlying conduct might appear similar in a procurement-style abstraction.

Scale. Comparable approximate scale, defined by whichever metric the regulator uses to set its own enforcement tier — production volume, employee count, revenue band, number of regulated assets. The metric matters: a regulator that classifies operators by production volume produces enforcement tiers that look different from a regulator that classifies by revenue. The EE Report uses the regulator's own scale metric, not an externally imposed one.

Regulatory history. Comparable prior regulatory record, defined by the recency, severity, and resolution of prior enforcement actions. A first-time violation at a party with a clean ten-year history is not comparable to the same violation at a party with three prior violations resolved at escalating severity. The covariate model in Part 3 holds prior history statistically constant; the similarity test ensures the comparator pool is at least minimally comparable on this dimension before the model runs.

Geography (where geography matters). Some regulators have geographic enforcement variation that is operationally legitimate — different field offices, different inspection timetables, different regional capacity. Where geography matters, similarity is bounded within geography. Where geography does not matter operationally, the geographic axis is dropped.

The output of Part 1 is, for any given enforcement decision, a definitional rule that identifies a pool of similarly-situated parties facing comparable underlying conduct. The pool is constructed from the regulator's own

records and verified independently by the AG.

PART 2 — COMPARATOR POOL CONSTRUCTION

The pool for any given enforcement decision is the set of all similarly-situated parties who, over a comparable window, faced comparable underlying conduct on the regulator's own definitional terms, and for whom the regulator made an enforcement decision (including the decision not to enforce, where that decision is recorded).

Three construction rules:

The window. The comparable window is calibrated to the regulator's own enforcement cycle and the conduct's typical duration. For a one-time violation, the window is the period from the conduct's occurrence to the next regulator review of the operator. For a continuous-conduct violation, the window is the regulator's standard inspection or audit cycle. Where the regulator has no standard cycle, the AG sets a window with reasons published.

The corpus. The full corpus from which pools are drawn is the regulator's complete enforcement-decision record over the relevant window. This includes decisions to inspect, decisions to issue warnings, administrative penalties, prosecution referrals, settlements, and decisions to take no action where conduct was identified. The AG accesses the record through a confidentiality protocol described in the *Data architecture* section below.

Verification. The pool the AG constructs is verified independently against the regulator's own records by sampling: the AG draws a 5% random sample of pool decisions and asks the regulator to confirm the relevant facts (the conduct, the parties, the decision, the date). Discrepancies above a published tolerance — meaning more than two percent of sampled decisions cannot be confirmed — trigger reconstruction of the pool with the regulator's input. This is iterative and may take more than one cycle to settle.

The output of Part 2 is a defensible comparator pool for each enforcement decision examined, with the construction methodology documented so the regulator and the public can examine it.

PART 3 — THE COVARIATE MODEL

Once the comparator pool is constructed, the question is whether the regulator's decisions across the pool show patterns that correlate with characteristics of the parties that should not be driving enforcement. The naive version of this analysis — simply observing that party A was sanctioned and party B was not — does not survive any serious regulator's response, because regulators have many legitimate reasons to treat similar cases differently.

The covariate model holds the legitimate explanations statistically constant before testing the residual variance for problematic correlations.

Variables held constant. At minimum:

- *Cooperation.* Did the party cooperate with the regulator at the moment of enforcement? Cooperative parties routinely receive lighter administrative responses than uncooperative ones; this is operationally legitimate. The covariate is binary at the gross level (cooperated / did not cooperate) and ordinal at the fine level (degree of cooperation, recorded by the regulator).
- *Severity.* The regulator's own severity scoring of the underlying conduct. A spill of one barrel and a spill of ten thousand barrels are not comparable by the regulator's own terms even where both fall within the same statutory provision.

- *Complexity.* Is the regulator's decision constrained by the case's legal or technical complexity? A novel question of statutory interpretation may legitimately produce a softer enforcement response while precedent develops. The covariate is ordinal, set by the regulator's own complexity flag where one exists.
- *Voluntary disclosure.* Did the party self-report the conduct to the regulator? Self-reporting is widely treated as mitigating, and properly so. The covariate is binary.
- *Prior compliance history.* The covariate the similarity test held only minimally constant, now controlled in detail at the model stage. Number of prior actions, severity of priors, time since most recent prior.

Variables tested for. After holding the legitimate variables constant, the residual variance is tested against:

- *Industry sub-sector* (within the broad sector that defined the pool).
- *Party size class* (within the broad scale band that defined the pool).
- *Political contribution history of the party's individuals with significant control* (drawing on the Bill 1 §15 cross-reference register; the contribution history examined is from the four-year window preceding the conduct or the enforcement decision, whichever is earlier).
- *Recent receipt of state benefit* (concessional arrangement, regulatory approval, ministerial individual exemption — drawing on the Bill 2 disclosure registers).
- *Stated location relative to government caucus seats* (where the regulator covers province-wide activity).

The tests are statistical. The model produces correlation coefficients with confidence intervals. A correlation that survives at the published confidence threshold is "pattern identified." A correlation that does not is "pattern not identified." Neither characterization implies a corruption finding.

Multiple comparisons. The covariate model runs many tests simultaneously. The AG corrects for multiple comparisons using a published method (false discovery rate at $q = 0.05$ is the appendix's working proposal; the office may choose a different correction with reasons published). Without correction, the EE Report would generate spurious patterns; with conservative correction, it would miss real ones. The chosen correction is documented and re-examined annually.

Statistical software and reproducibility. All analyses are conducted in software that produces reproducible scripts. The scripts, with personal-information redaction, are published alongside the report so independent analysts can replicate the analysis on the same data or run sensitivity analyses with different parameters.

PART 4 — PUBLICATION STANDARD

The report distinguishes three states for any given regulator-conduct combination:

- **Pattern not identified.** The covariate model finds no statistically significant correlation between residual variance and any of the tested variables, after multiple-comparisons correction. The report so reports.
- **Pattern identified, no further inquiry warranted.** A statistically significant pattern is detected, but its magnitude or direction does not warrant further inquiry — for example, a pattern that is statistically real but operationally trivial, or a pattern in a direction the regulator can defensibly explain on the public record.
- **Pattern identified, further inquiry warranted.** A statistically significant pattern is detected whose magnitude, direction, or covariate combination raises questions the regulator's standard processes do not resolve. The report so reports, and the matter is referred to the Ethics Commissioner under Bill 1 §22 if the pattern implicates conduct within the Commissioner's jurisdiction, or remains a published finding for the political process and the press to act on.

Each report category includes:

- The methodology used (which can change year-over-year as the methodology refines).
- The data accessed.
- The pool construction details.
- The covariate model parameters.
- The correlation results, with confidence intervals.
- The multiple-comparisons correction applied.
- The regulator's response, where one is provided.
- The Auditor General's comments on the response.
- The communications log under Bill 2 §7(8).

A "pattern identified" finding is not a corruption finding. The report so states, prominently, in every relevant section. The point of the regime is to surface patterns the regulator's own data reveals when assembled across cases, not to replace adjudication.

Data architecture

The AG needs access to the regulator's enforcement-decision record. Three architectural questions: what data, on what schedule, under what confidentiality.

What data. A unified record that captures, for each regulatory action over the relevant window:

- The regulated party (entity name + ISC where the entity has one).
- The conduct identified.
- The regulator's classification of severity.
- The regulator's classification of complexity.
- The cooperation indicator.
- The voluntary-disclosure indicator.
- The decision (no action, warning, administrative penalty, prosecution referral, settlement, other).
- The date of the decision.
- The geographic locus where geography matters.
- Any cross-references to prior actions involving the same party.

Most regulators already collect most of this. Where they do not, the EE Report's first-year coverage is limited to the regulators that do, and the others are added as their data infrastructure catches up.

On what schedule. The data refresh is annual, in the first quarter of the calendar year, covering the preceding fiscal year. Incremental updates are tracked but not separately reported.

Under what confidentiality. Three layers.

The AG's office holds the data under the existing confidentiality framework that governs AG audits — the *Auditor General Act* preserves the AG's access to public-body information without compromising business confidentiality of regulated parties. The EE Report regime sits inside that framework.

The published report aggregates and anonymizes. Specific parties are named only where the underlying conduct is already a matter of public record (e.g., a published enforcement decision) and where naming the party adds analytical value the report cannot otherwise convey. Where naming is unnecessary, parties are coded.

The reproducibility scripts published alongside the report use anonymized data with personal-information redaction. The full underlying record remains with the AG and the regulator.

A worked illustration: the Alberta Energy Regulator

A concrete pass through the methodology, applied to a notional EE Report on the AER's enforcement of the *Oil and Gas Conservation Act* over a five-year window. This is illustrative; the AER would be one of the bodies covered, and the methodology would apply broadly similarly to other regulators.

Pool construction. For each enforcement decision in the window — say, an administrative penalty issued for a flaring exceedance — the comparator pool is all operators with comparable production volume, comparable past five-year compliance history, operating in the same operational region, who recorded a flaring exceedance in the same statutory window. The pool is drawn from AER's own enforcement record, verified by a 5% sample.

Covariates held constant. AER's own compliance-investigation records identify cooperation, severity, complexity, voluntary disclosure, and prior compliance history for each enforcement decision. The covariate model uses these AER-recorded values directly.

Variables tested. The model tests whether residual variance in enforcement disposition (warning vs. administrative penalty vs. prosecution referral) correlates with: operator size sub-class within the comparable production-volume band; operator's ISCs' political contribution history within the four-year window; operator's receipt of a regulatory approval, concessional arrangement, or ministerial individual exemption within the four-year window; operator's geographic concentration relative to government caucus seats.

Possible outputs. Three illustrative scenarios:

Scenario A. The covariate model finds no statistically significant correlation. The report so reports. The regulator's enforcement of the *Oil and Gas Conservation Act* over the window is consistent with the legitimate explanations the model controlled for. Public confidence is reinforced; the regime imposed minor cost on AER and the AG; no further inquiry follows.

Scenario B. The model finds a statistically significant correlation between operator size class and enforcement severity, after controlling for cooperation, severity, complexity, and prior history. Larger operators receive proportionally lighter administrative responses than smaller operators for comparable conduct. The report identifies the pattern and notes that a defensible explanation exists — larger operators have more sophisticated counsel and may resolve enforcement more efficiently — but the magnitude warrants further inquiry. The regulator responds; the AG comments. The political process reads the report.

Scenario C. The model finds a statistically significant correlation between operator ISC contribution history and enforcement disposition: operators whose ISCs contributed above the four-year threshold to the governing party receive proportionally lighter responses. The report so reports. The matter is referred to the Ethics Commissioner under §22; the political process reads the report. No corruption finding has been made, by the AG or by the Commissioner; what has happened is that a pattern in the regulator's own data has been surfaced.

The illustrations are notional. None corresponds to a current AER enforcement record. The point is to show what an actual EE Report output looks like at the level a regulator and the public can engage with it.

What the methodology cannot do

Honest accounting. Five limits.

It cannot replace regulator judgement on individual cases. The report is a pattern-detector across cases, not an adjudicator within them. Every individual enforcement decision the report examines was made by the regulator on its own grounds; the report does not unmake any of those decisions.

It cannot identify causation. Statistical correlation between residual variance and a tested variable does not establish that the variable caused the variance. The report identifies the pattern; the political process, the regulator, the Commissioner, and the public draw inferences.

It cannot detect patterns smaller than its statistical power admits. Where a regulator handles few decisions per year, or where the comparator pool is small, the model may not detect a real pattern that a larger pool would have surfaced. The report is honest about this; "pattern not identified" does not mean "no pattern exists."

It cannot cover regulators whose data infrastructure is inadequate. The first-year coverage is limited to bodies whose enforcement records meet the methodology's data requirements. Coverage expands as data matures. Where a regulator is excluded from a year's report for data reasons, the report so notes.

It cannot prevent the regime from being weaponised. A captured Auditor General who selects which patterns to publish, or who calibrates the methodology to surface or suppress particular kinds of correlation, can corrupt the report from inside. The defences against this are upstream of the methodology: the Auditor General's two-thirds appointment and removal under Bill 1 §11B; the §24 budget floor; the §7(8) communications log. The methodology's own contribution is procedural — published methodology, reproducibility scripts, regulator-response sections, multiple-comparisons correction with stated parameters. None of those are guarantees.

Iterative refinement

The methodology is published in draft form in the AG's first year of operation under §7. The draft is open for written submissions from regulators, the regulated public, scholars, civil-society organizations, and members of the public. The AG publishes the submissions received and a written response. The methodology is revised based on the submissions and the AG's analysis; the revised methodology is the basis for the first formal EE Report.

The methodology is reviewed every three years thereafter. The five-year coverage timeline at Bill 2 §7 is calibrated to the iterative-refinement schedule: year one is draft-for-comment; years two through four are first-cycle reports with one or two regulatory bodies; year five expands to full coverage of designated bodies.

Methodology changes are published with reasons. A revision that materially changes how a pattern would be classified ("identified" vs. "not identified") is published with a parallel re-analysis of the prior year's report under

the new methodology, so longitudinal comparability is preserved.

What other jurisdictions do

A short comparative survey, partial because the analogues are partial.

Federally. The Canada Revenue Agency conducts large-scale random-audit programs whose findings are aggregated annually but not disaggregated by enforcement-equity dimensions of the kind this methodology would examine. The Office of the Auditor General of Canada conducts performance audits that occasionally examine enforcement-equity questions for specific programs but does not maintain a continuous methodology of the kind proposed here.

Peer provinces. No Canadian province currently produces an annual systemic enforcement-equity report under a published methodology. Some provincial Information and Privacy Commissioners have produced one-off systemic studies; none is annual or regularised.

Comparable international practice. The United Kingdom's National Audit Office and Australia's National Audit Office both conduct enforcement-pattern analyses on specific programs but have not generalised to a continuous province- or state-wide methodology. United States state-level analogues are partial, focused on specific enforcement domains (policing, securities, environmental), and uneven in methodology.

The EE Report's distinctiveness. What the EE Report adds is the combination: continuous, province-wide, methodologically uniform, statistically rigorous, published with reproducibility scripts, paired with a communications log that catches ministerial pressure. None of the analogues combines all of those elements, which is why Part V calls the report "genuinely new in Canadian provincial practice."

Statistical robustness

Five tests the methodology should pass before any formal report is published.

Sample-size adequacy. Each comparator pool must contain enough decisions to detect a meaningful pattern at the chosen confidence threshold. The methodology specifies a minimum pool size; pools that fall below the minimum are reported as "insufficient data" rather than as "pattern not identified."

Multiple-comparisons correction. The chosen correction (false discovery rate at $q = 0.05$ in the working proposal) is applied transparently and re-examined annually.

Sensitivity analysis. Each "pattern identified" finding is tested against alternative covariate specifications, alternative pool-construction rules, and alternative correction methods. The robustness of the finding to specification changes is reported.

Independent replication. The reproducibility scripts published alongside the report allow independent analysts to replicate the analysis. The AG's office welcomes replication submissions and publishes responses.

Public verifiability. A non-technical reader cannot verify the underlying statistics directly, but can verify the methodology is being followed (by reading the methodology document and the report's methodology section), and can verify the data is what the AG said it was (by reading the regulator's response section). The report is not a black box.

Sample published-report template

A skeleton of what an annual EE Report looks like as a document.

Front matter. The report's title, the AG's signature, the date, the bodies covered, the period covered.

Methodology section. The current methodology, with any changes from the prior year flagged. The pool-construction rules. The covariate-model specification. The multiple-comparisons correction.

Per-body sections. For each regulatory body covered:

- Description of the body's enforcement role.
- Data accessed and the period covered.
- Pool-construction details specific to the body.
- Patterns examined (the variables tested).
- Findings — pattern not identified / pattern identified, no further inquiry / pattern identified, further inquiry warranted.
- Regulator's response.
- AG's comments on the response.

Cross-cutting sections. Patterns that appear across bodies. Methodological refinements proposed for the next cycle.

Communications log. The §7(8) record of all communications received about the report's scope, methodology, selection, or findings, with the characterizations the section requires (informational, advisory, directive). A nil return where appropriate.

Reproducibility appendix. Pointers to the published scripts and anonymized data sets.

Methodology evolution. The changes from the prior year's methodology, with reasons.

The report is a substantial document. It should be. The methodology argues that what is being measured matters; the report's length is the cost of doing it carefully.

Final note

This is a starting point. The Auditor General's office, in consultation with the bodies it covers and the public it serves, will produce a methodology that supersedes most of what this appendix proposes. That is the design

intent: the appendix exists so the conversation has somewhere to start, not so the AG is bound to anything in particular.

What the appendix does not concede is the proposition that systemic enforcement-equity analysis at provincial scale is impossible. It is hard. It has not been done in the form Bill 2 §7 contemplates. The methodology developed here is one good-faith attempt at showing how it could be done. Better attempts will follow. That is the right pattern for a hard problem.

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End of drafted package Drafted by Will Conner · Released under Creative Commons Attribution-ShareAlike 4.0 github.com/lxby/accountability-acts-alberta